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TITLE 3—THE PRESIDENT

REORGANIZATION PLAN NO. 1 OF 1958

Prepared by the President and transmitted to the Senate and the House of Representatives in Congress assembled, April 24, 1958, pursuant to the provisions of the Reorganization Act of 1949, approved June 20, 1949, as amended.[1]

CIVILIAN MOBILIZATION

SECTION 1. *Transfer of functions to the President.* (a) There are hereby transfered to the President of the United States all functions vested by law (including reorganization plan) in the following: the Office of Defense Mobilization, the Director of the Office of Defense Mobilization, the Federal Civil Defense Administration, and the Federal Civil Defense Administrator.

(b) The President may from time to time delegate any of the functions transferred to him by subsection (a) of this section to any officer, agency, or employee of the executive branch of the Government, and may authorize such officer, agency, or employee to redelegate any of such functions delegated to him.

SEC. 2. *Office of Defense and Civilian Mobilization.* (a) Subject to the provisions of this reorganization plan, the Office of Defense Mobilization and the Federal Civil Defense Administration are hereby consolidated to form a new agency in the Executive Office of the President which shall be known as the Office of Defense and Civilian Mobilization, hereinafter referred to as the "Office".

(b) There shall be at the head of the Office a Director of the Office of Defense and Civilian Mobilization, who shall be appointed by the President by and with the advice and consent of the Senate and shall receive compensation at the rate now or hereafter prescribed by law for the heads of executive departments.

(c) There shall be in the Office a Deputy Director of the Office of Defense and Civilian Mobilization, who shall be appointed by the President by and with the advice and consent of the Senate, shall receive compensation at the rate now or hereafter prescribed by law for the under secretaries referred to in section 104 of the Federal Executive Pay Act of 1956 (5 U. S. C. 2203), shall perform such functions as shall be delegated or assigned to him pursuant to the provisions of this reorganization plan, and shall act as Director during the absence or disability of the Director or in the event of a vacancy in the office of Director.

(d) There shall be in the Office three Assistant Directors of the Office of Defense and Civilian Mobilization, each of whom shall be appointed by the President by and with the advice and consent of the Senate, shall receive compensation at the rate now or hereafter prescribed by law for assistant secretaries of executive departments, and shall perform such functions as shall be delegated or assigned to him pursuant to the provisions of this reorganization plan.

(e) The Office and the Director thereof shall perform such functions as the President may from time to time delegate or assign thereto. The said Director may from time to time make such provisions as he shall deem appropriate authorizing the performance by any officer, or by any agency or employee, of the Office of any function delegated or assigned to the Office or to the Director.

SEC. 3. *Regional directors.* There are hereby established in the Office so many new positions, not in excess of ten existing at any one time, with the title "Regional Director", as the Director of the Office shall from time to time determine. Each Regional Director shall be appointed under the classified civil service, shall be the head of a regional office of the Office of Defense and Civilian Mobilization, shall perform such functions appropriate to such regional office as may be delegated or assigned to him pursuant to the provisions of this reorganization plan, and shall receive compensation which shall be fixed from time to time pursuant to the classification laws as now or hereafter amended except that the compensation may be fixed without regard to the numerical limitations on positions set forth in section 505 of the Classification Act of 1949, as amended (5 U. S. C. 1105).

(Continued on p. 4993)

[1] Effective July 1, 1958, under the provisions of section 9 of the plan; published pursuant to section 11 of the act (63 Stat. 206; 5 U. S. C. 133z-9).

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FEDERAL REGISTER

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SEC. 4. *Membership on National Security Council.* The functions of the Director of the Office of Defense Mobilization with respect to being a member of the National Security Council are excluded from the scope of the provisions of section 1 (a) of this reorganization plan and are hereby transferred to the Director of the Office of Defense and Civilian Mobilization.

SEC. 5. *Civil Defense Advisory Council.* The Civil Defense Advisory Council, created by section 102 (a) of the Federal Civil Defense Act (50 U. S. C. App. 2272 (a)), together with its functions, is hereby transferred to the Office of Defense and Civilian Mobilization.

SEC. 6. *Abolitions.* The offices of Federal Civil Defense Administrator and Deputy Administrator provided for in section 101 of the Federal Civil Defense Act (60 U. S. C. App. 2271) and the offices of the Director of the Office of Defense Mobilization and Deputy Director of the Office of Defense Mobilization provided for in section 1 of Reorganization Plan No. 3 of 1953 (67 Stat. 634) are hereby abolished. The Director of the Office of Defense and Civilian Mobilization shall make such provisions as may be necessary in order to wind up any outstanding affairs of the offices abolished by this section which are not otherwise provided for in this reorganization plan.

SEC. 7. *Records, property, personnel, and funds.* (a) The records, property, personnel, and unexpended balances, available or to be made available, of appropriations, allocations, and other funds of the Office of Defense Mobilization and of the Federal Civil Defense Administration shall, upon the taking effect of the provisions of this reorganization plan, become records, property, personnel, and unexpended balances of the Office of Defense and Civilian Mobilization.

(b) Records, property, personnel, and unexpended balances, available or to be made available, of appropriations, allocations, and other funds of any agency (including the Office of Defense and Civilian Mobilization), relating to functions vested in or delegated or assigned to the Office of Defense Mobilization or the Federal Civilian Defense Administration immediately prior to the taking effect of the provisions of this reorganization plan, may be transferred from time to time to any other agency of the Government by the Director of the Bureau of the Budget under authority of this subsection for use, subject to the provisions of the Reorganization Act of 1949, as amended, in connection with any of the said functions authorized at time of transfer under this subsection to be performed by the transferee agency.

(c) Such further measures and dispositions as the Director of the Bureau of the Budget shall determine to be necessary in connection with the provisions of subsections (a) and (b) of this section shall be carried out in such manner as he shall direct and by such agencies as he shall designate.

SEC. 8. *Interim provisions.* The President may authorize any person who immediately prior to the effective date of this reorganization plan holds an office abolished by section 6 hereof to hold any office established by section 2 of this reorganization plan until the latter office is filled pursuant to the said section 2 or by recess appointment, as the case may be, but in no event for any period extending more than 120 days after the said effective date.

SEC. 9. *Effective date.* The provisions of this reorganization plan shall take effect at the time determined under the provisions of section 6 (a) of the Reorganization Act of 1949, as amended, or on July 1, 1958, whichever is later.

[F. R. Doc. 58-5005; Filed, June 30, 1958; 8:53 a. m.]

RULES AND REGULATIONS

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 616—BUTTON, JEWELRY, AND LAPIDARY WORK INDUSTRY IN PUERTO RICO

PART 709—BUTTON, JEWELRY, AND LAPIDARY WORK INDUSTRY IN PUERTO RICO, MINIMUM WAGE ORDER

REVOCATION AND WAGE ORDER GIVING EFFECT TO RECOMMENDATIONS

Pursuant to section 5 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 505 (23 F. R. 2384) appointed, convened, and gave notice of the hearing of Industry Committee No. 39-A to recommend the minimum wage rate or rates to be paid under section 6 (c) of the act to employees in the button, jewelry, and lapidary work industry in Puerto Rico who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings and recommendations with respect to the matters referred to it. The committee revised the classifications in the industry and recommended increases in the minimum wage rates for certain of the classifications.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1064, as amended, 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165), General Orders Nos. 45-A (15 F. R. 3290) and 85-A (22 F. R. 7614) of the Secretary of Labor, the recommendations of the committee are hereby published in this order amending Title 29, Code of Federal Regulations, effective July 16, 1958, as follows:

1. Part 709 is hereby revoked.

2. Part 616 is hereby added to read as follows:

Sec.
616.1 Definition of the industry.
616.2 Wage rates.
616.3 Notices.

AUTHORITY: §§ 616.1 to 616.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 616.1 *Definition of the industry.* The button, jewelry, and lapidary work industry in Puerto Rico, to which this part shall apply, is defined as the manufacture from any material of buttons, buckles, jewelry (including rosaries), jewelry findings (including beads), and hair ornaments and accessories; and the processing of natural or synthetic stones for jewelry or industrial use.

§ 616.2 *Wage rates.* (a) Wages at a rate of not less than 43 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the rosary and native jewelry classification of that industry, which is defined as the assembling of rosaries and the manufacture of novelty jewelry from materials wholly or in major part of local origin such as seeds, shells, natural fibers, and similar materials.

(b) Wages at a rate of not less than 71 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the hair ornaments classification of that industry, which is defined as the manufacture of hair ornaments such as combs, clips, or barrettes decorated or ornamented with precious metals or with natural or imitation stones or pearls.

(c) Wages at a rate of not less than 61 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the hair accessories classification of that industry, which is defined as the manufacture from any material of bobby pins, hair clips, hair curlers, hair wavers, and other hair accessories and the manufacture of hair ornaments other than those decorated

or ornamented with precious metals or with natural or imitation stones or pearls.

(d) Wages at a rate of not less than 57 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the plastic costume jewelry classification of that industry, which is defined as the manufacture or assembly of all types of jewelry findings and costume jewelry made wholly or in major part from plastic materials, except the manufacture of plastic beads, and including the pearlizing of buttons, beads, and costume jewelry and the stringing of pearlized beads.

(e) Wages at a rate of not less than 87 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the precious jewelry and metal expansion watch band classification of that industry, which is defined as the manufacture of jewelry and other personal ornaments from precious metals with or without precious stones and the fabrication or partial fabrication of metal expansion bands or expansion bracelets for watches or other uses.

(f) Wages at a rate of not less than $1.00 an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the gem stone classification of that industry, which is defined as the sawing, cutting, grinding, polishing, and other processing of gem diamonds, other precious and semi-precious stones, and synthetic stones used for decorative purposes.

(g) Wages at a rate of not less than 90 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the industrial jewel classification of that industry, which is defined as the sawing, cutting, grinding, polishing, and other processing of natural or synthetic jewels for industrial use, including, but without limitation, jewel bearings, industrial diamonds, and the processing of precious and synthetic stones as components of phonograph needles and the attachment of such jewels to metal phonograph needle components, but not inicludng the production of such metal components.

(h) Wages at a rate of not less than 63 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the button, jewelry, and lapidary work industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the general classification of that industry, which is defined as the manufacture of all products included in the button, jewelry, and lapidary work industry in Puerto Rico, as defined in § 616.1, except those products and activities included in the rosary and native jewelry classification, the hair ornaments classification, the hair accessories classification, the plastic costume jewelry classification, the precious jewelry and metal expansion watch band classification, the gem stone classification, and the industrial jewel classification, as those classifications are defined in this section.

§ 616.3 *Notices.* Every employer subject to the provisions of § 616.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 616.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, the United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 25th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4994; Filed, June 30, 1958; 8:48 a. m.]

PART 619—ALCOHOLIC BEVERAGE AND INDUSTRIAL ALCOHOL INDUSTRY IN PUERTO RICO

PART 706—ALCOHOLIC BEVERAGE AND INDUSTRIAL ALCOHOL INDUSTRY IN PUERTO RICO

REVOCATION AND WAGE ORDER GIVING EFFECT TO RECOMMENDATIONS

Pursuant to section 5 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 505 (23 F. R. 2384), as amended by Administrative Order No. 509 (23 F. R. 3937), appointed, convened, and gave notice of the hearing of Industry Committee No. 39-E to recommend the minimum wage rate or rates to be paid under section 6 (c) of the act to employees in the alcoholic beverage and industrial alcohol industry in Puerto Rico who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings and recommendations with respect to the matters referred to it. Aside from minor changes in the definition of the industry, this wage order effects no changes in the provisions of the current wage order for this industry.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1064, as amended, 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165), General Orders Nos. 45-A (15 F. R. 3290) and 85-A (22 F. R. 7614) of the Secretary of Labor, the recommendations of the committee are hereby published in this order amending Title 29, Code of Federal Regulations, effective July 16, 1958, as follows:

1. Part 706 is hereby revoked.

2. Part 619 is hereby added to read as follows:

Sec.
619.1 Definition of the industry.
619.2 Wage rates.
619.3 Notices.

AUTHORITY: §§ 619.1 to 619.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 619.1 *Definition of the industry.* The alcoholic beverage and industrial alcohol industry in Puerto Rico, to which this part shall apply, is defined as follows: The manufacture, including, but without limitation, the distilling, rectifying, blending, or bottling of rum, gin, vodka, whisky, brandy, cordials, liqueurs, wines, ale, beer, and similar malt beverages with or without alcohol, other alcoholic beverages, industrial alcohol (such as amyl, butyl, and ethyl alcohol), acetone, antifreeze, and any related by-product resulting from the manufacture of any of the foregoing products.

§ 619.2 *Wage rates.* Wages at a rate of not less than $1.00 an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the alcoholic beverage and industrial alcohol industry in Puerto Rico, as defined in § 619.1, who is engaged in commerce or in the production of goods for commerce.

§ 619.3 *Notices.* Every employer subject to the provisions of § 619.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 619.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 26th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4998; Filed, June 30, 1958; 8:49 a. m.]

PART 661—BANKING, INSURANCE, AND FINANCE INDUSTRY IN PUERTO RICO

RECOMMENDATIONS OF INDUSTRY COMMITTEE

Pursuant to section 5 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 505 (23 F. R. 2384), as amended by Administrative Order No. 509 (23 F. R. 3937), appointed, convened, and gave notice of the hearing

of Industry Committee No. 39–D to recommend the minimum wage rate or rates to be paid under section 6 (c) of the act to employees in the banking, insurance, and finance industry in Puerto Rico who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings and recommendations with respect to the matters referred to it.

The committee recommended no change in the current wage order which provides that wages at not less than $1.00 an hour be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the banking, insurance, and finance industry in Puerto Rico, as defined in 29 CFR Part 661, who is engaged in commerce or in the production of goods for commerce.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1064, as amended, 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1064; 3 CFR, 1950 Supp., p. 165), and General Orders Nos. 45–A (15 F. R. 3290) and 85–A (22 F. R. 7614) of the Secretary of Labor, it is hereby ordered that the wage order previously published in Part 661 of Title 29, Code of Federal Regulations, be continued in effect.

(Sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208)

Signed at Washington, D. C., this 19th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4997; Filed, June 30, 1958; 8:49 a. m.]

PART 671—COMMUNICATIONS, UTILITIES, AND TRANSPORTATION INDUSTRY IN PUERTO RICO

WAGE ORDER GIVING EFFECT TO RECOMMENDATIONS

Pursuant to section 5 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 505 (23 F. R. 2384) appointed, convened, and gave notice of the hearing of Industry Committee No. 39–B to recommend the minimum wage rate or rates to be paid under section 6 (c) of the act to employees in the communications, utilities, and transportation industry in Puerto Rico who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings and recommendations with respect to the matters referred to it. The committee revised the classifications in the industry, and recommended new minimum wage rates for some of these classifications.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1064, as amended, 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165) and General Orders Nos. 45–A (15 F. R. 3290) and 85–A (22 F. R. 7614) of the Secretary of Labor, the recommendations of the committee are hereby published in this order amending Part 671 of Title 29, Code of Federal Regulations, effective July 16, 1958, to read as follows:

Sec.
671.1 Definition of the industry.
671.2 Wage rates.
671.3 Notices.

AUTHORITY: §§ 671.1 to 671.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 671.1 *Definition of the industry.* The communications, utilities, and transportation industry in Puerto Rico, to which this part shall apply, is defined as follows: The industry carried on by any wire or radio system of communication, or by messenger service; by any concern engaged in the production and distribution of gas, electricity, or steam, the distribution of water, or the operation of sanitation facilities; and by any concern engaged in transportation for compensation by air, water, rail, motor vehicle, pipeline, or other means, or in related activities, including the operation of travel bureaus and ticket agencies, stevedoring, consolidating, forwarding, crating, and boxing: *Provided, however,* That the industry shall not include railroad transportation activities carried on by a producer of raw sugar, cane juice, molasses, refined sugar, and incidental by-products (or by any firm owned or controlled by or owning and controlling such producer, or by any firm owned or controlled by the parent company of such producer), where the railroad transportation activities are in whole or in part used for the production or shipment of these products, and any transportation activities by truck or other vehicle performed by a producer of these products in connection with the production or shipment of such products by such producer.

§ 671.2 *Wage rates.* (a) Wages at a rate of not less than 90 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the communications, utilities, and transportation industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the radio broadcasting classification of that industry, which is defined as consisting of the operations carried on by any firm engaged in radio broadcasting in Puerto Rico.

(b) Wages at a rate of not less than 80 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the communications, utilities, and transportation industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the motor carrier transport and express classification of that industry, which is defined as any transportation of property by motor vehicle for compensation including pickup and delivery, and activities directly related to the transportation of property by motor vehicle for compensation, and consolidating, forwarding, packing, crating, and boxing goods for shipment.

(c) Wages at a rate of not less than $1.00 an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the communications, utilities, and transportation industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce and who is engaged in the general classification of that industry, which is defined as all activities included in the communications, utilities, and transportation industry in Puerto Rico as defined in § 671.1, except activities included in the radio broadcasting classification and the motor carrier transport and express classification of that industry, as these classifications are defined in this section.

§ 671.3 *Notices.* Every employer subject to the provisions of § 671.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 671.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, the United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 26th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4995; Filed, June 30, 1958; 8:49 a. m.]

PART 681—HOMEWORKERS IN CERTAIN INDUSTRIES IN PUERTO RICO

MISCELLANEOUS AMENDMENTS

Notice of a proposed amendment to Part 681 was published in the FEDERAL REGISTER on May 15, 1958 (23 F. R. 3303). A 15-day period was provided for the submission of data, views, or arguments. The sole submission was a communication received from an employer seeking deferral of the promulgation of the proposal as final on the basis of a question earlier raised by it regarding the previous amendment establishing minimum piece rates for homeworkers effective in November 1957.

This amendment is based on authority under the Fair Labor Standards Act of 1938, and its purpose is to provide minimum piece rates for homeworkers performing the operations described therein, commensurate with the hourly rates established under section 8 of the act for the shoe and related products industry in Puerto Rico (23 F. R. 1568) and for the leather, leather goods, and related products industry in Puerto Rico (23 F. R. 1568). The amendment also provides for an automatic adjustment in the piece rates contained in Part 681 when they

are no longer commensurate with the minimum hourly rate established under section 8 of the act. In addition to the piece rates changed by this amendment, the automatic adjustment provided for by new § 681.9 applies to the piece rate for hand-braiding leather buttons which is contained in § 681.10 (a) as renumbered. This provision will more readily effectuate the purposes of this act and coincide with the provision for homeworkers in 29 CFR 545.9. The title of Part 681 no longer reflects an accurate description of the contents of the part and for that reason the amendment provides for a change in title which has no substantive effect.

Accordingly, pursuant to the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), Reorganization Plan No. 6 of 1950 (3 CFR, 1950 Supp., p. 165), and General Orders Nos. 45–A (15 F. R. 3290) and 85–A (22 F. R. 7614) of the Secretary of Labor, and in accordance with section 4 of the Administrative Procedure Act (5 U. S. C. 1003), effective 30 days after publication in the FEDERAL REGISTER, Part 681, Title 29, Code of Federal Regulations is amended as follows:

1. The headnote to Part 681 is amended to read as set forth above.

2. Section 681.9 is renumbered as § 681.10 and the section headnote and paragraph (b) of the section are amended to read as follows:

§ 681.10 *Piece rates established in accordance with § 681.9.* * * *

(b) *Piece rates for the hand-lacing of plastic and leather wallets, leather wallet covers, and leather moccasin plugs.* The minimum piece rates established for homeworkers in accordance with § 681.9 are as follows: A minimum rate of $^{61}/_{100}$ of one cent per dozen stitches for homeworkers in Puerto Rico engaged in the hand-lacing, single stitch, with plastic lacing material, of leather wallets and leather wallet covers; a minimum piece rate of $^{82}/_{100}$ of one cent per dozen stitches for homeworkers in Puerto Rico engaged in the hand-lacing, single stitch, with plastic lacing material, of leather moccasin plugs; a minimum piece rate of 1 and $^{50}/_{100}$ cents per dozen stitches for homeworkers in Puerto Rico engaged in the hand-lacing, double stitch, with plastic lacing material, of leather wallets and leather wallet covers; and a minimum piece rate of 1 and $^{87}/_{100}$ cents per dozen stitches for homeworkers in Puerto Rico engaged in the hand-lacing, double stitch, with plastic lacing material, of plastic wallets.

3. A new § 681.9 is inserted to read as follows:

§ 681.9 *Minimum piece rates prescribed by the Administrator.* Pursuant to the provisions of section 6 (a) (2) of the Fair Labor Standards Act of 1938, each homeworker shall be paid, in lieu of the applicable hourly rate established by wage order, not less than the piece rates indicated in § 681.10 for the operations described therein. On or after the effective date of any change in the minimum hourly rates established by wage order and until the effective date of compensating revisions of the rates contained in § 681.10, the minimum piece rates which shall be paid are those set forth in § 681.10 adjusted in ratio to the relation between the change in the old and new minimum hourly rates.

(Sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208)

Signed at Washington, D. C., this 25th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4999; Filed, June 30, 1958; 8:50 a. m.]

PART 683—WHOLESALING, WAREHOUSING, AND OTHER DISTRIBUTION INDUSTRY IN PUERTO RICO

WAGE ORDER GIVING EFFECT TO RECOMMENDATIONS

Pursuant to section 5 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the Secretary of Labor by Administrative Order No. 505 (23 F. R. 2384) appointed, convened, and gave notice of the hearing of Industry Committee No. 39–C to recommend the minimum wage rate or rates to be paid under section 6 (c) of the act to employees in the wholesaling, warehousing, and other distribution industry in Puerto Rico who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings and recommendations with respect to the matters referred to it. The committee recommended a new wage rate for the industry, as defined in Administrative Order No. 505, and discontinuance of the classifications contained in the present wage order (29 CFR Part 683) for this industry.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1064 as amended, 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165), General Orders Nos. 45–A (15 F. R. 3290) and 85–A (22 F. R. 7614) of the Secretary of Labor, the recommendations of the committee are hereby published in this order amending Part 683, Title 29, Code of Federal Regulations, effective July 16, 1958, to read as follows:

Sec.
683.1 Definition of the industry.
683.2 Wage rates.
683.3 Notices.

AUTHORITY: §§ 683.1 to 683.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply sec. 5, 52 Stat. 1062, as amended; 29 U. S. C. 205.

§ 683.1 *Definition of the industry.* The wholesaling, warehousing, and other distribution industry in Puerto Rico to which this part shall apply is defined as follows: The wholesaling, warehousing, and other distribution of commodities, including, but without limitation, the wholesaling, warehousing, and other distribution activities of jobbers, importers and exporters, manufacturers' sales branches and offices engaged in distributing products manufactured outside of Puerto Rico, industrial distributors, mail order and retail selling establishments, brokers and agents, and public warehouses: *Provided, however,* That the industry shall not include the activities of employees who are engaged in wholesaling, warehousing, and other distribution of products manufactured by their employer in Puerto Rico, or any activities included in the communications, utilities, and transportation industry in Puerto Rico (Part 671 of this chapter), or in the tobacco industry in Puerto Rico (Part 657 of this chapter), or in the food and related products industry in Puerto Rico (Part 673 of this chapter).

§ 683.2 *Wage rates.* Wages at a rate of not less than $1.00 an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the wholesaling, warehousing, and other distribution industry in Puerto Rico, who is engaged in commerce or in the production of goods for commerce.

§ 683.3 *Notices.* Every employer subject to the provisions of § 683.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 683.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour Division, United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 26th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-4996; Filed, June 30, 1958; 8:49 a. m.]

PART 695—HOMEWORKERS IN INDUSTRIES IN THE VIRGIN ISLANDS

MISCELLANEOUS AMENDMENTS

Notice was published in the FEDERAL REGISTER (23 F. R. 3355) on May 17, 1958, that the Acting Administrator of the Wage and Hour Division, United States Department of Labor, proposed to amend Part 695 of Title 29, Code of Federal Regulations. Interested persons were given fifteen (15) days in which to submit to the Acting Administrator any written data, views, or arguments pertaining to the proposal.

All relevant information submitted has been considered, together with all other available information, and it appears that the adoption of the proposed amendments is appropriate. Their purposes are to prescribe minimum piece rates for homeworkers in the Virgin Islands that are commensurate with the minimum hourly rates established under section 8 of the act for industries in the Virgin Islands (23 F. R. 2375) and to provide for the time when the rates prescribed are no longer commensurate with the minimum hourly rates so established.

Accordingly, in accordance with section 4 of the Administrative Procedure Act (60 Stat. 238, 5 U. S. C. 1003) and pursuant to section 6 (a) (2) of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1062; 29 U. S. C. 206 (a) (2)), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165), and General Orders Nos. 45–A (15 F. R. 3290) and 85–A (22 F. R. 7614) of the Secretary of Labor, I hereby adopt the amendments as proposed and set forth below.

1. Section 695.8 is amended to read as follows:

§ 695.8 *Minimum piece rates prescribed by the Administrator.* Pursuant to the provisions of section 6 (a) (2) of the act, each homeworker shall be paid, in lieu of the applicable hourly rate established by wage order, not less than the piece rates prescribed in § 695.12 for the operations described therein. On or after the effective date of any change in the minimum hourly rates established by wage order and until the effective date of compensating revisions of the rates contained in § 695.12, the minimum piece rates which shall be paid are those listed in § 695.12 adjusted in ratio to the relation between the change in the old and new minimum hourly rates.

2. Section 695.12 is amended to read as follows:

§ 695.12 *Piece rates established in accordance with § 695.8.*

SCHEDULE A—PIECE RATE SCHEDULE FOR THE HAND-MADE ART LINEN INDUSTRY IN THE VIRGIN ISLANDS (HAND-EMBROIDERY OPERATIONS)

Design No.	Description of design	Piece rate based on hourly rate of 25 cents
1	Native Woman No. 1—Woman carrying tray of fruit on head, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 1, filed with the Wage and Hour Division. Size: 1" high, ⅞" at base	$0.131
2	Native Woman No. 2—Woman carrying tray of fruit on head, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 2, filed with the Wage and Hour Division. Size: 1 5/16" high, 1 1/16" at base	.159
3	Native Woman No. 3—Woman carrying tray of fruit on head, palm tree with 2 fruits; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 3, filed with the Wage and Hour Division. Size: 2" high, 2 1/16" at base	.21
4	Native Woman No. 4—Woman carrying tray of fruit on head, 2 palm trees, each with 3 fruits; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 4, filed with the Wage and Hour Division. Sizes: 3¾" high, 6¼" at base	.911
5	Palm Tree No. 1—Palm tree, 6 leaves, 2 small fruits; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 5 filed with the Wage and Hour Division. Size: 1¾" high, 1¼" at base	.148
6	Palm Tree No. 2—Palm tree, 8 leaves, 2 fruits; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 6, filed with the Wage and Hour Division. Size: 2½" high, 1⅝" at base	.174
7	Palm Tree No. 3—Palm tree, 8 leaves, 2 fruits; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 7, filed with the Wage and Hour Division. Size: 3¾" high, 2¾" at base	$0.268
8	Donkey and Rider No. 1—Boy riding donkey, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 8, filed with the Wage and Hour Division. Size: 1¾" high, 1¼" at base	.155
9	Donkey and Rider No. 2—Boy riding donkey, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 9 filed with the Wage and Hour Division. Size: 1¾" high, 1¾" at base	.218
10	Donkey and Rider No. 3—Boy riding donkey, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 10, filed with the Wage and Hour Division. Size: 2¾" high, 2½" at base	.268
11	Donkey and Boy No. 1—Boy leading donkey, man carrying bundle of bananas, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 11, filed with the Wage and Hour Division. Size: 2" high, 1⅝" at base	.226
12	Donkey and Boy No. 2—Boy leading donkey, man carrying bundle of bananas, palm tree; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 12, filed with the Wage and Hour Division. Size: 2¾" high, 2¾" at base	.304
13	Bluebeard Castle No. 1—Castle in shape of tower, 4 windows, door, flag, and 2 palm trees; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 13, filed with the Wage and Hour Division. Size: 1¾" high, 1¾" wide	.205
14	Bluebeard Castle No. 2—Castle in shape of tower, 4 windows, door, flag, 1 large and 2 small palm trees; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 14, filed with the Wage and Hour Division. Size: 2¾" high, 2¾" wide	.266
15	Bluebeard Castle No. 3—Castle in shape of tower, 4 windows, door, flag, 2 large and 3 small palm trees, 2 banana plants; embroidered in solid cord and back stitch, without hoop, as per embroidered design No. 15, filed with the Wage and Hour Division. Size: 4½" high, 6¼" wide	.663
16	Single hemstitching of linen towels, four threads in a bundle, thread drawing included (per dozen inches)	.163

SCHEDULE B—PIECE RATE SCHEDULE FOR THE HAND MADE STRAW GOODS INDUSTRY IN THE VIRGIN ISLANDS [1]

Design No.	Description of design	Piece rate based on hourly rate of 20 cents	Unit
	Hand-weaving straw braid from "bull palm":		
17	Natural color, 1" wide (splitting and weaving)	$0.041	Per yard of braid.
18	Natural and three colors (splitting, dyeing, and weaving)	.06	Do.
19	Hand-weaving straw braid from "silk palm"	$0.051	Per yard of braid.
	Beach hat (sewing):		
20	Stock No. 75	.253	Per hat.
21	Stock No. 76	.20	Do.
22	"Angela" hat, stock No. 80 (sewing)	.12	Do.
23	Cowgirl hat, stock No. 83 (sewing)	.20	Do.
24	Frilled hat, stock No. 84 (sewing)	.20	Do.
25	Scarlett hat, stock No. 85 (sewing)	.427	Do.
26	Garden hat, stock No. 86 (splitting, weaving and sewing)	1.11	Do.
27	Farmer hat, stock No. 87 (sewing)	.40	Do.
28	Child's bonnet, stock No. 90 (sewing)	.24	Do.
29	Jockey cap, stock No. 113 (sewing)	.20	Do.
30	Frenchman hat, 4½" crown, 3½" brim, "Silk palm" braid ½" wide (sewing)	1.00	Do.
	Hula skirt (splitting, dyeing, weaving, and sewing):		
31	Stock No. 108	.60	Per skirt.
32	Stock No. 109	.80	Do.
33	Stock No. 110	1.00	Do.
34	Handbag, stock No. 43 (splitting, weaving, and sewing)	.906	Per bag.
35	"Valentine" purse, stock No. 51 (weaving and sewing)	1.71	Per purse.
	WAC style bag (weaving and sewing):		
36	Plain stock No. 52	1.40	Per bag.
37	Embroidered, stock No. 52E	1.60	Do.
	Shopping bag (sewing):		
38	Stock No. 92	.20	Do.
39	Stock No. 93	.267	Do.
40	Stock No. 94	.307	Do.
41	Stock No. 96	.307	Do.
42	Stock No. 104	.60	Do.
43	"Eugenie" bag, stock No. 99 (sewing)	.253	Do.
	Shoulder bag (sewing):		
44	Stock No. 100	.20	Do.
45	Stock No. 101	.40	Do.
46	Thermos bag, stock No. 102 (sewing)	.20	Do.
47	Lunch bag, stock No. 103 (sewing)	.147	Do.
48	Knitting bag, cylindrical shape, 7" x 14", shoulder strap and cover (sewing)	.40	Do.
49	"Dorothy" handbag, stock No. 117 (splitting and weaving)	1.80	Do.
50	Children's "Mafolie" bag, stock No. 119 (splitting and weaving)	.147	Do.
51	Picnic basket, stock No. 3 (splitting, weaving and sewing)	.40	Per basket.
52	Hat box, stock No. 5 (splitting, weaving, and sewing)	1.40	Per box.
53	Sewing basket, stock No. 9 (splitting and weaving)	.20	Per basket.
	Wood basket (splitting, weaving, and sewing):		
54	Stock No. 31	.307	Do.
55	Stock No. 33	.40	Do.
	Floor mat (splitting, dyeing, weaving, and sewing):		
56	Stock No. 20	.28	Per mat.
57	Stock No. 23	.44	Do.
58	Stock No. 27	.746	Do.
	Hearth broom (tying leaves):		
59	Stock No. 120	.107	Per broom.
60	Stock No. 121	.147	Do.
61	Stock No. 121A	.253	Do.
62	Stock No. 121B	.307	Do.

[1] Piece rates based upon time tests conducted on products handled by the Virgin Islands Cooperative, Inc., of St. Thomas. The stock numbers are those used by the company.

SCHEDULE B—PIECE RATE SCHEDULE FOR THE HAND MADE STRAW GOODS INDUSTRY IN THE VIRGIN ISLANDS [1]—Continued

Design No.	Description of design	Piece rate based on hourly rate of 20 cents	Unit
	Round table mat, stock No. WR 1/5 (peeling and weaving):		
63	8 inches	$0.507	Per mat.
64	10 inches	.60	Do.
65	12 inches	.80	Do.
	Glass holder (peeling and weaving):		
66	Stock No. WR11	.307	Per holder.
67	Stock No. WR12	.453	Do.
68	Napkin ring, stock No. WR15 (peeling and weaving).	.253	Per ring.
69	Sewing basket, stock No. WR17 (peeling and weaving).	1.20	Per basket.
	Picnic basket (peeling and weaving):		
	Stock No. H-2:		
70	Open	2.80	Do.
71	Covered	3.40	Do.
	Stock No. H-3:		
72	Open	2.93	Do.
73	Covered	3.60	Do.
	Stock No. H-10:		
74	Open	3.07	Do.
75	Covered	3.80	Do.
	Stock No. H-11:		
76	Open	3.30	Do.
77	Covered	4.09	Do.
78	Hand weaving of straw table mats, 11" x 17", from ¼" strips, including the operations of stripping, weaving the body of the mat, weaving braid ½" to ¾" wide, and sewing the braid to the mat (stock No. 58).	.40	Per mat.

[1] Piece rates based upon time tests conducted on products handled by the Virgin Islands Cooperative, Inc., of St. Thomas. The stock numbers are those used by the company.

These amendments shall become effective July 31, 1958.

Signed at Washington, D. C., this 26th day of June 1958.

CLARENCE T. LUNDQUIST,
Acting Administrator.

[F. R. Doc. 58-5000; Filed, June 30, 1958; 8:50 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture

Subchapter C—Export Programs

[Amdt. 1]

PART 484—FEED GRAINS

SUBPART—FEED GRAIN EXPORT PROGRAM PAYMENT IN KIND (GR-368)

TERMS AND CONDITIONS

The Terms and Conditions of the Feed Grain Export Program Payment in Kind (GR-368) (23 F. R. 3226) are amended as follows:

1. Section 484.105 is amended by adding the words "of a quantity of feed grain" and "of the same quantity of feed grain" in the first and last sentences of paragraph (d) so that the paragraph shall read as follows:

(d) To be eligible for payment under this program, the exporter shall furnish documentary evidence of export of a quantity of feed grain as required in § 484.116, which has not been used, or will not subsequently be used as evidence of export of the same quantity of feed grain in connection with any other contract entered into pursuant to § 484.107 of this program or in connection with any other export program under which CCC has paid or has agreed to pay an export allowance, or in connection with any other export program which involves the sale of feed grains for export at prices which reflect any export allowance. Nothing herein shall be construed as precluding exportation of feed grain under this program from fulfilling sales under Purchase Authorizations pursuant to Public Law 480, 83d Congress. Documentary evidence of export of a quantity of feed grain submitted under § 484.127 in connection with purchases of feed grains from CCC may also be submitted to CCC as evidence of export of the same quantity of feed grain in connection with Applications for Feed Grain Export Payments.

2. Section 484.108 is amended by adding the words "except as provided in § 484.109" to the fourth sentence of paragraph (c) so that the sentence shall read as follows: "Moreover, if the exporter does not export the quantity of feed grain specified in the exporter's contract with CCC, except as provided in § 484.109, such breach shall give rise to liquidated damages."

3. Section 484.109 is hereby added as a new section to read as follows:

§ 484.109 *Quantity tolerance.* In the event an exporter exports or causes exportation in accordance with the requirements of § 484.108 of a net quantity of feed grain less than the net quantity provided in the exporter's contract with CCC, but not less than 95 percent of such quantity and submits a statement which establishes to the satisfaction of CCC that his failure to export the contract quantity is attributable to normal trade practices and not for the purpose of applying the quantity undershipped to a contract with CCC providing a higher export payment, he shall not be required to pay liquidated damages for failure to export the undershipped quantity. In the event, an exporter exports or causes exportation in accordance with the requirements of § 484.108 of a net quantity greater than the net quantfty provided in the exporter's contract with CCC, but not in excess of 105 percent of such quantity and submits a statement which establishes to the satisfaction of CCC that exportation of the excess quantity is attributable to normal trade practices and not for the purpose of obtaining a higher export payment rate on the excess quantity than would otherwise be applicable, he may include such quantity in his application for export payment and receive payment for the quantity overshipped at the same rate as provided in his contract with CCC.

4. Section 484.116 is amended as follows:

a. Amend paragraph (a) (3) to read as follows:

(3) One copy of a grain inspection certificate issued by an inspector licensed under the United States Grain Standards Act which is properly identified to each cargo or carlot indicated in the bill of lading, or other form of documentary evidence of export.

b. Add the following new paragraph (d):

(d) In case a single bill of lading or other documentary evidence of export covers more than the net quantity of feed grain which is applied against the exporter's contract with CCC, and such documentary evidence of export is to be used as evidence of export of such excess quantity in connection with a different contract with CCC under this program or under any other export program of CCC pursuant to which CCC has paid or agreed to pay an export allowance, each copy of such documentary evidence of export submitted pursuant to paragraph (a) of this section shall be accompanied by a statement certified by the exporter identifying all contracts with CCC to which the documentary evidence of export has been or will be applied and the quantity applicable to each contract.

5. Section 484.120 is amended by deleting paragraph (b) in its entirety.

6. Section 484.126 (a) is amended by deleting the words "except that when feed grain is delivered to a Gulf of Mexico port exportation must be from the same port."

7. Section 484.127 is amended as follows:

a. At the end of the first sentences in § 484.127 (a) (1) and (2) delete the words "and the P. L. 480, 83d Congress, Purchase Authorization number, if applicable."

b. Section 484.127 (a) (3) is amended to read as follows:

(3) One copy of a grain inspection certificate issued by an inspector licensed under the United States Grain Standards Act which is properly identified to each cargo or carlot indicated in the bill of lading, or other form of documentary evidence of export.

8. Section 484.137 is amended by changing the section reference therein from "484.116" to "484.117."

9. Section 484.143 is deleted in its entirety.

10. Section 484.150 is amended by inserting "Canada" between "Alaska" and "Hawaii" so that the amended section shall read as follows:

§ 484.150 *Eligible country.* "Eligible country" means any destination outside the continental limits of the United States, excluding Alaska, Canada, Hawaii or Puerto Rico, and also excluding (a) any country or area listed as Sub-Group A of Group R of the Comprehensive Export Schedule issued by the Bureau of Foreign Commerce, U. S. Department of Commerce unless a license for shipment or transshipment thereto has been obtained from such Bureau; (b) Macao unless specific license for shipment or transshipment thereto has been obtained from the Bureau of Foreign Commerce, U. S. Department of Commerce; or (c) Hong Kong in the case of

any commodity for which a specific license is required by regulations of the U. S. Department of Commerce under the Export Control Act of 1949, unless such specific license for shipment or transshipment thereto has been obtained from the Bureau of Foreign Commerce, U. S. Department of Commerce.

11. Section 484.151 is amended to read as follows:

§ 484.151 *Export and exportation.* "Exportation" and "export" means, except as hereinafter provided, a shipment from the continental United States destined to another area excluding Alaska, Hawaii and Puerto Rico. The feed grain so shipped shall be deemed to have been exported on the date which appears on the applicable on board ship ocean bill of lading, or if shipment from the continental U. S. is by truck or rail, the date the shipment clears United States Customs. If feed grain is lost, destroyed or damaged after loading on board an export ship, exportation shall be deemed to have been made as of the date of the on board ship ocean bill of lading or the latest date appearing on the loading tally sheet or similar documents if the loss, destruction or damage occurs subsequent to loading aboard ship but prior to issuance of on board ship ocean bill of lading.

(Note to Exporter: Since the export payment on any given quantity of feed grains is conditioned upon the timely exportation thereof to an eligible country, exporters may find it desirable to carry insurance on the full domestic value of feed grain against any loss which may occur prior to the feed grain leaving this country by rail or truck or prior to loading on the export vessel.)

(Sec. 5, 62 Stat. 1072; 15 U. S. C. 714c. Interpret or apply sec. 407, 63 Stat. 1051, as amended, sec. 201, 70 Stat. 1088; 7 U. S. C. 1427, 1851)

Issued this 27th day of June 1958.

[SEAL] WALTER C. BERGER,
Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 58-5057; Filed, June 30, 1958; 8:54 a. m.]

TITLE 7—AGRICULTURE

Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS [1]

MISCELLANEOUS AMENDMENTS

On June 3, 1958, a notice of proposed rule making was published in the FEDERAL REGISTER (23 F. R. 3815) regarding proposed amendments to existing regulations (7 CFR 52.1 to 52.87) governing the inspection and certification of processed fruits and vegetables, processed products thereof, and certain other food products.

After consideration of all relevant matters presented, including the proposal set forth in the aforesaid notice, the following amendments of the aforesaid existing regulations governing inspection and certification of processed fruits and vegetables, processed products thereof, and certain other processed food products are hereby promulgated pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., as amended; 7 U. S. C. 1621 et seq.).

1. In § 52.3 delete the definition of "Official device" and insert in lieu thereof the following:

Official device. "Official device" means a stamping appliance, branding device, stencil, printed label, or any other mechanically or manually operated tool that is approved by the Administrator for the purpose of applying any official mark or other identification to any product or the packaging material thereof; or any device approved and designated by the Administrator as a USDA official device for use as a color standard, defect guide, or other similar aid to interpret the United States Department of Agriculture grade standards and to facilitate conduct of the inspection service.

2. In § 52.53 *Approved identification,* add the following new paragraph:

(e) *Licensing and identification of certain official devices.* The Administrator may issue licenses permitting the manufacture, identification, distribution, and sale of any official device designated as a USDA color standard, defect guide or other similar aid under such terms and conditions as may be specified by the Administrator. Licenses shall be available to all persons meeting conditions prescribed by the Administrator, shall be nonexclusive, and shall be revocable for cause. No person shall manufacture, identify, distribute or sell any such official device except at the direction of or under license from the Administrator. Such official devices may be marked, tagged or otherwise designated with the prefix "USDA" together with other identifying words or symbols, as prescribed by the license.

For reasons hereinafter set forth it is hereby found and determined that good cause exists for making these revisions to the regulations effective immediately on publication in the FEDERAL REGISTER. Since publication of these revisions in the exact form that they appear herein in the FEDERAL REGISTER of June 3, 1958, as a notice of proposed rule making, no adverse comments or suggestions have been received concerning them. The nature of the provisions contained in the revision of the regulations is well known to all persons who have shown any interest therein and no preparation is required prior to their effective date. Packers and other interested parties are urging that the Department make provision for the manufacture of inspection aids and other official devices as provided for in this revision. Accordingly, it is impractical and contrary to the public interest to postpone the effective date of these revisions beyond the date of publication in the FEDERAL REGISTER.

Effective on publication in the FEDERAL REGISTER July 1, 1958.

(Sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624)

Dated: June 26, 1958.

[SEAL] FRANK E. BLOOD,
Acting Deputy Administrator,
Marketing Services.

[F. R. Doc. 58-5003; Filed, June 30, 1958; 8:50 a. m.]

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS [1]

MISCELLANEOUS AMENDMENTS

Pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087, as amended; 7 U. S. C. 1621 et seq.) for the provision of a service for the inspection and certification of the class, quality, and condition of agricultural products, including the assessment and collection of fees to cover the cost of such service, existing regulations (7 CFR 52.1 to 52.87) governing the inspection and certification of Processed Fruits and Vegetables, Processed Products Thereof, and Certain Other Processed Food Products are hereby revised as hereinafter set forth:

1a. Section 52.42 is hereby revised to read as follows:

§ 52.42 *Schedule of fees.* (a) Unless otherwise provided in a written agreement between the applicant and the Administrator, the fees to be charged and collected for any inspection service performed under the regulations in this part at the request of the United States, or any agency or instrumentality thereof, shall be at the rate of $5.00 per hour.

(b) Unless otherwise provided in this part, the fees to be charged and collected for any inspection service performed under this part shall be based on the applicable rates specified in this section to which may be added charges for such micro, chemical, and certain other special analyses, which may be requested by the applicant or required by the inspector to determine the quality or condition of the processed product, as are specified in § 52.47.

(1) *Canned or similarly processed fruits, vegetables, honey, and products thereof.*

[1] Among such other processed food products are the following: Honey; molasses, except for stockfeed; nuts and nut products, except oil; sugar (cane, beet, and maple); sirups (blended), sirups, except from grain; tea; cocoa; coffee; spices; condiments.

OFFICIALLY DRAWN SAMPLES

For each lot packed in containers of a volume not exceeding that of a No. 12 size can (603 x 812) except canned pineapple and canned pineapple juice inspected in Puerto Rico:

Minimum fee for 600 cases or less	[1] $10.00
For each additional 100 cases, or fraction thereof, in excess of 600 cases but not in excess of 10,000 cases	[1] 1.00
For each additional 100 cases, or fraction thereof, in excess of 10,000 cases	[1] .80

For each lot of canned pineapple and canned pineapple juice inspected in Puerto Rico:

The fee for each case of 24 containers or less	$0.015
The fee for each case of more than 24 containers	.020
The minimum fee for any lot	6.00

[1] However, the fee for any additional lots of 200 cases or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $7.50.

For each lot of honey packed in containers of a volume exceeding that of a No. 12 size can (603 x 812), the fee for sampling and inspecting the samples shall be in accordance with the following schedule:

(a) For sampling the honey, including travel time, per hour	$5.00
(b) For inspection—each sample unit	1.00
(c) For liquefying crystalized or partially crystalized honey for any one applicant at any one time—each group of 15 sample units or fraction thereof	5.00
(d) Minimum fee for any lot	10.00

UNOFFICIALLY DRAWN SAMPLES

For containers of a volume not exceeding that of a No. 3 size can (404 x 414):

Minimum fee for 4 containers or less	$5.00
For each additional container in excess of 4 containers	1.00

For containers of a volume exceeding that of a No. 3 size can (404 x 414), but not exceeding that of a No. 12 size can (603 x 812):

Minimum fee for 2 containers or less	$5.00
For each additional container in excess of 2 containers	2.50

(2) *Frozen or other similarly processed fruits, vegetables, and products thereof.*

OFFICIALLY DRAWN SAMPLES

For each lot other than frozen corn-on-the-cob:

Minimum fee for 10,000 pounds or less	[2] $10.00
For each additional 5,000 pounds or fraction thereof, in excess of 10,000 pounds but not in excess of 100,000 pounds	[2] 2.50

[2] However, the fee for any additional lots of 1,500 pounds or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $7.50.

OFFICIALLY DRAWN SAMPLES—Continued

For each additional 5,000 pounds, or fraction thereof, in excess of 100,000 pounds	[2] $2.00

For each lot of frozen corn-on-the-cob:

Minimum fee for 1,500 dozen ears or less	$10.00
For each additional 1,000 dozen ears, or fraction thereof, in excess of 1,500 dozen ears but not exceeding 15,000 dozen ears	[2] 2.50
For each additional 1,000 dozen ears, or fraction thereof, in excess of 15,000 dozen ears	[2] 2.00

UNOFFICIALLY DRAWN SAMPLES

Minimum fee for 2 sample units or less of any type or weight	$5.00
For each additional sample unit in excess of 2 sample units	2.50

[2] However, the fee for any additional lots of 250 dozen or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $7.50.

(3) *Dried fruits other than figs and dates.*

OFFICIALLY DRAWN SAMPLES

Each lot:

Minimum fee for 12,000 pounds or less	$10.00
For each additional 2,000 pounds, or fraction thereof, in excess of 12,000 pounds	1.00

UNOFFICIALLY DRAWN SAMPLES

Each sample unit	$5.00

(4) *Dried figs and dates.*

OFFICIALLY DRAWN SAMPLES

Each lot:

Minimum fee for 8,000 pounds or less	$10.00
For each additional 2,000 pounds, or fraction thereof, in excess of 8,000 pounds	2.50

UNOFFICIALLY DRAWN SAMPLES

Each sample unit	$5.00

(5) *Edible sugarcane molasses, sugarcane sirup, and refiners sirup.*

OFFICIALLY AND UNOFFICIALLY DRAWN SAMPLES

The total fee for sampling and inspection of samples shall be in accordance with the following schedule:

(a) For sampling the product, including travel time per hour	$5.00
(b) For inspecting—each sample	1.00
(c) Minimum fee for any lot	10.00

(6) *Coffee.*

OFFICIALLY AND UNOFFICIALLY DRAWN SAMPLES

The total fee for sampling and inspection of samples shall be in accordance with the following schedule:

(a) For sampling the coffee, including travel time, per hour	$5.00
(b) Green bean grading—each sample unit	5.00
(c) Complete inspection, green bean grading and cupping—each sample unit	7.50

(7) *Other processed food products.* The fee to be charged and collected for the inspection of any processed product not included in subparagraphs (1), (2), (3), (4), (5), and (6) of this paragraph shall be at the rate of $5.00 per hour for the time consumed by the inspector in making the inspection, including the time consumed in sampling by the inspector or licensed sampler: *Provided*, That, fees for sampling time will not be assessed by the office of inspection when such fees have been assessed and collected directly from the applicant by a licensed sampler.

b. Section 52.44 is hereby revised to read as follows:

§ 52.44 *Inspection fees when charges for sampling have been collected by a licensed sampler.* For each lot of processed products from which samples have been drawn by a licensed sampler and with respect to which the sampling fee has been collected by the licensed sampler, the fee to be charged for the inspection shall be 75 percent of the fee provided in this part applicable to the respective processed product: *Provided*, That, if the fee charged for the inspection service is based on the hourly rate of charge, the fee shall be at the rate of $5.00 per hour prescribed in this part.

c. Section 52.45 is hereby revised to read as follows:

§ 52.45 *Inspection fees when charges for sampling have not been collected by a licensed sampler.* For each lot of processed products from which samples have been drawn by a licensed sampler, and with respect to which the sampling fee has not been collected by the licensed sampler, the fee to be charged for the inspection shall be 75 percent of the fee as prescribed in this part, plus a reasonable charge to cover the cost of sampling as may be determined by the Administrator: *Provided*, That, if the fee charged is based on the hourly rate, the fee shall be at the rate of $5.00 per hour prescribed in this part, plus a reasonable charge to cover the cost of sampling, as determined by the Administrator.

d. Section 52.47 is hereby revised to read as follows:

§ 52.47 *Charges for micro, chemical, and certain other special analyses.* (a) The following charges shall be made for micro, chemical, and certain other special analyses which may be requested by the applicant or required by the inspector to determine the quality or condition of the processed product. When any of these analyses are made at the request of an applicant and are not in connection with an inspection to determine the quality or condition of the product, the listed fees shall be increased by 50 percent.

Type of analysis	For first analysis	For each additional analysis
Mold count	$2.00	$1.50
Worm larvae and insect fragment count	5.00	3.00
Fly egg and maggot count	3.00	1.50
Alcohol insoluble solids	5.00	3.00
Alcohol (distillation and specific gravity)	10.00	5.00
Ascorbic acid (vitamin C)	10.00	2.50
Total ash (carbonated or sulfated)	5.00	3.00
Ash, acid insoluble	5.00	3.00
Ash, water soluble or water insoluble	5.00	3.00
Ash, NaCl free (approximate method—total ash less NaCl)	10.00	5.00
Ash, NaCl free ($P_2O_5 \times 2$)	15.00	7.50
Catalase test	3.00	1.50
Crude fiber	15.00	7.50
Diastase test for honey (AOAC method)	7.50	5.00
Ether extract (crude fat)	10.00	5.00
Fat (acid hydrolysis)	10.00	5.00
Fiber (green and wax bean)	7.50	5.00
Iodine number	10.00	5.00
Moisture (air oven method)	3.00	3.00
Moisture (vacuum oven method)	3.00	3.00
Nitrogen or crude protein	10.00	5.00
Non-volatile ether extract	10.00	5.00
Oil, volatile	10.00	5.00
Oil of lemon with oil base (distillation method)	5.00	5.00
Phosphorous pentoxide (P_2O_5)	15.00	7.50
Potash (K_2O)	15.00	7.50
Recoverable oil	3.00	2.00
Peroxidase test (frozen vegetables)	5.00	2.50
Reducing sugars	15.00	7.50
Reducing sugars plus sucrose	20.00	15.00
Sucrose (direct polarization)	5.00	3.00
Sucrose (chemical methods)	20.00	15.00
Starch or carbohydrates (direct hydrolysis)	20.00	15.00
Sulphur dioxide (direct titration)	5.00	2.50
Sulphur dioxide (distillation method)	7.50	5.00
Sodium	12.50	5.00
Total solids (drying method)	3.00	3.00
Vanillin (colorimetric)	7.50	5.00
Volatile and non-volatile ether extract	10.00	5.00
Water extract	5.00	5.00
Water - insoluble - inorganic - residue (peanut butter)	7.50	5.00
Water - insoluble - inorganic - residue, filth analysis, and particle count (peanut butter)	15.00	10.00

(b) The following charges shall be made for analyses which are requested by an applicant and are not in connection with an inspection to determine the quality or condition of the product. When these analyses are made in connection with an inspection to determine the quality or condition of the product no fee shall be charged for the analyses.

Type of analysis	For first analysis	For each additional analysis
Brix readings (refractometric or spindle)	$2.50	$1.00
Brix readings (double dilution)	3.00	2.00
Total acidity (direct titration)	2.50	1.00
Free fatty acids	5.00	2.50
Salt (NaCl)—direct titration	2.50	1.00
Soluble solids (refractometric method)	2.50	1.00
Total solids (refractometric method)	2.50	1.00
Color determination of extracted honey	5.00	1.00
Color determination of sugarcane molasses or sugarcane sirup	5.00	1.50

e. Section 52.48 is hereby revised to read as follows:

§ 52.48 *When charges are to be based on hourly rate not otherwise provided for in this part.* When inspection is for condition only or when inspection services or related services are rendered and formal certificates are not issued or when the services rendered are such that charges based upon the foregoing sections would be inadequate or inequitable, charges may be based on the time consumed by the inspector in performance of such inspection service at the rate of $5.00 per hour.

f. Section 52.49 is hereby revised to read as follows:

§ 52.49 *Fees for score sheets.* If the applicant for inspection service requests score sheets showing in detail the inspection of each container or sample inspected and listed thereon, such score sheets may be furnished by the inspector in charge of the office of inspection serving the area where the inspection was performed; and such applicant shall be charged at the rate of $2.50 for each twelve sample units, or fraction thereof, inspected and listed on such score sheets.

g. Section 52.50 is hereby revised to read as follows:

§ 52.50 *Fees for additional copies of inspection certificates.* Additional copies of any inspection certificate other than those provided for in § 52.21, may be supplied to any interested party upon payment of a fee of $2.50 for each set of five (5) or fewer copies.

h. The text of § 52.53 (d) is hereby revised to read as follows:

(d) *Products not eligible for approved identification.* Processed products which have not been packed under continuous inspection as provided for in this part shall not be identified by approved grade or inspection marks (except honey and maple sirup which may bear such grade marks), but such products may be inspected on a lot inspection basis as provided in this part and identified by an authorized representative of the Department by stamping the shipping cases and inspection certificate(s) covering such lot(s) with an officially drawn sample mark similar in form and design to the example in Figure 9 of this section.

2. On March 22, 1958, the Director of the Bureau of the Budget issued a determination order pursuant to section 6 (a) of the act of August 8, 1956, popularly known as the Fish and Wildlife Act of 1956 (16 U. S. C. 742e) which provides, inter alia, "that the following functions relate primarily to the development, advancement, management, conservation, and protection of commercial fisheries and shall be deemed to be transferred to the Department of the Interior by that act * * *. All functions of the Department of Agriculture which pertain to fish, shellfish and any products thereof, now performed under the authority of title II of the act of August 14, 1946, popularly known as the Agricultural Marketing Act of 1946, as amended (7 U. S. C. 1621–1627), including but not limited to the development and promulgation of grade standards, the inspection and certification, and improvement of transportation facilities and rates for fish and shellfish and any products thereof." In accordance with this determination the said regulations governing inspection of processed fruits and vegetables and processed products thereof and certain other processed food products (7 CFR 52.1 to 52.87) are hereby further amended, as follows:

a. In footnote 1 which applies to the heading "Part 52—Processed Fruits and Vegetables, Processed Products Thereof, and Certain Other Processed Products,"[1] delete the words "fishery products, except oil."

b. In § 52.38 in the title of Table I delete the words "Fishery Products."

c. In § 52.38 in the title of Table II delete the words "Fishery Products."

Notice of proposed rule making, public procedure thereon, and postponement of the effective time of this document later than July 1, 1958 (see Section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.) are impracticable, unnecessary, and contrary to the public interest for the reasons that: (1) Legislation provides that the fees charged shall be reasonable and shall as nearly as possible cover the cost of the service rendered; (2) the cost of such service is peculiarly within the knowledge of the Department and the fees set forth herein are necessary to more nearly cover such cost including, but not limited to increased salaries to Federal employees, required by recent legislation (Pub. Law 462, 85th Cong., 2d Sess., approved June 20, 1958); (3) it is imperative that the increase in fees become effective with the commencement of the new fiscal year; and (4) additional time is not required in order for the industry to make preparation for compliance with this amendment.

(Sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624)

Dated: June 24, 1958, to become effective at 12:01 a. m., July 1, 1958.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 58-4962; Filed, June 30, 1958; 8:45 a. m.]

PART 68—REGULATIONS AND STANDARDS FOR INSPECTION AND CERTIFICATION OF CERTAIN AGRICULTURAL COMMODITIES AND PRODUCTS THEREOF

SCHEDULE OF FEES AND CHARGES FOR CERTAIN SERVICES

Section 68.42a of the regulations for inspection and certification of certain agricultural commodities and products thereof (7 CFR Part 68) promulgated under authority of the Agricultural Marketing Act of 1946, as amended (7 U. S. C. 1621 et seq.), is hereby revised to read as follows:

§ 68.42a *Fees and charges for inspections, reinspections, and appeal inspections of certain commodities and products.* The schedule in this section prescribes fees and charges for inspections under this part by authorized salaried employees of the Department.

(a) *Inspections for compliance with quality specifications.* (1) The fees set forth below are the minimum fees for the inspection for compliance with quality specifications, of the listed commodities and products in lots consisting of a carload quantity or less.

Commodity or product	Minimum fee per carload or less
Bakery products	$15.00
Barley products:	
Malt, brewers	24.00
Malt extract	24.00
Malted cereal sirup	27.50
Pearl barley	15.00
Breakfast cereals	15.00
Corn products:	
Corn grits	15.00
Corn meal	15.00
Corn sugar	14.00
Corn syrup	14.00
Dextrin	24.00
Dextrose	24.00
Feeds:	
Alfalfa meal and pellets	15.00
Bone meal	18.50
Bran	15.00
Brewers dried grains	15.00
Cracked corn	14.00
Cracked wheat	14.00
Distillers dried grains	15.00
Fish meal	15.00
Gluten feeds	15.00
Meat packing by-product feeds	18.50
Molasses (for feed)	15.00
Rolled barley	15.00
Oilseed meals	15.00
Oilseed cake and pellets	15.00
Shorts	15.00
Flours:	
Buckwheat	15.00
Prepared mix	18.50
Rye flour	14.00
Soy flour	18.50
Semolina	14.00
Whole wheat (Graham) flour	15.00
Wheat flour (all purpose)	18.50
Wheat flour (hard wheat)	18.50
Wheat flour (soft wheat)	15.00
Oils: [1]	
Castor oil	48.00
Corn oil	15.00
Cottonseed oil	18.50
Fish oils	18.50
Linseed oil, raw	30.00
Linseed oil, boiled	36.50
Salad oil	18.50
Soybean oil	18.50
Sunflower seed oil	15.00
Tung oil	36.50
Oleomargarine	18.50
Shortening, vegetable	28.00
Soaps:	
Laundry soap	30.00
Toilet soap	36.50
Scouring cleanser	24.00
Starch from grain	15.00
Wheat products:	
Macaroni	15.00
Noodles (all kinds)	22.50
Spaghetti	15.00
Vermicelli	15.00
Miscellaneous:	
Copra	14.00
Dough improver	15.00
Monosodium glutamate	18.50
Mustard seed (for processing)	14.00
Stearic acid	24.50
Sulfonated fats, oils and fatty acids	30.00
Tallow, inedible	30.00
Yeast, active dry	30.00
Yeast, nutritional	36.50

[1] Does not include tests for refining loss (see paragraph (c) of this section).

Other commodities and products assigned to the Grain Division: Fees based on the cost of $4.50 per hour plus overtime, travel, and per diem at rates in accordance with those prescribed in subparagraph (3) of this paragraph, and other items of expense, if any. (See also paragraph (g) of this section.)

(2) The minimum fees for the inspection for compliance with quality specifications of larger than carload lots of the commodities and products listed in subparagraph (1) of this paragraph, in warehouses or elsewhere, except in the case of bulk oils, will be computed at the carload rate, charging the carload fee for each 100,000 pounds or fraction thereof. Fees for larger than carload lots of oils in bulk such as storage tanks, tank barges, and steamships, shall be at the rate of 10 cents per 1,000 pounds for the first 500,000 pounds plus 5 cents per 1,000 pounds or portion thereof for that quantity, if any, in excess of 500,000 pounds in the lot. For the purposes of this paragraph the oil in each tank or other unit shall be considered a separate lot. Fees for larger than carload lots of oil in standard size drums in warehouses, on docks, or elsewhere shall be at the rate of 10 cents per 1,000 pounds. If more than one sample from a lot is drawn and analyzed, the extra cost of such analysis shall be included in the total charges. In no case shall the fee for any commodity or product under this paragraph be less than the minimum listed in this paragraph for a carload or less.

(3) The fees provided for in subparagraphs (1) and (2) of this paragraph cover sampling, testing (including laboratory tests required by the usual specifications), and certificating commodities and products for quality specifications during the regular tour of duty of the inspector, at points where inspectors are located. There will be added to the fees charged under those subparagraphs charges for overtime, if any, at the rate of $5.50 per hour, and additional fees in accordance with paragraph (c) of this section to cover laboratory tests other than those required by usual specifications. At points where no inspector is located, further charges will be made in accordance with paragraph (e) of this section to cover fees paid to licensed samplers for obtaining samples, and charges to cover standby time at the rate of $4.50 per hour, overtime at the rate of $5.50 per hour, per diem at the rate of $12.00 per day or quarter portion thereof, mileage at the rate of eight cents per mile for travel by automobile, and the cost of other travel, and other items of cost incurred in obtaining samples.

(b) *Special inspection services.* Except as provided in paragraph (g) of this section, special services under this part, such as inspecting commodities and products for condition, checkloading, and checkweighing commodities and products, examining containers for suitability for storing and shipping commodities and products, and similar services, will be charged for on the basis of the time consumed at the rate of $4.50 per hour during the regular hours of duty and $5.50 per hour for overtime, plus cost of travel, and per diem, at rates in accordance with those prescribed in paragraph (a) (3) of this section, and other items of expense incurred in furnishing the service. If a laboratory test or grade factor analysis is required in connection with the inspection for condition of commodities and products, the fee for such test or analysis shall be in accordance with the applicable fee under paragraph (c) of this section and shall be included as an item of expense in computing the total cost of the service.

(c) *Special tests and grade factor analyses.* Fees for the inspection of commodities and products to determine one or more factors of quality covered by specifications when not inspected for compliance with complete quality specifications, or involving laboratory tests other than those required by the usual specifications, or tests for one or more factors of grade when not inspected for grade, will be computed as follows:

(1) Fee to cover the cost of sampling on the basis of time at $4.50 per hour, plus overtime, per diem and travel expense, if any, at rates in accordance with those prescribed in paragraph (a) (3) of this section, with a minimum of $2.00 per sample;

(2) Fee for certification and record, $1.00 for each certificate issued; plus

(3) Fee for laboratory tests, or grade factor analyses, as listed below:

(i) Fees for laboratory tests: [1]

Kind of test	Fee per sample
Alcohol insoluble (in soap)	$2.75
Anhydrous soap	6.75
Ash	1.50
Bleached color (of oil)	2.75
Bread-baking test	15.75
Break test (of oil)	5.50
Bromate (in soy flour)	4.50
Calcium	11.25
Cold test (of oil)	1.50
Color (of oil)	1.50
Dextrose	2.75
Diastatic activity (of flour)	5.50
Diastatic activity (of malt products)	6.75
Egg solids	5.50
Enrichment (quick test for flour)	1.25
Fat (by acid hydrolysis)	6.75
Fat (by extraction)	2.25
Fat acidity	2.75
Fiber, crude	5.75
Filth	9.00
Flash point (of oil)	2.25
Free alkali in soap	2.75
Free fatty acids (in oil)	1.50
Foots (in oil)	1.75
Heating test (oil and shortenings)	1.50
Impurities, insoluble, in oil	2.75
Insect fragments (in flour)	11.25
Iodine number (of oil)	2.75
Iodine number (refractometric, applicable only to oils of flaxseed and soybeans when oil content is also determined)	1.50
Iron	11.25
Keeping time (of shortening)	5.75
Melting point (Wiley)	2.75
Milling (wheat to flour)	10.00
Moisture (distillation)	2.75
Moisture (oven)	1.50
Monoglyceride	6.75
Oil content of oil seeds	2.25
pH (hydrogen ion concentration)	1.50
Phosphorus (in feeds)	8.50
Pressuremeter value	2.75
Protein	2.75
Reducing sugars	2.50
Refining loss (of oils)	11.25
Refractive index	1.50
Riboflavin	9.00

[1] When a laboratory test for any factor or factors is made on a specific moisture basis or on a moisture free basis the fee for oven moisture determination shall be added to the fee for such test.

Kind of test	Fee per sample
Rope spore count (in yeast)	$12.25
Salt (extraction)	2.75
Salt (in soap)	2.25
Saponification number	2.75
Sieve test	1.50
Smoke point	2.25
Specific gravity	2.75
Thiamine	9.00
Titer test	5.75
Unsaponifiable matter (of oil)	9.00
Vitamin A (in oil)	8.50
Water insolubles (in soap)	4.50
Water absorption (soy flour)	1.50
Water-soluble protein	5.75

(ii) Fees for grade factor analyses: For each grade factor analysis such as test weight, moisture, damage, heat damage, splits, cracked kernels, other grains, mixture of classes, foreign material, or dockage, as defined in any official U. S. Standards, the fee shall be 50 cents, with a minimum of $2.00 for each sample analyzed, including fee for certification and record.

(iii) The laboratory tests and grade factor analyses listed in subdivisions (i) and (ii) of this subparagraph are those most commonly required in the inspection of commodities and products covered by this schedule. The fees for laboratory tests or factor analyses not listed in said paragraphs will be based on the cost at $4.50 per hour.

(d) *Reinspection and appeal inspection fees and charges.* The fees and charges for reinspections, and for appeal inspections for which a charge is to be made under § 68.44, with respect to commodities and products covered by this schedule, shall be the same as those for inspection of such commodities and products.

(e) *Licensed samplers' fees and charges.* Fees and charges for the drawing of samples of commodities and products covered by this schedule by a licensed sampler shall be in accordance with the terms of the agreement under which the sampling is performed. Information as to the applicable fees and charges in specific cases may be obtained from the Director, Grain Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C.

(f) *Charges for extra copies of certificates.* The original and not more than four copies of a certificate for any commodity or product covered by this schedule may be issued to the applicant for inspection, or on his order, without extra charge. When more copies are desired, they will be furnished for a fee of 25 cents per copy, provided the request for such extra copies is made at the time of application for inspection; otherwise the charge will be $1.00 for one to four extra copies and 25 cents for each copy in excess of four.

(g) *Certain commodities and inspections excepted.* (1) This schedule does not include fees and charges for the inspection of beans, hay, straw, lentils, peas, and rice for grade; hops for content of seeds, leaves, and stems, and for aphid infestation; and seeds for origin, germination and purity. Information regarding the applicable fees and charges for the inspection of these commodities may be obtained from the Director, Grain Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C.

(2) This schedule does not apply to service under a cooperative agreement which contains provisions for fees and charges inconsistent herewith.

Notice of proposed rule making, public procedure thereon, and postponement of the effective time of this document later than July 1, 1958 (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.) are impracticable, unnecessary, and contrary to the public interest for the reasons that: (1) Legislation provides that the fees charged shall be reasonable and shall as nearly as possible cover the cost of the service rendered; (2) the cost of such service is peculiarly within the knowledge of the Department and the fees set forth herein are necessary to more nearly cover such cost, including but not limited to increased salaries to Federal employees, required by recent legislation (Pub. Law 462, 85th Cong., 2d Sess., approved June 20, 1958); (3) it is imperative that the increase in fees become effective with the commencement of the new fiscal year; and (4) additional time is not required in order for the industry to make preparation for compliance with this amendment.

The foregoing schedule shall become effective at 12:01 a. m. July 1, 1958, with respect to all services thereafter rendered under 7 CFR Part 68, as amended, for the commodities and products covered by the schedule.

(Secs. 203, 205, 60 Stat. 1087, 1090, as amended, 69 Stat. 553, 68 Stat. 966; 7 U. S. C. 1622, 1624)

Done at Washington, D. C., this 25th day of June 1958.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 58-4969; Filed, June 30, 1958; 8:45 a. m.]

PART 160—REGULATIONS AND STANDARDS FOR NAVAL STORES

CHANGES IN FEES FOR ANALYSIS, INSPECTION AND CERTIFICATION OF NAVAL STORES

Pursuant to section 4 of the Naval Stores Act (7 U. S. C. 94) and sections 203 and 205 of the Agricultural Marketing Act of 1946 (7 U. S. C. 1622, 1624), it is hereby ordered:

1. Section 160.201 of the regulations for naval stores (7 CFR 160.201) is amended to read as follows:

§ 160.201 *Fees generally for field inspection and certification of naval stores and drum containers of rosin.* Except as provided in § 160.204, the following fees shall be paid to the United States for the field inspection and certification of naval stores and drum containers of rosin, not conducted under a cooperative agreement and where laboratory analysis or testing is not required:

(a) *Inspections by licensed inspectors at eligible processing plants.* (1) Rosin (grading and incidental certification as to class, condition and weight).

(i) In durms (see Note 1)	per drum	$0.055
(ii) In 100 pound bags (see Note 1)	per bag	.01
(iii) In tank cars	per car	3.00
(iv) In tank trucks	per truck	1.50

(2) Turpentine (grading and incidental certification as to class, condition and volume).

(i) In 55 gallon drums	per drum	.08
(ii) In tank cars or trucks	per unit of 100 gallons	.05
(iii) In bulk for delivery to tank steamer	per unit of 100 gallons	.08

(b) *Inspections by regularly employed, salaried Federal inspectors.* (1) Rosin.

(i) Grading and weighing at concentration and storage yards	per drum	$0.16
(ii) Irregular inspection and grading at distillation or processing plans—up to 400 drums	per drum	.16
—all over 400 drums	do	.10
(iii) Weighing at concentration and storage yards, subsequent to grading	per drum	.10
(iv) Examination of the external or internal appearance and condition of filled rosin drums, and of the rosin contained therein	See Note 2 and § 160.204	
(v) Re-certification under U. S. Certificate of rosin moving in commerce	per drum	$0.01

(2) Turpentine (inspection and certification as to kind, condition, volume, etc.).

(i) In drums of 55 gallons	per drum	$0.12
(ii) In tank cars or trucks	per unit of 100 gallons	.10
(iii) For bulk delivery to tank steamer	per unit of 100 gallons	.08

NOTE 1. When the number of drums and bags inspected and certified at any plant during any calendar month is equivalent to a total of 2,400 or more drums (counting five bags as equivalent to one drum), the fee shall be computed at the rate of four and one-half (4½) cents per drum and eight-tenths cent per bag certified. For quantities less than the equivalent of 2,400 drums, the fee shall be computed at the prescribed rates of five and one-half (5½) cents per drum and one cent per bag, provided that the amount so computed shall not exceed $108.00.

NOTE 2. The inspection or related examination of containers of rosin and their contents under Section B (1) (iv) shall be performed only after the inspector or the Chief of the Naval Stores Branch has been advised regarding the location, nature, scope, and purpose of the service desired, and the charge to be made therefor has been submitted to and accepted by the requesting person.

2. Section 160.202 of the regulations for naval stores (7 CFR 160.202) is amended to read as follows:

§ 160.202 *Fees generally for laboratory analysis and testing.* Except as provided in § 160.204, the following fees shall be paid to the United States for laboratory analysis and testing of naval stores, when not performed in the conduct of a cooperative agreement with respect to such products:

(a) *Rosin and turpentine.* (See Note 3). (1) Comprehensive analysis to determine purity, specification compliance, or other chemical and physical properties related thereto:

(i) Single sample	$25.00
(ii) Two or more samples analyzed at same time, per sample	20.00

(2) Limited testing to determine kind, grade, or other factors related to quality or utility:

(i) Single sample:	
(a) Rosin	$7.00
(b) Turpentine	5.00
(ii) Two or more samples tested at same time:	
(a) Rosin, per sample	5.00
(b) Turpentine, per sample	4.00

NOTE 3. The analysis and testing of rosin involves many different types of laboratory procedures, requiring variable time for performance, and including other cost factors. The charge for such analysis and testing will depend on the type and extent of the work required to supply the information desired by the interested person requesting the service. When it appears that the charges indicated in this section will not defray the costs of making the tests required, the interested person shall be so informed before any work is performed and will be supplied with a cost estimate of the actual charges to be made. See also § 160.204.

3. Section 160.204 of the regulations for naval stores (7 CFR 160.204) is amended by changing the title and the last sentence thereof to read as follows:

§ 160.204 *Fees for extra cost and hourly rate service.* * * * The charge for time so spent shall be computed at the rate of $5.00 per hour for laboratory work, and $4.50 per hour for field inspection work.

Notice of proposed rule making, public procedure thereon, and postponement of the effective time of this document later than July 1, 1958 (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.) are impracticable, unnecessary, and contrary to the pubic interest for the reasons that: (1) Legislation provides that the fees charged shall be reasonable and shall as nearly as possible cover the cost of the service rendered; (2) the cost of such service is peculiarly within the knowledge of the Department and the fees set forth herein are necessary to more nearly cover such cost, including but not limited to increased salaries to Federal employees required by recent legislation (Pub. Law 462, 85th Cong. 2d Sess., approved June 20, 1958); (3) it is imperative that the increase in fees become effective with the commencement of the new fiscal year; and (4) additional time is not required in order for the industry to make preparation for compliance with this amendment.

The foregoing amendments to §§ 160.201, 160.202, and 160.204 of the naval stores regulations shall become effective on July 1, 1958, with respect to services rendered on or after that date.

(Sec. 4, 42 Stat. 1236, 7 U. S. C. 94; sec. 205, 60 Stat. 1090, 7 U. S. C. 1624. Interpret or apply sec. 203, 60 Stat. 1087, 7 U. S. C. 1622)

Done at Washington, D. C., this 25th day of June 1958.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Agricultural Marketing Service.

[F. R. Doc. 58-4970; Filed, June 30, 1958; 8:45 a. m.]

Chapter III—Agricultural Research Service, Department of Agriculture

PART 354—OVERTIME SERVICES RELATING TO IMPORTS AND EXPORTS

OVERTIME, NIGHT, AND HOLIDAY INSPECTION AND QUARANTINE ACTIVITIES AT BORDER, COASTAL, AND AIRPORTS

Section 354.1 of Part 354, Title 7, Code of Federal Regulations, is further amended to read as follows:

§ 354.1 *Overtime work at border ports, seaports, and airports.* (a) Any person, firm, or corporation having ownership, custody or control of plants, plant products, or other commodities or articles subject to inspection, certification, or quarantine under this chapter, and who requires the services of an employee of the Plant Quarantine Division on a holiday or at any other time outside the regular tour of duty of such employee, shall sufficiently in advance of the period of overtime request the Division inspector in charge to furnish inspection, quarantine or certification service during such overtime period, and shall pay the Government therefor at the rate of $5.40 per man-hour per employee as follows: A minimum charge of two hours shall be made for any unscheduled overtime duty performed by an employee on a day when no work was scheduled for him or which is performed by an employee on his regular work day beginning either at least one hour before his scheduled tour of duty or at least one hour after he has completed his scheduled tour of duty, and has left his place of employment. In addition, each period of unscheduled overtime work which requires an employee to perform additional travel for which he would otherwise not be compensated, and each period of holiday duty, may include a commuted travel time period, not in excess of three hours. The amount of this period shall be prescribed in administrative instructions to be issued by the Director of the Plant Quarantine Division for the ports, stations, and areas in which the employees are located, and shall be established as nearly as may be practicable to cover the time necessarily spent in reporting to and returning from the place at which the employee performs such overtime duty if such travel is performed solely on account of such overtime duty. It will be administratively determined from time to time which days constitute holidays.

(b) The Division inspector in charge, in honoring a request to furnish inspection, quarantine, or certification service, shall assign employees to such overtime or holiday duty with due regard to the work program and availability of employees for such duty.

The purpose of this amendment is to increase the hourly rate for overtime services from $5.00 to $5.40 commensurate with salary increases provided in the Federal Employees Salary Increase Act of 1958 (Public Law 85-462).

The purpose of this amended section is to prescribe conditions under which a minimum charge may be made for unscheduled overtime duty, and to provide for a commuted travel time period for any such overtime duty involving additional and otherwise uncompensated travel. Determination of these conditions and travel time period depends entirely upon facts within the knowledge of the Department of Agriculture. It is to the benefit of the public that this amendment be made effective at the earliest practicable date. Accordingly, pursuant to the provisions of section 4 of the Administrative Procedure Act (60 Stat. 238), it is found upon good cause that notice and public procedure on this amendment are impracticable, unnecessary, and contrary to the public interest and good cause is found for making this amendment effective less than thirty days after publication.

The foregoing amendment shall be effective June 29, 1958.

(64 Stat. 561; 5 U. S. C. 576)

Done at Washington, D. C., this 27th day of June 1958.

[SEAL] F. H. SPENCER,
Acting Administrator,
Agricultural Research Service.

[F. R. Doc. 58-5045; Filed, June 27, 1958; 2:29 p. m.]

PART 992—IRISH POTATOES GROWN IN WASHINGTON

LIMITATION OF SHIPMENTS

§ 992.313 *Limitation of shipments*—(a) *Findings.* (1) Pursuant to Marketing Agreement No. 113 and Order No. 92 (7 CFR Part 992), regulating the handling of Irish potatoes grown in the State of Washington, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of the recommendations and information submitted by the State of Washington Potato Committee, established pursuant to said marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice and engage in public rule making procedure, and that good cause exists for not postponing the effective date of this section for 30 days or any other period beyond the date specified (5 U. S. C. 1001 et seq.) in that (i) the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, (ii) more orderly marketing in the public interest, than would otherwise prevail, will be promoted by regulating the shipment of potatoes, in the manner set forth below, on and after the effective date of this section, (iii) compliance with this section will not require any special preparation on the part of handlers which cannot be completed by the effective date, (iv) a reasonable time is permitted under the circumstances for

such preparation, and (v) information regarding the committee's recommendations has been made available to producers and handlers in the production area.

(b) *Order.* (1) Except as otherwise provided in this section, during the period from June 30, 1958, through May 31, 1959, no handler shall ship potatoes of any variety unless such potatoes are "fairly clean" and (i) if they are of the round varieties (including, but not limited to, Kennebec, Irish Cobbler, Bliss Triumph, and Pontiac varieties), such potatoes meet the requirements of the U. S. No. 2, or better, grade, 1⅞ inches minimum diameter, and (ii) if they are of the long varieties (including, but not limited to, White Rose, Russet Burbank, and Early Gem varieties), such potatoes meet the requirements of the U. S. No. 2, or better, grade, and are of a weight not less than 5 ounces: *Provided*, That potatoes of the U. S. Commercial, or better, grade, may be shipped if they are 2 inches minimum diameter or 4 ounces minimum weight, as such terms, grades, and sizes are defined in the United States Standards for Potatoes (§§ 51.1540 to 51.1559 of this title), including the tolerances set forth therein.

(2) Except as otherwise provided in this section, during the period from June 30, 1958, through May 31, 1959, no handler shall ship (i) any lot of potatoes of the round varieties (including, but not limited to, Kennebec, Irish Cobbler, Bliss Triumph, Pontiac varieties) if more than 20 percent of the potatoes in such lot have more than one-half of the skin missing or "feathered," as such terms are used in the said United States Standards, or (ii) any lot of potatoes of the long varieties (including, but not limited to, White Rose, Russet Burbank, and Early Gem varieties) if such potatoes are more than "moderately skinned," which means that not more than 10 percent of the potatoes in such lot have more than one-half of the skin missing or "feathered," as such terms are used in the said United States Standards for Potatoes.

(3) Each handler may ship up to, but not exceed, 5 hundredweight of potatoes per day without regard to the inspection and assessment requirements of this part, but this exception shall not apply to any portion of a shipment of over 5 hundredweight of potatoes.

(4) Limitations set forth in subparagraphs (1) and (2) of this paragraph shall not be applicable to shipments of potatoes for any of the following purposes: (i) Certified seed; (ii) livestock feed; (iii) starch; (iv) distribution by relief agencies, or consumption by charitable institutions; (v) manufacture or conversion into dehydrated potato products, canned products, or frozen products; (vi) export; or (vii) potato chips.

(5) Each handler making any shipments of potatoes for manufacture or conversion into dehydrated potato products, canned products, or frozen products, or for export, or for potato chips pursuant to subparagraph (4) of this paragraph shall: (i) First apply to the committee for and obtain a Certificate of Privilege to make such shipments; (ii) pay assessments on such shipments except shipments for canning and freezing; (iii) have such shipments inspected except shipments for canning and freezing; (iv) upon request by the committee furnish reports of each shipment made pursuant to each Certificate of Privilege; (v) at the time of applying to the committee for a Certificate of Privilege furnish the committee with a receiver's or buyer's certification that the potatoes handled under the Certificate of Privilege are to be used only for the purpose stated therein and that he will complete and return to the committee such periodic receivers' reports that the committee may require; (vi) mail to the office of the committee a copy of the bill of lading for each shipment made under the Certificate of Privilege promptly after date of such shipment; (vii) before diverting any such shipment to another receiver or buyer, apply to the committee for, and obtain, a new Certificate of Privilege authorizing such diversion and such handler shall also comply with the requirements prescribed by subdivisions (iv), (v), and (vi) of this subparagraph with respect to such diverted shipment.

(6) The terms used in Marketing Agreement No. 113 and Order No. 92 shall, when used in this section, have the same meaning as when used in said marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 25, 1958, to become effective June 30, 1958.

[SEAL] FLOYD F. HEDLUND,
Deputy Director,
Fruit and Vegetable Division.

[F. R. Doc. 58-4981; Filed, June 30, 1958; 8:46 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

Subchapter D—Exportation and Importation of Animals and Animal Products

PART 97—OVERTIME SERVICES RELATING TO IMPORTS AND EXPORTS

OVERTIME, NIGHT AND HOLIDAY INSPECTION AND QUARANTINE ACTIVITIES AT BORDER, COASTAL AND AIRPORTS

Pursuant to the authority conferred by the Act of August 28, 1950 (64 Stat. 561; 5 U. S. C. 576) § 97.1 of Part 97, Title 9, of the Code of Federal Regulations is further amended to read as follows:

§ 97.1 *Overtime work at border ports, seaport, and airports.* Any person, firm, or corporation having ownership, custody or control of animals, animal byproducts, or other commodities subject to inspection, certification, or quarantine under this subchapter and Subchapter F of this chapter, and who requires the services of an employee of the Animal Inspection and Quarantine Division on a holiday, or at any other time outside the regular tour of duty of such employee, shall sufficiently in advance of the period of overtime request the Division inspector in charge to furnish inspection, certification or quarantine service during such overtime period and shall pay the Administrator of the Agricultural Research Service at the rate of $5.40 per man hour per employee as follows: A minimum charge of two hours shall be made for any unscheduled overtime duty performed by an employee on a day when no work was scheduled for him or which is performed by an employee on his regular work day beginning either at least one hour before his scheduled tour of duty or at least one hour after he has completed his scheduled tour of duty, and has left his place of employment. In addition, each such period of unscheduled overtime work which requires an employee to perform additional travel for which he would otherwise not be compensated, and each period of holiday duty, may include a commuted travel time period, not in excess of three hours. The amount of this period shall be prescribed in administrative instructions to be issued by the Director of the Animal Inspection and Quarantine Division for the ports, stations, and areas in which the employees are located, and shall be established as nearly as may be practicable to cover the time necessarily spent in reporting to and returning from such overtime duty if such travel is performed solely on account of such overtime duty. It will be administratively determined from time to time which days constitute holidays.

Purpose. The purpose of this amendment is to increase the hourly rate for overtime services from $5.00 to $5.40 commensurate with salary increases provided in the Federal Employees Salary Increase Act of 1958 (Public Law 85-462). It is to the benefit of those who require such overtime services, as well as the public generally, that this amendment be made effective at the earliest practicable date. Accordingly, pursuant to the provisions of section 4 of the Administrative Procedure Act (60 Stat. 238), it is found upon good cause that notice and public procedure on this amendment are impracticable, unnecessary, and contrary to the public interest, and good cause is found for making this amendment effective less than 30 days after publication.

Effective Date. The foregoing amendment shall be effective June 29, 1958.

(64 Stat. 561; 5 U. S. C. 576)

Done at Washington, D. C., this 27th day of June 1958.

[SEAL] F. H. SPENCER,
Acting Administrator,
Agricultural Research Service.

[F. R. Doc. 58-5044; Filed, June 27, 1958; 2:29 p. m.]

TITLE 26—INTERNAL REVENUE, 1954

Chapter I—Internal Revenue Service, Department of the Treasury

[T. D. 6299]

Subchapter C—Employment Taxes

PART 39—MONTHLY RETURNS AND PAYMENT OF EMPLOYMENT TAXES

Subchapter D—Miscellaneous Excise Taxes

PART 149—MONTHLY RETURNS AND PAYMENT OF EXCISE TAXES

Subchapter F—Procedure and Administration

PART 301—PROCEDURE AND ADMINISTRATION

On May 6, 1958, notice of proposed rule making was published in the FEDERAL REGISTER (23 F. R. 3004) with respect to regulations relating to monthly returns and payment of employment taxes and excise taxes, and to separate accounting for certain collected taxes pursuant to section 7512 of the Internal Revenue Code of 1954, as added by the act of February 11, 1958 (Public Law 85-321, 72 Stat. 5). After consideration of all such relevant material as was presented by interested persons regarding the rules proposed, the regulations as so published are hereby adopted as set forth below, subject to the following change.

Paragraph (c) of § 301.7512-1 is revised to read as follows:

(c) *Trust fund account.* The separate bank account referred to in paragraph (b) of this section shall be established under the designation, "(Name of person required to establish account), Trustee, Special Fund in Trust for U. S. under Sec. 7512, I. R. C.". The taxes deposited in such account shall constitute a fund in trust for the United States payable only to the Internal Revenue Service on demand by the trustee.

[SEAL] RUSSELL C. HARRINGTON,
Commissioner of Internal Revenue.

Approved: June 27, 1958.

NELSON P. ROSE,
Acting Secretary of the Treasury.

PART 39—MONTHLY RETURNS AND PAYMENT OF EMPLOYMENT TAXES

PARAGRAPH 1. The following regulations, relating to monthly returns and payment of certain employment taxes imposed by subtitle C of the Internal Revenue Code of 1954, are hereby prescribed under those administrative provisions of subtitle F of such Code which are applicable to such taxes:

Sec.
39.1-1 Introduction.
39.1-2 Monthly tax returns.
39.1-3 Payment of tax.
39.1-4 Information returns or statements.
39.1-5 Extensions of time for filing information returns.
39.1-6 Application of regulations.

AUTHORITY: §§ 39.1-1 to 39.1-6 issued under sec. 7805, 68A Stat. 917; 26 U. S. C. 7805.

§ 39.1-1 *Introduction.* (a) The purpose of the regulations in this part is to provide rules for (1) the filing by employers, under certain circumstances, of monthly returns of employment taxes in lieu of quarterly returns, (2) the payment of the taxes required to be reported on such monthly returns, (3) the filing of quarterly information returns disclosing information similar to the information called for in Schedule A of Form 941, Form 941PR, or Form 941VI, and (4) the filing of Forms W-3 or similar statements, together with the district director's copies of Forms W-2, by employers who are required to file such monthly returns.

(b) The terms used in the regulations in this part have the same meaning as when used in the Employment Tax Regulations (Part 31 of this chapter), and as when used in Regulations 120 (26 CFR (1939) Part 406), and Regulations 128 (26 CFR (1939) Part 408), whichever is appropriate, to the extent such Regulations 120 and 128 are not superseded by such Employment Tax Regulations.

§ 39.1-2 *Monthly tax returns*—(a) *Requirement.* (1) The provisions of this section are applicable in respect of the taxes reportable on Form 941, Form 941PR, or Form 941VI pursuant to § 406.601 of Regulations 120 (26 CFR (1939) 406.601) or § 408.601 of Regulations 128 (26 CFR (1939) 408.601). An employer who is required by such § 406.601 or § 408.601 to make quarterly returns on any such form shall, in lieu of making such quarterly returns, make returns of such taxes in accordance with the regulations in this part if he is so notified in writing by the district director. The district director may so notify any employer (i) who, by reason of notification as provided in § 301.7512-1 of this chapter (Regulations on Procedure and Administration), is required to comply with the provisions of such § 301.7512-1, or (ii) who has failed to (*a*) make any such return on Form 941, Form 941PR, or Form 941VI, (*b*) pay tax reportable on any such form, or (*c*) deposit any such tax pursuant to regulations relating to section 6302 (c) of the Code, at the time and in the manner prescribed by applicable regulations. Every employer so notified by the district director shall make a return for the calendar month in which the notice is received and for each calendar month thereafter (whether or not wages are paid in any such month) until he has filed a final return or is required to make quarterly returns pursuant to notification as provided in paragraph (b) of this section. However, if the notice provided for in this subparagraph is received after the close of the first month of a calendar quarter, the first return under this section shall be made for the period beginning with the first day of such quarter and ending with the last day of the month in which the notice is received.

(2) Each return required under this section shall be made on the form prescribed for making the return which would otherwise be required of the employer under the provisions of § 406.601 of Regulations 120 (26 CFR (1939) 406.601) or § 408.601 of Regulations 128 (26 CFR (1939) 408.601), except that, if some other form is furnished by the district director for use in lieu of such prescribed form, the return shall be made on such other form.

(3) Each return required under this section shall be filed on or before the fifteenth day following the period for which it is made. No extension of time for filing such return may be granted by the district director.

(b) *Termination of requirement.* The district director, in his discretion, may notify the employer in writing that he shall discontinue the filing of monthly returns under this section. If the employer is so notified, the last month for which a return shall be made under this section is the last month of the calendar quarter in which such notice of discontinuance is received. Thereafter, the employer shall make quarterly returns in accordance with the provisions of § 406.601 of Regulations 120 (26 CFR (1939) 406.601) or § 408.601 of Regulations 128 (26 CFR (1939) 408.601).

§ 39.1-3 *Payment of tax.* (a) The taxes required to be reported on each return required pursuant to § 39.1-2 are due and payable to the district director at the time prescribed in paragraph (a) (3) of § 39.1-2 for filing such return.

(b) The provisions of paragraph (b) of § 406.606 of Regulations 120 (26 CFR (1939) 406.606) and of paragraph (b) of § 408.607 of Regulations 128 (26 CFR (1939) 408.607), relating to deposits of taxes pursuant to section 6302 (c) of the Internal Revenue Code of 1954, do not apply to taxes for the month in which the employer receives notice from the district director that returns are required under § 39.1-2, or for any subsequent month for which such a return is required.

§ 39.1-4 *Information returns or statements*—(a) *Federal Insurance Contributions Act.* (1) Every employer who is required under § 39.1-2 to make a return of tax under the Federal Insurance Contributions Act for any period within a calendar quarter shall make an information return for such calendar quarter. The information reported on such return shall include, with respect to each employee to whom the employer pays wages as defined in the Federal Insurance Contributions Act, the account number of the employee, the employee's name, the total amount of such wages paid by the employer to the employee during the calendar quarter, and such other information as may be called for on the form provided for making such return.

(2) Each return required under subparagraph (1) of this paragraph shall be made on Schedule A of Form 941, or the equivalent schedule of Form 941PR or Form 941VI, except that, if some other form or schedule is furnished by the dis-

trict director for the purpose of making the return required by subparagraph (1) of this paragraph, the return shall be made on such other form or schedule.

(3) Each information return required under this paragraph shall be filed on or before the fifteenth day following the calendar quarter for which it is made, except that, if a tax return under § 39.1–2 is made as a final return for a period ending prior to the last day of a calendar quarter, the information return shall be filed on or before the fifteenth day following the period for which the tax return is filed.

(b) *Income tax withheld from wages.* (1) Every employer who is required under § 39.1–2 to make a return of income tax withheld from wages for a period ending December 31, or for any period for which such return is made as a final return, shall make an information statement for the calendar year which includes such period.

(2) Each information statement required under subparagraph (1) of this paragraph shall be made on Form W–3, except that, if some other form is furnished by the district director for use in lieu of Form W–3, the information statement shall be made on such other form. The information statement shall be accompanied by the district director's copy of each withholding statement on Form W–2 required to be furnished by the employer with respect to wages paid during the calendar year (as well as such copy of each corrected statement for a prior year).

(3) Each information statement required by this paragraph shall be filed on or before January 31 following the calendar year, except that, if a return under § 39.1–2 is filed as a final return for a period ending prior to December 31, the information statement shall be filed on or before the last day of the month following such period.

§ 39.1–5 *Extensions of time for filing information returns.* The district director may, upon application of the employer, grant an extension of time in which to file any information return required under paragraph (a) of § 39.1–4. Such extension of time shall not extend beyond the last day of the calendar month in which occurs the due date prescribed in paragraph (a) of § 39.1–4 for filing the information return. Each application for an extension of time for filing an information return shall be made in writing, shall be addressed to the district director with whom the employer will file the return, and shall contain a full recital of the causes for the delay. The application shall be filed with the district director on or before the due date prescribed in paragraph (a) of § 39.1–4 for filing the return.

§ 39.1–6 *Application of regulations.* The regulations in this part supplement and modify provisions of existing regulations relating to returns, deposits, and payments of employment taxes, and shall be applicable after June 30, 1958, notwithstanding any existing regulation to the contrary.

PART 149—MONTHLY RETURNS AND PAYMENT OF EXCISE TAXES

PAR. 2. The following regulations, relating to monthly returns and payment of certain excise taxes imposed by subtitle D of the Internal Revenue Code of 1954, are hereby prescribed under those administrative provisions of subtitle F of such Code which are applicable to such taxes:

Sec.
149.1–1 Introduction.
149.1–2 Monthly tax returns.
149.1–3 Payment of tax.
149.1–4 Application of regulations.

AUTHORITY: §§ 149.1–1 to 149.1–4 issued under sec. 7805, 68A Stat. 917; 26 U. S. C. 7805.

§ 149.1–1 *Introduction.* The purpose of the regulations in this part is to provide rules for (a) the filing, under certain circumstances, of monthly returns of excise taxes in lieu of quarterly returns, and (b) the payment of the taxes required to be reported on such monthly returns.

§ 149.1–2 *Monthly tax returns*—(a) *Requirement.* (1) The provisions of this section are applicable in respect of the taxes reportable on Form 720 pursuant to § 477.3 (a) of Treasury Decision 6025, approved July 3, 1953 (26 CFR (1939) 1957 Supp., 477.3 (a)). A person who is required by such § 477.3 (a) to make quarterly returns on Form 720 shall, in lieu of making such quarterly returns, make returns of such taxes in accordance with the regulations in this part if he is so notified in writing by the district director. The district director may so notify any person (i) who, by reason of notification as provided in § 301.7512–1 of this chapter (Regulations on Procedure and Administration), is required to comply with the provisions of such § 301.7512–1, or (ii) who has failed to (*a*) make any such return on Form 720, (*b*) pay any tax reportable on Form 720, or (*c*) deposit any such tax pursuant to regulations relating to section 6302 (c) of the Code, at the time and in the manner prescribed by applicable regulations. Every person so notified by the district director shall make a return for the calendar month in which the notice is received and for each calendar month thereafter (whether or not tax liability is incurred in any such month) until he has filed a final return or is required to make quarterly returns pursuant to notification as provided in paragraph (b) of this section. However, if a person filing returns on a quarterly basis receives the notice provided for in this subparagraph after the close of the first month of a calendar quarter, the first return under this section shall be made for the period beginning with the first day of such quarter and ending with the last day of the month in which the notice is received.

(2) Each return required under this section shall be made on Form 720, except that, if some other form is furnished by the district director for use in lieu of Form 720, the return shall be made on such other form.

(3) Each return required under this section shall be filed on or before the fifteenth day following the period for which it is made. No extension of time for filing such return may be granted by the district director.

(b) *Termination of requirement.* The district director, in his discretion, may notify the person in writing that he shall discontinue the filing of monthly returns under this section. If the person is so notified, the last month for which a return shall be made under this section is the last month of the calendar quarter in which such notice of discontinuance is received. Thereafter, the person shall make quarterly returns in accordance with the provisions of § 477.3 (a) of Treasury Decision 6025 (26 CFR (1939) 1957 Supp., 477.3 (a)).

§ 149.1–3 *Payment of tax.* (a) The taxes required to be reported on each return required pursuant to § 149.1–2 are due and payable to the district director at the time prescribed in paragraph (a) (3) of § 149.1–2 for filing such return.

(b) The provisions of § 477.4 (c) of Treasury Decision 6025 (26 CFR (1939) 1957 Supp., 477.4 (c)), relating to deposits of taxes pursuant to section 6302 (c) of the Internal Revenue Code of 1954, do not apply to taxes for any month, required to be reported on a return made pursuant to § 149.1–2, unless the due date prescribed in such § 477.4 (c) for making the deposit for such month occurs prior to the due date prescribed in paragraph (a) (3) of § 149.1–2 for filing such return.

§ 149.1–4 *Application of regulations.* The regulations in this part supplement and modify provisions of existing regulations relating to returns, deposits, and payments of excise taxes, and shall be applicable after June 30, 1958, notwithstanding any existing regulation to the contrary. However, any notice in effect under the provisions of § 477.3 (b) of Treasury Decision 6025 (26 CFR (1939) 1957 Supp., 477.3 (b)) requiring the filing of a return for the month in which the regulations in this part are published in the FEDERAL REGISTER shall continue in effect as a notice under § 149.1–2 received in the month following the month of such publication.

PART 301—PROCEDURE AND ADMINISTRATION

PAR. 3. The Regulations on Procedure and Administration (Part 301) are amended to conform to the amendments made to chapter 77 of the Internal Revenue Code of 1954 by the Act of February 11, 1958 (Public Law 85–321, 72 Stat. 5), relating to separate accounting for certain collected taxes, by inserting immediately after § 301.7511 the following new sections:

§ 301.7512 *Statutory provisions; separate accounting for certain collected taxes, etc.*

SEC. 7512. *Separate accounting for certain collected taxes, etc.*—(a) *General rule.* Whenever any person who is required to collect, account for, and pay over any tax imposed by subtitle C or by chapter 33—

(1) At the time and in the manner prescribed by law or regulations (A) fails to collect, truthfully account for, or pay over such tax, or (B) fails to make deposits, payments, or returns of such tax, and

(2) Is notified, by notice delivered in hand to such person, of any such failure,

then all the requirements of subsection (b) shall be complied with. In the case of a corporation, partnership, or trust, notice delivered in hand to an officer, partner or trustee, shall, for purposes of this section, be deemed to be notice delivered in hand to such corporation, partnership, or trust and to all officers, partners, trustees, and employees thereof.

(b) *Requirements.* Any person who is required to collect, account for, and pay over any tax imposed by subtitle C or by chapter 33, if notice has been delivered to such person in accordance with subsection (a), shall collect the taxes imposed by subtitle C or chapter 33 which become collectible after delivery of such notice, shall (not later than the end of the second banking day after any amount of such taxes is collected) deposit such amount in a separate account in a bank (as defined in section 581), and shall keep the amount of such taxes in such account until payment over to the United States. Any such account shall be designated as a special fund in trust for the United States, payable to the United States by such person as trustee.

(c) *Relief from further compliance with subsection* (b). Whenever the Secretary or his delegate is satisfied, with respect to any notification made under subsection (a), that all requirements of law and regulations with respect to the taxes imposed by subtitle C or chapter 33, as the case may be, will henceforth be complied with, he may cancel such notification. Such cancellation shall take effect at such time as is specified in the notice of such cancellation.

[Sec. 7512 as added by sec. 1, Act of Feb. 11, 1958 (Pub. Law 85-321, 72 Stat. 5)]

§ 301.7512-1 *Separate accounting for certain collected taxes*—(a) *Scope.* The provisions of section 7512 and this section apply to—

(1) The following taxes imposed by subtitle C of the Code in respect of wages or compensation paid after February 11, 1958, for pay periods beginning after such date:

(i) The employee tax imposed by section 3101 of chapter 21 (Federal Insurance Contributions Act),

(ii) The employee tax imposed by section 3201 of chapter 22 (Railroad Retirement Tax Act), and

(iii) The income tax required to be withheld on wages by section 3402 of chapter 24 (Collection of Income Tax at Source on Wages); and

(2) The following taxes imposed by chapter 33 of the Code in respect of taxable payments made after February 11, 1958:

(i) The taxes imposed by section 4231 (1), (2), and (3) on amounts paid for admissions,

(ii) The taxes imposed by section 4241 on amounts paid as club dues,

(iii) The taxes imposed by section 4251 on amounts paid for communications services or facilities,

(iv) The taxes imposed by sections 4261 and 4271 on amounts paid for transportation of persons and property, respectively, and

(v) The tax imposed by section 4286 on amounts collected for the use of safe deposit boxes.

(b) *Requirement.* If the district director determines that any person required to collect, account for, and pay over any tax described in paragraph (a) of this section has, at the time and in the manner prescribed by law or regulations, failed to collect, truthfully account for, or pay over any such tax, or make deposits, payments, or returns of any such tax, such person, if notified to do so by the district director in accordance with section 7512 and paragraph (d) of this section, shall—

(1) Collect, at the times and in the manner provided by the law and the regulations in respect of the various taxes described in paragraph (a) of this section, all of the taxes described in such paragraph which become collectible by him after receipt of such notice;

(2) Deposit the taxes so collected, not later than the end of the second banking day after collection, with a bank, as defined in section 581, in a separate account established in accordance with paragraph (c) of this section; and

(3) Keep in such account the taxes so deposited until payment thereof is made to the United States as required by the law and the regulations in respect of such taxes.

The separate accounting requirements contained in subparagraphs (1), (2), and (3) of this paragraph are applicable, in the case of the taxes described in paragraph (a) (1) of this section, to taxes with respect to wages or compensation paid after receipt of the notice from the district director, irrespective of whether such wages or compensation was earned prior to or after receipt of the notice; and, in the case of the taxes described in paragraph (a) (2) of this section, to taxes with respect to taxable payments made after receipt of the notice from the district director, irrespective of whether the transactions with respect to which such payments were made occurred prior to or after receipt of the notice.

(c) *Trust fund account.* The separate bank account referred to in paragraph (b) of this section shall be established under the designation, "(Name of person required to establish account), Trustee, Special Fund in Trust for U. S. under section 7512, I. R. C.". The taxes deposited in such account shall constitute a fund in trust for the United States payable only to the Internal Revenue Service on demand by the trustee.

(d) *Notice.* Notice to any person requiring his compliance with the provisions of section 7512 (b) and this section shall be in writing and shall be delivered in hand to such person by an internal revenue officer or employee. In the case of a trade or business carried on other than as a sole proprietorship, such as a corporation, partnership, or trust, notice delivered in hand to an officer, partner, or trustee shall be deemed to be notice delivered in hand to such corporation, partnership, or trust and to all officers, partners, trustees, and employees thereof.

(e) *Cancellation of notice.* The district director may relieve a person to whom notice requiring separate accounting has been given pursuant to section 7512 and this section from further compliance with such separate accounting requirements whenever he is satisfied that such person will comply with all requirements of the Code and the regulations applicable, in respect of the taxes to which the notice relates, in the case of persons not required to comply with the provisions of section 7512 (b). Notice of cancellation of the requirement for separate accounting shall be made in writing and shall take effect at such time as is specified in the notice of cancellation.

(f) *Penalties.* For criminal penalty for failure to comply with any provision of section 7512, see section 7215. For criminal penalties for failure to file return, supply information, or pay tax, for failure to collect or pay over tax, and for attempt to evade or defeat tax, see sections 7203, 7202, and 7201, respectively.

(Sec. 7805, 68A Stat. 917; 26 U. S. C. 7805)

[F. R. Doc. 58-5025; Filed, June 30, 1958; 8:53 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 76]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedures appearing hereinafter are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

NOTE: Where the general classification (L/MFR, ADF, VOR, TerVOR, VOR/DME, ILS, or RADAR), location, and procedure number (if any) of any procedure in the amendments which follow, are identical with an existing procedure, that procedure is to be substituted for the existing one, as of the effective date given, to the extent that it differs from the existing procedure; where a procedure is cancelled, the existing procedure is revoked; new procedures are to be placed in appropriate alphabetical sequence within the section amended.

1. The low or medium frequency range procedures prescribed in § 609.100 (a) are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Ephrata VOR	EPH-LFR	Direct	3000	T-dn*	300-1	300-1	200-½
Marlin Int	EPH-LFR	Direct	3000	C-d	800-2	800-2	800-2
				C-n	1000-2	1000-2	1000-2
				S-dn-ry-34	500-1½	500-1½	500-1½
				A-d	1000-3	1000-3	1000-3
				A-n	1200-3	1200-3	1200-3

*600-2 required for take-off runway 29.
Procedure turn W side of S crs, 156 Outbnd, 336 Inbnd, 3000' within 10 mi. NA beyond 10 mi. (Non-standard to avoid Larson AFB.)
Minimum altitude over facility on final approach crs, 2200'.
Crs and distance, facility to airport, 336—3.4.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.4 mi, turn right, climb to 4000' on E crs. Ephrata LFR within 20 mi.
Alternate Missed Approach when directed by ATC: within 3.4 mi, turn right, return to LF range station hold at 3000' on W crs within 10 mi. All maneuvering S of W crs.
CAUTION: 2346' radio tower 2.5 mi W of airport.

City, Ephrata; State, Wash.; Airport Name, Ephrata; Elev., 1258'; Fac. Class, BMRLZ; Ident., EPH; Procedure No. 1, Amdt. 5; Eff. Date, 26 July 58; Sup. Amdt. No. 4; Dated, 7 Jan. 56

2. The automatic direction finding procedures prescribed in § 609.100 (b) are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Huntington RBn	LOM	Direct	2500	T-dn	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				S-dn-11	500-1	500-1	500-1
				A-dn	800-2	800-2	800-2

Procedure turn South side of crs, 294° Outbnd, 114° Inbnd, 2500' within 10 miles.
Minimum altitude over facility on final approach crs, 2000'.
Crs and distance, facility to airport, 114°—4.7 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.7 miles after passing LOM (ADF), make a right climbing turn and return to the LOM at 2500'.

City, Huntington; State, W. Va.; Airport Name, Tri-State; Elev., 828'; Fac. Class, LOM; Ident., HT; Procedure No. 2, Orig.; Eff. Date, 26 July 58

3. The very high frequency omnirange (VOR) procedures prescribed in § 609.100 (c) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Ephrata LFR	EPH-VOR	Direct	3000	T-dn*	300-1	300-1	200-½
				C-d	800-2	800-2	800-2
				C-n	1000-2	1000-2	1000-2
				S-dn-Ry-20	500-1½	500-1½	500-1½
				A-d	1000-3	1000-3	1000-3
				A-n	1200-3	1200-3	1200-3

*600-2 required for take-off on Runway 29.
Procedure turn N side of crs, 020 Outbnd, 200 Inbnd, 3000' within 10 mi. NA beyond 10 mi.
Minimum altitude over facility on final approach crs, 2400'.
Crs and distance, facility to airport, 200—4.9.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.9 mi, turn left, climb to 4000' on R-059 within 20 mi.
Alternate Missed Approach when directed by ATC: within 5.7 mi, turn left, return to VOR station, hold at 3300' on R-020 within 10 mi.
CAUTION: 2351 radio tower 3 mi W of airport.

City, Ephrata; State, Wash.; Airport Name, Ephrata; Elev., 1258'; Fac. Class, BVOR; Ident., EPH; Procedure No. 1, Amdt. 3; Eff. Date, 26 July 58; Sup. Amdt. No. 2; Dated, 7 Jan. 56

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PROCEDURE CANCELLED, EFFECTIVE 2 JUNE 1958.							
City, Martinsburg; State, W. Va.; Airport Name, Martinsburg; Elev., 550'; Fac. Class, BVOR; Ident., MRB; Procedure No. 1, Amdt. 1; Eff. Date, 17 June 54; Sup.Amdt. No. Orig.; Dated, 1 Jul. 52							
Springfield LFR	SPI-VOR	Direct	2000	T-dn	300-1	300-1	200-½
Int R-155 PIA VOR and R-036 SPI VOR	SPI-VOR	Direct	1900	C-dn	400-1	500-1	500-1½
Int R-155 PIA VOR and R-036 SPI VOR	SPI-VOR (Final)	Direct	1400	S-dn-22	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn N side of crs, 036 Outbnd, 216 Inbnd, 1900 within 10 miles.
Minimum altitude over facility on final approach crs, 1400'.
Crs and distance, facility to airport, 216—3.2
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.2 miles, make right turn, climb to 2000' to Petersburg Int (Int R-285 SPI and NW crs SPI LFR) via the NW crs SPI LFR, or if directed by ATC: (1) Climb to 2000' and proceed to the ILS LOM.

City, Springfield; State, Ill.; Airport Name, Capital; Elev., 595'; Fac. Class, BVOR; Ident., SPI; Procedure No. 1, Amdt. 5; Eff. Date, 26 Jul. 58; Sup. Amdt. No. 4; Dated, 11 May 57

4. The terminal very high frequency omnirange (TerVOR) procedures prescribed in § 609.200 are amended to read in part:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PROCEDURE CANCELLED, EFFECTIVE 5 JUNE 1958 OR DATE OF COMMISSIONING OF NEW CEDAR RAPIDS VOR.							
City, Cedar Rapids; State, Iowa; Airport Name, Cedar Rapids; Fac. Class, VOR; Ident., CID; Procedure No. Ter VOR-26, Orig.; Eff. Date, 16 Jan. 57							
PROCEDURE CANCELLED, EFFECTIVE 5 JUNE 1958 OR DATE OF COMMISSIONING OF NEW CEDAR RAPIDS VOR.							
City, Cedar Rapids; State, Iowa; Airport Name, Cedar Rapids; Fac. Class, VOR; Ident., CID; Procedure No. Ter VOR-8, Orig.; Eff. Date, 16 Jan. 57							

5. The instrument landing system procedures prescribed in § 609.400 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Huntington RBn	LOM	Direct	2500	T-dn	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				S-dn-11	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn South side of crs, 294° Outbnd, 114° Inbnd, 2500' within 10 mi.
Minimum altitude over facility on final approach crs, 2000' over LOM.
Crs and distance, facility to airport, 114°—4.7 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.7 miles after passing LOM, make a right climbing turn and return to the LOM at 2500'.
NOTE: No glide slope. Procedure based on localizer—LOM and LMM.

City, Huntington; State, W. Va.; Airport Name, Tri-State; Elev., 828'; Fac. Class, ILS; Ident., HTS; Procedure No. ILS-11, Orig.; Eff. Date, 26 Jul. 58

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
MSP-LFR	LOM	Direct	2200	T-dn	300-1	300-1	200-½
MSP-VOR	LOM	Direct	2500	C-dn	500-1	500-1	500-1½
Hastings FM	Glide slope int (Final)	Direct	2200	S-dn-29L	200-½	200-½	200-½
Stanton RBn via crs 360°	SE crs ILS	360° crs	2200	A-dn	600-2	600-2	600-2
Jordan FM	LOM	Direct	2200				
Houlton Int	LOM	Direct	2300				
Diamond Bluff Int ILS	Glide slope int (Final)	Direct	2200				
Lakeville Int	LOM	Direct	2200				
Prior Int	LOM	Direct	2200				
White Bear Int	LOM	Direct	2500				
Elmo Int	LOM	Direct	2300				
Cannon Falls Int	LOM	Direct	2400				
Radar transitions as directed by ATC	Radar site	Within 20 mi	2500				

Procedure turn E side SE crs, 115 Outbnd, 295 Inbnd, 2200' within 10 mi.
Minimum altitude at glide slope int inbnd, 2200'.
Altitude of glide slope and distance to approach end of runway at OM—2084—4.0; at MM—1038—0.5.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.0 miles of LOM, climb to 2500' on NW crs ILS to Int. R-221 MSP-VOR and NW ILS crs or, when directed by ATC:
(1) Make left climbing turn, climb to 2500' on crs of 241° within 22 miles,
(2) Make left climbing turn, climb to 2200' and return to LOM.
CAUTION: Tower 1223' MSL 3 mi W of Hastings FM.

City, Minneapolis; State, Minn.; Airport Name, Minneapolis-St. Paul International; (Wold Chamberlain Field); Elev., 840'; Fac. Class, ILS; Ident., MSP; Procedure No. ILS-29L, Amdt. 11; Eff. Date, 21 June 58; Sup. Amdt. No. 10; Dated, 21 June 58

These procedures shall become effective on the dates indicated on the procedures.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

WILLIAM B. DAVIS,
Acting Administrator of Civil Aeronautics.

JUNE 20, 1958.

[F. R. Doc. 58-4888; Filed, June 30, 1958; 8:45 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter IV—Saint Lawrence Seaway Development Corporation

PART 401—OPERATING REGULATIONS

The Saint Lawrence Seaway Development Corporation, a Corporate agency of the United States, created by Public Law 358, 83d Congress, approved May 13, 1954 (68 Stat. 92; 33 U. S. C. 981) hereby promulgates operating regulations governing the use by vessels and persons of the St. Lawrence Seaway, in the area approximately between Tibbetts Point and the Raquette River on the St. Lawrence River, and as shown on the General Seaway Plan. These regulations will be cited as United States Seaway Operating Regulations of July 1, 1958.

Sec.
401.1 Definitions.
401.2 General provisions.
401.3 Equipment, trim and manning of vessels.
401.4 Communications.
401.5 Navigating instructions.
401.6 Vessel traffic control.
401.7 Lockages.
401.8 Dangerous cargo.
401.9 Access to Corporation property.

AUTHORITY: §§ 401.1 to 401.9 issued under sec. 4, 68 Stat. 94, as amended; 33 U. S. C. 984.

§ 401.1 *Definitions.* As used in the regulations in this part the following words will have the meaning ascribed:

(a) "Act" means the Enabling Act of the Saint Lawrence Seaway Development Corporation, as amended. (68 Stat. 92; 33 U. S. C. 981)

(b) "Anchorage" means a place to anchor shown on the General Seaway Plan or designated by competent authority.

(c) "Downbound" means proceeding downstream, generally in an easterly direction, towards Montreal;

(d) "Lock supervisor" means the person in immediate charge of a lock;

(e) "Master" means the person in charge of a vessel;

(f) "Mooring wall" means a prescribed wall in a lock on which a vessel's lines may be fastened when passing through;

(g) "Navigation season" means the period prescribed by the Corporation for navigation on the Seaway, from the date of the official opening to the date of the official closing of the season;

(h) "Passing through" means the operation of going through or using a lock;

(i) "Station" means a radio station installed at a prescribed point;

(j) "Tie-up" means a prescribed wall where vessels may tie-up prior to or after passing through;

(k) "Transit" means the use of the Seaway in whole or in part;

(l) "Upbound" means proceeding upstream, generally in a westerly direction, towards Lake Ontario;

(m) "Vessel" means every type of water craft or artificial contrivance used, or capable of being used, as a means of transportation on water.

§ 401.2 *General provision.* (a) All vessels using the United States portion of the Seaway and their owners and other persons having immediate possession and control thereof, pursuant to contract, lease, charter or other arrangement, their masters, agents and representatives, shall comply with the regulations in this part as well as rules and directions issued hereunder by appropriate authority. In addition to other applicable penalties or sanctions, vessels in violation of applicable laws, regulations or local rules or directions are subject to having passage of locks denied them.

(b) Subject to the act and the regulations in this part, the Corporation's Administrator, Deputy Administrator, or the Superintendent of Marine and Engineering Operations, or the designee of any of them, shall have authority to issue operational and transiting instructions to all vessels using the St. Lawrence Seaway in United States waters generally between Tibbetts Point and Raquette River and as shown on the General Seaway Plan. Such instructions may be issued to all concerned by published rules, or in the event of emergency, or where otherwise required by circumstances, may be issued orally to an individual person or vessel.

(c) The regulations in this part shall not be construed as affecting directly or by implication the application of regulations or rules made under other acts by other agencies. All requirements, including but not limited to requirements relating to navigation or radio communication under such other acts or regulations, remain unaffected.

§ 401.3 *Equipment, trim and manning of vessels.* (a) All transiting vessels shall be properly trimmed and in safe and satisfactory condition for passage through.

(b) Masters shall ascertain, before transiting, that deck loads, if any, are stowed in such a manner as not to affect dangerously the vessel's stability and not to impede materially the crew in the exercise of their functions when transiting.

(c) In order to assure safety of life and property, as well as to assure safe and expeditious use of the Seaway, the

Corporation may deny a vessel passage through when, in its opinion, the vessel is manned with a crew whom it deems to be insufficient or incompetent, or when the vessel, its crew, equipment or machinery is, in any respect, in such a condition as to preclude or endanger the safe or expeditious transiting of any vessel through the Seaway.

(d) For the purpose of enforcing the regulations in this part, a lock supervisor, or other person designated by authority of the Administrator, may stop any vessel before it enters a lock and examine the vessel or check the crew.

(e) A vessel shall not be allowed to transit unless it is equipped in the manner prescribed herein, or in the manner prescribed by competent authority of the Corporation pursuant to § 401.2 (b), and unless it is provided with adequate operating and safety equipment including, but not limited to:

(1) Two good and sufficient lines, one at the bow and one at the stern, one line leading forward and the other leading aft, when the vessel does not exceed 150 feet in length or 200 registered gross tons;

(2) Four good and sufficient lines, two leading forward and two leading aft, all so arranged that they may be used from either side of the vessel, and each of these lines runs from the main drum of a power driven winch, when the vessel exceeds 150 feet in overall length or 200 registered gross tons;

(3) Winches of sufficient power to allow full control of the vessel during the passage through.

(4) Fair-leads fitted on both sides of the vessel for the proper leading of the lines;

(5) Adequate fenders where the vessel carries dangerous cargo or where any structural part of the vessel protrudes, such fenders to be of buoyant material and securely fastened to the vessel;

(6) Radio equipment otherwise prescribed by United States law or United States regulations, and as prescribed by the Corporation, and

(7) Navigation lights required by United States law and regulations relating to navigation on the Great Lakes and their Connecting and Tributary Waters. (33 U. S. C. 241-295; 33 CFR Part 90.)

§ 401.4 *Communications.* (a) All vessels fitted with radio telephone, shall, upon reaching a calling-in point prescribed by the Corporation, give notice of arrival in the manner prescribed. All vessels not fitted with radio telephone shall give notice of arrival in the manner prescribed by competent authority.

(b) Between the call-in points on both sides of a lock, as shown on the General Seaway Plan, or as specially designated.

(c) When the vessel is to use the Seaway, the master shall give notice of his intention to do so at a station and shall furnish all the prescribed information.

(d) Notice of arrival shall not be deemed to have been given until it has been acknowledged by the station.

(e) When the master intends to pass through, he shall be subject to all instructions given by the station in connection with passage through.

(f) The Corporation exercises full discretion with respect to the relative order of passing through; it may have a vessel wait or tie-up and, if it deems it warranted, refuse permission to approach a lock, tie-up or pass through.

(g) Communications between vessels in the Seaway and the Vessel Traffic Controller at Eisenhower Lock shall be conducted via voice radio, using the proper frequencies in either the MF or VHF range which have been established by the respective Agreements between the United States and Canadian Governments effective May 13, 1954, and August 20, 1957.

(h) Eisenhower Lock Radio Station—Vessel Traffic Control Station No. 3

Call letter KEF—		
MF frequency (AM)	2182 kc	Safety/Calling.
	2003 kc	Working.
VHF frequency (FM)	156.8 mc	Safety/Calling.
	156.7 mc	Primary Working (Preferred).
	156.6 mc	Secondary Working.

(i) The order of priority of radio communications to be transmitted on 2182 kc or 156.8 mc is as follows:

(1) Distress

(2) Urgency

(3) Safety

(4) Vessel Traffic Control—St. Lawrence Seaway

(j) (1) Each vessel shall maintain a continuous Listening Watch on the safety-calling frequencies for which it is equipped (2182 kc, 156.8 mc) in accordance with Article 7 of the Agreement of November 13, 1954.

(2) Permission to break Listening Watch may be granted when a vessel requests permission of the Vessel Traffic Controller to break the Listening Watch for other reasons than communication with the Vessel Traffic Controller.

(3) Each vessel shall keep a "Record of Use (Log) of the Radio Telephone Installation for Safety Purposes" in accordance with Regulation 4 (1) of the Agreement of November 13, 1954. This record shall be available for examination in accordance with Regulation 4 (2) and also by the Seaway Development Corporation officials. Time shall be expressed in Eastern Standard Time or Eastern Daylight Time, counted from 000 to 2400 hours starting at midnight.

(4) The frequencies used for contacting and communicating with the Vessel Traffic Controller shall be used only to transmit information essential to expedite the safe and speedy transportation of vessel traffic through the Seaway, and shall take precedence over all commercial messages.

§ 401.5 *Navigating instructions.* (a) Navigational rules required by United States Laws and Regulations relating to navigation on the Great Lakes and their Connecting and Tributary Waters (33 U. S. C. 241–295; 33 CFR Part 90) apply to any vessel in United States waters transiting the Seaway.

(b) No vessel shall exceed the speeds indicated with respect to certain zones shown on the General Seaway Plan, or as specially indicated by the Corporation.

(c) When a master has been instructed to proceed forward to a tie-up wall or to pass through, he shall not have his vessel overtake another vessel unless expressly instructed to do so.

(d) The Corporation assumes no responsibility when providing aids to navigation.

(e) Whenever a buoy or a marker or other type of aid to navigation appears to a master to have been damaged or to be other than indicated on the General Seaway Plan, he shall report it as soon as possible to the nearest station.

(f) No vessel shall pass through unless expressly instructed or allowed to do so by the lock supervisor.

(g) Passing through and the procedure for locking shall be conducted in the manner prescribed by the Corporation.

(h) The master is responsible at all times for the control of his vessel to avoid collision with other vessels or damage to any Corporation property.

(i) The crew of a vessel shall assist in the passing through.

(j) Loading or unloading of goods and cargo and going-ashore of crew members are prohibited within a lock and shall only be allowed at a tie-up wall when the lock supervisor, or higher authority in the Corporation has granted permission.

(k) A vessel shall not leave a mooring wall until the order has been given by the lock supervisor to cast off the mooring lines.

§ 401.6 *Vessel traffic control.* (a) The Corporation directs marine traffic through the Vessel Traffic Controller (Dispatcher) who is located in the Upper Control Tower, Eisenhower Lock. This has been designated as Vessel Traffic Control Station Number 3.

(b) (1) Tie-up berths are indicated on the General Seaway Plan, Appendix I to Rules.

(2) Vessels using tie-up berths will use their own personnel to handle lines.

(c) Except in an emergency, or when specifically directed to do so, vessels shall not anchor in the approaches to locks, in the channel of the St. Lawrence River south of Cornwall Island, in the "Intermediate Pool" or in the upper reaches of Wiley-Dondero Ship Canal. Vessels shall not overtake and pass other vessels proceeding in the same direction in the upper reaches of the Wiley-Dondero Ship Canal, in the Intermediate Pool, or in South Channel (Cornwall Island), without first obtaining permission of the Vessel Traffic Controller. Upbound vessels shall give way and keep clear of downbound vessels in the turns of South Channel (Cornwall Island).

(d) (1) On passing Vessel Reporting Station Number 6 (VRS No. 6), off Hamilton Island Light, report to Vessel Traffic Controller, Eisenhower Lock, giving name of vessel and any change in estimated time of arrival (ETA); thence proceed as directed.

(2) If unable to establish contact, continue attempts to do so passing through

Reporting Stations 6a and 6b located as follows:

6a—Off East and St. Regis Island.
6b—When coming on Raquette River Range.

(e) (1) On passing Vessel Reporting Station Number 7 (VRS No. 7), off Bradford Island Light No. 71, report to Vessel Traffic Controller, Eisenhower Lock, giving name of vessel and any change in estimated time of arrival (ETA), thence proceed as directed.

(2) In event contact is not made, continue trying when passing through Vessel Reporting Stations 7a and 7b located as follows:

7a—Off Wilson Hill Island Light No. 63.
7b—Off Richards Point Light No. 55.

(f) When vessels find it necessary or desirable to anchor, the master shall so advise the Vessel Traffic Controller.

(g) Due to inclement weather, poor visibility or other conditions, traffic through locks may be temporarily suspended. In such event, adjacent Canadian locks will be notified and every effort will be made to notify all vessels en route to U. S. locks.

§ 401.7 *Lockages.* (a) The authority of the Corporation over vessels in locks is exercised through the Lockmaster at each lock. The Lockmaster is responsible for the lockage of vessels through his lock, the Master, however, remains in control of the movement of his vessel in the locks. Instructions from the Lockmaster will be accepted and carried out by the Master unless, in his opinion, compliance with such instructions would jeopardize the vessel.

(b) Light signal meanings:

Red Light—Stand Off.
Flashing Red Light—Locks Being Readied.
Green Light—Enter Lock.

(c) (1) Loudspeakers located at extreme ends of tie-up walls and power pack loud hailers may be used by the Lockmaster for purposes of additional instructions, or in event of signal light failure.

(2) Horns are located on lock control houses, pointed upstream and downstream. They may be used to sound danger signal, five (5) or more short blasts. In such case, the vessel will hold off regardless of lights until "secure", two (2) long blasts, is sounded.

(d) (1) Master observes flashing red light while locks are being readied to receive lockage. Prepare to enter lock.

(2) When locks are readied, green light will show on single lockage. Enter lock at slow speed.

(3) When vessel's bridge clears the inbound lock signal light, light turns to red.

(4) Tandem lockage, light stays green until second or last vessel's bridge clears the inbound lock signal light.

(e) (1) When it appears to either the Lockmaster or vessel's master that the vessel is out of control, or the headway of the vessel is such as to endanger the gates or fender, either may order an emergency (full) check of the vessel.

(2) When such is ordered by either, the vessel's master shall sound four (4) or more short blasts on the whistle in rapid succession, and if such is possible, shall back down on the vessel's engine until the vessel is dead in the water.

(3) The Lockmaster will order lines placed on the nearest snubbing buttons (bollards) so that lines can serve as spring-lines leading aft from the vessel. Thereafter the master will use lines to the maximum extent possible without parting the lines so as to check the forward movement of his vessel. The Lockmaster will reposition lines as may be desired by the vessel's master.

(f) Vessels will not be released from a lock until clearance has been obtained from the Vessel Traffic Controller (Dispatcher). When gates and fender booms are fully opened, Lockmaster shall issue instructions to release lockage.

§ 401.8 *Dangerous cargo.* (a) Pursuant to the regulations in this part, the master of a vessel who is subject to the Dangerous Cargo Act (46 U. S. C. 170) or the Tanker Act (46 U. S. C. 391a) and the U. S. Coast Guard regulations issued thereunder, shall disclose such fact to the station when giving notice of arrival.

(b) The ship's agent shall warrant in writing on a prescribed form that dangerous cargo is properly loaded, charged, stowed, handled and disclosed, as the case may be, in accordance with applicable United States Law and regulations.

(c) The Corporation reserves the right to verify compliance of vessels with the provisions of the Dangerous Cargo Act and the Tanker Act and to verify proper stowage of such cargo, and reserves the right to deny passage through the Seaway in such cases where, in the opinion of the Corporation's representatives, such passage would endanger life or property.

§ 401.9 *Access to corporation property.* (a) There shall be no access by anyone to any property of the Corporation except when expressly authorized.

(b) The Corporation may prescribe local rules for the use and leasing of any of its property and for the control of all traffic over its property, including bridges, roads and parking area.

Effective dates. The regulations in this part are effective on and after July 1, 1958.

Public notice of rule making. The nearness of the date on which vessels may transit the Seaway makes it impracticable, unnecessary and contrary to the public interest to give notice and to follow routine public and rule making procedure looking toward the establishment of these regulations and a delay of not less than thirty (30) days in their effectiveness subsequent to publication.

LEWIS G. CASTLE,
Administrator.

[F. R. Doc. 58-4992; Filed, June 30, 1958; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 120]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF TOLERANCES FOR RESIDUES OF MANEB

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (1), 68 Stat. 512; 21 U. S. C. 346a (d) (1)), the following notice is issued:

A petition has been filed by E. I. du Pont de Nemours and Company, Inc., Wilmington 98, Delaware, proposing the establishment of tolerances of 10 parts per million for residues of maneb (manganous ethylenebisdithiocarbamate), calculated as zinc ethylenebisdithiocarbamate, in or on each of the raw agricultural commodities broccoli, brussels sprouts, cauliflower, kohlrabi.

The analytical method proposed in the petition for determining residues of maneb is that described by H. L. Pease in "Determination of Dithiocarbamate Fungicide Residues," published in the Journal of the Association of Official Agricultural Chemists, Volume 40, pages 1113–1118 (November 1957).

Dated: June 25, 1958.

[SEAL] ROBERT S. ROE,
Director,
Bureau of Biological and Physical Sciences.

[F. R. Doc. 58-4979; Filed, June 30, 1958; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 51]

U. S. STANDARDS FOR APPLES [1]

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the United States Department of Agriculture is considering amendments to the United States Standards for Apples (7 CFR 51.300 to 51.327), as hereinafter set forth, pursuant to the authority contained in the Agricultural Marketing Act of 1946

[1] Packing of the product in conformity with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

(60 Stat. 1087 et seq., as amended; 7 U. S. C. 1621 et seq.).

All persons who desire to submit written data, views or arguments for consideration in connection with the proposed amendments to the standards should file the same with the Chief, Fresh Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, South Building, Washington 25, D. C., not later than July 31, 1958.

It is proposed that § 51.302 be amended to permit apples of the Yellow Newtown or similar varieties to have an aggregate area not to exceed 25 percent of the surface of an apple to be covered with smooth solid russeting including any russeting in the stem cavity or calyx basin.

It is proposed that § 51.306 be amended so as to require Combination U. S. Extra Fancy and U. S. Fancy grade to have at least 50 percent of apples that meet the requirements of U. S. Extra Fancy grade, and that paragraphs (b) and (c) in § 51.310, pertaining to application of tolerances to the Combination grades be reworded to reflect this change in a new paragraph designated (b).

It is proposed that the title preceding and in § 51.317 be changed from "Standards for Export" to "Standards for Condition."

It is also proposed that the wording in § 51.325 (b) (3) pertaining to damage by hail marks, drought spots and other similar scars or depressions be changed so as to permit hail marks up to one-fourth inch in diameter, where the skin has been broken, provided the injury is well healed and not more than slightly depressed.

The proposed standards, as amended, are as follows:

GRADES

Sec.
51.300 U. S. Extra Fancy.
51.301 U. S. Fancy.
51.302 U. S. No. 1.
51.303 U. S. No. 1 Cookers.
51.304 U. S. No. 1 Early.
51.305 U. S. Utility.
51.306 Combination grades.
51.307 U. S. Hail grade.

COLOR

51.308 Color requirements.

UNCLASSIFIED

51.309 Unclassified.

TOLERANCES

51.310 Tolerances.
51.311 Application of tolerances to individual packages.
51.312 Basis of calculating percentages.

CONDITION

51.313 Condition after storage or transit.

SIZE

51.314 Size requirements.

PACKING AND MARKING

51.315 Packing requirements.
51.316 Suggestions for marking containers.

STANDARDS FOR CONDITION

51.317 Standards for condition.

DEFINITIONS

Sec.
51.318 Mature.
51.319 Overripe.
51.320 Carefully hand-picked.
51.321 Clean.
51.322 Well formed.
51.323 Injury.
51.324 Fairly well formed.
51.325 Damage.
51.326 Seriously deformed.
51.327 Serious damage.

AUTHORITY: §§ 51.300 to 51.327 issued under Sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624.

GRADES

§ 51.300 *U. S. Extra Fancy.* "U. S. Extra Fancy" consists of apples of one variety which are mature, but not overripe, carefully hand-picked, clean, well formed; free from decay, internal browning, internal breakdown, scald, scab, bitter pit, Jonathan spot, freezing injury, broken skins and bruises (except those that are slight and incident to proper handling and packing), and visible water core. The apples shall also be free from injury caused by russeting, sunburn or spray burn, limb rubs, hail, drought spots, scars, stem or calyx cracks, other disease, insects, or mechanical or other means. Each apple of this grade shall have the amount of color specified in § 51.308 for the variety. (See §§ 51.308, 51.310, and 51.313.)

§ 51.301 *U. S. Fancy.* "U. S. Fancy" consists of apples of one variety which are mature but not overripe, carefully hand-picked, clean, fairly well formed; free from decay, internal browning, internal breakdown, bitter pit, Jonathan spot, scald, freezing injury, broken skins and bruises (except those incident to proper handling and packing), and visible water core. The apples shall also be free from damage caused by russeting, sunburn, or spray burn, limb rubs, hail, drought spots, scars, stem or calyx cracks, other diseases, insects, or mechanical or other means. Each apple of this grade shall have the amount of color specified in § 51.308 for the variety. (See §§ 51.308, 51.310, and 51.313.)

§ 51.302 *U. S. No. 1.* The requirements for this grade are the same as U. S. Fancy except for color and russeting. In this grade less color is required for all varieties except yellow and green varieties, for which the requirements for both grades are the same. Apples of this grade shall be free from excessive damage caused by russeting which means that they shall meet the russeting requirements for U. S. Fancy as defined under the definitions of "damage by russeting" except for the following:

(a) The aggregate area of an apple which may be covered by smooth net-like russeting shall not exceed 25 percent; and,

(b) The aggregate area of an apple which may be covered by smooth solid russeting shall not exceed 10 percent: *Provided*, That in the case of the Yellow Newtown or similar varieties the aggregate area of an apple which may be covered with smooth solid russeting shall not exceed 25 percent including any russeting in the stem cavity or calyx basin. (See §§ 51.308, 51.310, and 51.313.)

§ 51.303 *U. S. No. 1 Cookers.* "U. S. No. 1 Cookers" consist of apples of one variety which meets the requirements of U. S. No. 1 grade except as to color. This grade is provided for apples which are mature but which may not have sufficient color to meet the specifications of U. S. No. 1. (See §§ 51.310 and 51.313.)

§ 51.304 *U. S. No. 1 Early.* "U. S. No. 1 Early" consists of apples of one variety which meet the requirements of U. S. No. 1 grade except as to color, maturity and size. Apples of this grade have no color requirements, need not be mature, and shall be not less than 2 inches in diameter. This grade is provided for varieties such as Duchess, Gravenstein, Red June, Twenty Ounce, Wealthy, Williams, Yellow Transparent, and Lodi, or other varieties which are normally marketed during the summer months. (See §§ 51.310 and 51.313.)

§ 51.305 *U. S. Utility.* "U. S. Utility" consists of apples of one variety which are mature but not overripe, carefully hand-picked, not seriously deformed; free from decay, internal browning, internal breakdown, scald and freezing injury. The apples shall also be free from serious damage caused by dirt or other foreign matter, broken skins, bruises, russeting, sunburn, spray burn limb rubs, hail, drought spots, scars, stem or calyx cracks, visible water core, other diseases, insects, or mechanical or other means. (See §§ 51.310 and 51.313.)

§ 51.306 *Combination grades.* (a) Combinations of the above grades can be used as follows:

(1) Combination U. S. Extra Fancy and U. S. Fancy.

(2) Combination U. S. Fancy and U. S. No. 1.

(3) Combination U. S. No. 1 and U. S. Utility.

(b) Combinations other than these are not permitted in connection with the United States apple grades. When any one of the above combinations is packed, at least 50 percent of the apples in any lot shall meet the requirements of the higher grade in the combination. (See §§ 51.308, 51.310, and 51.313.)

§ 51.307 *U. S. Hail grade.* "U. S. Hail grade" consists of apples which meet the requirements of U. S. No. 1 grade except that hail marks where the skin has not been broken and well healed hail marks where the skin has been broken shall be permitted, provided the apples are fairly well formed. (See §§ 51.308, 51.310, and 51.313.)

COLOR

§ 51.308 *Color requirements.* In addition to the requirements specified for the grades set forth in §§ 51.300 to 51.307, apples of these grades shall have the percentage of color specified for the variety in Table I appearing in this section. For the solid red varieties the percentage stated refers to the area of

the surface which must be covered with a good shade of solid red characteristic of the variety: *Provided*, That an apple having color of a lighter shade of solid red or striped red than that considered as a good shade of red characteristic of the variety may be admitted to a grade, provided it has sufficient additional area covered so that the apple has as good an appearance as one with the minimum percentage of good red characteristic of the variety required for the grade. For the striped red varieties the percentage stated refers to the area of the surface in which the stripes of good shade of red characteristic of the variety shall predominate over stripes of lighter red, green, or yellow. However, an apple having color of a lighter shade than that considered as a good shade of red characteristic of the variety may be admitted to a grade: *Provided*, That it has sufficient additional area covered so that the apple has as good an appearance as one with the minimum percentage of stripes of a good red characteristic of the variety required for the grade. Faded brown stripes shall not be considered as color except in the case of the Gray Baldwin variety.

TABLE I—COLOR REQUIREMENTS FOR SPECIFIED U. S. GRADES OF APPLES, BY VARIETIES

Variety	U. S. Extra Fancy	U. S. Fancy	U. S. No. 1.
Solid Red:	*Percent*	*Percent*	*Percent*
Black Ben	75	50	25
Cano	75	50	25
Winesap	75	50	25
Other similar varieties [1]	75	50	25
Red Sport varieties [2]	75	50	25
Striped or partially red:			
Cortland	66	33	25
Jonathan	66	33	25
McIntosh	66	33	25
Other similar varieties [3]	66	33	25
Baldwin	50	25	15
Ben Davis	50	25	15
Delicious	50	25	15
Mammoth Black Twig	50	25	15
Northern Spy	50	25	15
Rome Beauty	50	25	15
Stayman	50	25	15
Turley	50	25	15
Wagener	50	25	15
Wealthy	50	25	15
Willow Twig	50	25	15
York Imperial	50	25	15
Other similar varieties [4]	50	25	15
Hubbardston	50	15	10
Stark	50	15	[5] 10
Other similar varieties	50	15	[5] 10
Red June	50	15	(6)
Williams	50	15	(6)
Other similar varieties	50	15	(6)
Gravenstein	25	10	(6)
Other similar varieties [4]	25	10	(6)
Red Checked or blushed:			
Maiden Blush	(7)	(8)	(9)
Twenty Ounce	(7)	(8)	(9)
Winter Banana	(7)	(8)	(9)
Other similar varieties	(7)	(8)	(9)
Green varieties	(9)	(9)	(9)
Yellow varieties	(9)	(9)	(9)
Golden Delicious [10]	(10)	(10)	(10)

[1] Arkansas Black, Beacon, Detroit Red, Esopus Spitzenburg, King David, Lowry, Minjon.
[2] When Red Sport varieties are specified as such they shall meet the color requirements specified for Red Sport varieties.
[3] Haralson, Kendall, Macoun, Melba, Snow (Fameuse).
[4] Bonum, Early McIntosh, Limbertwig, Milton, Nero, Paragon.
[5] Tinge of color.
[6] Duchess, Red Astrachan, Smokehouse, Summer Rambo.
[7] Blush cheek.
[8] None.
[9] Characteristic ground color.
[10] 75 percent characteristic color. Note: "Characteristic color," when the white around the lenticels predominates over the green color, creating a mottling effect on the surface of the apple, it shall be considered as the minimum characteristic color.

UNCLASSIFIED

§ 51.309 *Unclassified.* "Unclassified" consists of apples which are not graded in conformity with any of the foregoing grades. The term "unclassified" is not a grade within the meaning of these standards but is provided as a designation to show that no definite grade has been applied to the lot.

TOLERANCES

§ 51.310 *Tolerances.* (a) In order to allow for variations incident to proper grading and handling, not more than a total of 10 percent of the apples in any lot may fail to meet the requirements of the grade: *Provided*, That not more than one-half of this amount, or 5 percent, shall be allowed for apples which are seriously damaged by insects and including not more than 1 percent for apples affected by decay or internal breakdown or both.

(b) When applying the foregoing tolerances to the Combination grades, no part of any tolerance shall be allowed to reduce, for the lot as a whole, the 50 percent of apples of the higher grade required in the combination but individual containers shall have not less than 40 percent of the higher grade.

§ 51.311 *Application of tolerances to individual packages.* The contents of individual packages in the lot, based on sample inspection, are subject to the following limitations provided the averages for the entire lot are within the tolerances specified for the grade:

(a) For packages which contain more than 10 pounds, and a tolerance of 10 percent or more is provided (as in the case of size, where a tolerance of 15 percent is provided) individual packages in any lot shall have not more than one and one-half times the tolerance specified. For packages which contain more than 10 pounds and a tolerance of less than 10 percent is provided, individual packages in any lot shall have not more than double the tolerance specified, except that at least one apple which is seriously damaged by insects or affected by decay or internal breakdown may be permitted in any package.

(b) For packages which contain 10 pounds or less, individual packages in any lot are not restricted as to the percentage of defects: *Provided*, That not more than one apple which is seriously damaged by insects or affected by decay or internal breakdown may be permitted in any package.

§ 51.312 *Basis of calculating percentages.* (a) When the numerical count is marked on the container, percentages shall be calculated on the basis of count.

(b) When the minimum diameter or minimum and maximum diameters are marked on the container, percentages shall be calculated on the basis of weight.

(c) When the apples are in bulk, percentages shall be calculated on the basis of weight.

CONDITION

§ 51.313 *Condition after storage or or transit.* Decay, scald, or any other deterioration which may have developed on apples after they have been in storage or transit shall be considered as affecting condition and not the grade.

SIZE

§ 51.314 *Size requirements.* (a) The numerical count or the minimum diameter of the apples packed in a closed container shall be indicated on the container.

(b) When the numerical count is marked on the container the minimum size of the largest apple shall be not more than one-fourth inch larger than the minimum size of the smallest apple.

(c) When the numerical count is not shown the minimum diameter shall be plainly stamped, stenciled, or otherwise marked on the container in terms of whole inches, whole and half inches, whole and quarter inches, or whole and eighth inches, as 2½ inches minimum, 2¼ inches minimum, or 2⅜ inches minimum, in accordance with the facts. It is suggested that both minimum and maximum diameters be marked on the container, as 2¼ to 2¾ inches, or 2½ to 2¾ inches, as such marking is especially desirable for apples marketed in the export trade.

(d) The measurement for minimum size shall be the largest diameter of the apple taken at right angles to a line from the stem end to the blossom end. The measurement for maximum size shall be the smallest dimension of the apple determined by passing the apple through a round opening.

(e) In order to allow for variations incident to proper sizing, not more than 5 percent of the apples in any lot may not meet the size requirements: *Provided*, That, when the maximum and minimum sizes are both stated, an additional 10 percent tolerance shall be allowed for apples which are larger than the maximum size stated.

PACKING AND MARKING

§ 51.315 *Packing requirements*—(a) *Representative face packing.* Each package shall be packed so that the apples on the shown face shall be reasonably representative in size, color and quality of the contents of the package.

(b) *Boxes.* (1) Apples packed in the standard northwestern apple boxes shall be arranged in the containers according to the approved and recognized methods with the stem pointing toward the ends of the boxes, except when jumbled. All packages shall be well filled but not to the extent as to cause excessive or unnecessary bruising to the apples because of overfilled packages. Apples packed in the standard northwestern apple boxes shall be tightly packed with sufficient bulge to prevent any appreciable movement of the apples within the containers when lidded. Each wrapped apple shall be completely enclosed by its individual wrapper.

(2) Apples packed in other type boxes, such as nailed wooden boxes, wirebound boxes, and fibreboard boxes, may be place packed, jumbled packed faced, or jumble packed, and all packs shall be well filled.

(3) Apples packed in boxes equipped with cell compartments or molded trays shall be of the proper size for the cells or the molds in which they are packed.

(4) Apples packed in consumer unit cartons and packed into shipping containers shall completely fill the shipping container.

(c) *Baskets.* Apples packed in U. S. standard bushel baskets, one-half bushel baskets and five-eighths bushel baskets may be ring faced and shall be tightly packed with sufficient bulge to prevent any appreciable movement of the apples within the containers when lidded.

(d) *Tolerances.* In order to allow for variations incident to proper packing, not more than 5 percent of the containers in any lot may not meet these requirements.

§ 51.316 *Suggestions for marking containers.* (a) In order to conserve space, abbreviations may be used for marking United States grade names on containers. The following abbreviations are suggested where it is not desired to use the full grade name:

(1) U. S. Ex. Fcy. for U. S. Extra Fancy.

(2) U. S. Fcy. for U. S. Fancy.

(3) U. S. No. 1 for U. S. No. 1.

(4) U. S. Util. for U. S. Utility.

(5) Combination grades may be designated by abbreviations of the grades preceded by the abbreviation "Comb.", as "Comb. U. S. Fcy.-U. S. No. 1".

STANDARDS FOR CONDITION

§ 51.317 *Standards for condition.* (a) The apples in any lot shall be generally tightly packed when in baskets, and generally fairly tightly or tightly packed when in boxes.

(b) Not more than 5 percent of the apples in any lot shall be further advanced in maturity than firm ripe.

(c) Not more than 5 percent of the apples in any lot shall be damaged by storage scab.

(d) Not more than a total of 5 percent of the apples in any lot shall be damaged by bitter pit, Jonathan spot, scald, internal breakdown, water core, freezing, decay, or other such condition factors: *Provided*, That:

(1) Not more than 2 percent shall be allowed for apples affected by decay;

(2) Not more than 2 percent shall be allowed for damage by internal breakdown; and,

(3) Not more than 2 percent of slight scald shall be permitted for apples properly packed in oiled paper or which have been especially treated with oil to prevent scald; otherwise, the apples must be free from scald.

(e) Any lot of apples shall be considered as meeting the standards for conditions if the entire lot averages within the requirements specified: *Provided*, That no sample from the containers in any lot is found to exceed double the percentages specified, except that for packages which contain 10 pounds or less, individual packages in any lot are not restricted as to the percentage of defects if the entire lot averages within the tolerances specified.

DEFINITIONS

§ 51.318 *Mature.* "Mature" means that the apples have reached the stage of growth which will insure the proper completion of the ripening process. Before a mature apple becomes overripe it will show varying degrees of firmness, depending upon the stage of the ripening process. The following terms are used for describing these different stages of firmness of apples:

(a) "Hard" means apples with a tenacious flesh and starchy flavor.

(b) "Firm" means apples with a tenacious flesh but which are becoming crisp with a slight starchy flavor, except the Delicious variety.

(c) "Firm ripe" means apples with crisp flesh except that the flesh of the apples of the Gano, Ben Davis, and Rome Beauty varieties may be slightly mealy.

(d) "Ripe" means apples with mealy flesh and soon to become soft for the variety.

§ 51.319 *Overripe.* "Overripe" means apples which are dead ripe, with flesh very mealy or soft, and past commercial utility.

§ 51.320 *Carefully hand-picked.* "Carefully hand-picked" means that the apples do not show evidence of rough handling or of having been on the ground.

§ 51.321 *Clean.* "Clean" means that the apples are free from excessive dirt, dust, spray residue and other foreign material.

§ 51.322 *Well formed.* "Well formed" means that the apple has the normal shape characteristic of the variety, except that the shape may be slightly irregular, provided, it does not detract from the general appearance of the apple.

§ 51.323 *Injury.* "Injury" means any defect which more than slightly affects the appearance, or the edible or shipping quality of the apples.

(a) Russeting in the stem cavity or calyx basin which cannot be seen when the apple is placed stem end or calyx end down on a flat surface, shall not be considered in determining whether or not an apple is injured by russeting, except that rough or bark-like russeting in the stem cavity or calyx basin shall be considered as injury when the appearance of the apple is materially affected. The following types and amounts of russeting outside of the stem cavity or calyx basin, shall be considered as injury:

(1) Smooth net-like russeting, when an aggregate area of more than 5 percent of the surface is covered, and the color of the russeting shows no very pronounced contrast with the background color of the apple, or lesser amounts of more conspicuous net-like russeting when the appearance is affected to a greater extent than the above amount permitted.

(2) Smooth, solid russeting which covers an aggregate area of more than one-half inch in diameter, and the pattern and color of the russeting shows no very pronounced contrast with the background color of the apple, or lesser amounts of more conspicuous solid russeting when the appearance is affected to a greater extent than the above amount permitted.[1]

(3) Slightly rough russeting which covers an aggregate area of more than one-fourth inch in diameter.[1]

(4) Rough russeting, unless it is well within the stem cavity or calyx basin and is not readily apparent.

(b) Any one of the following defects, on any combination thereof, the seriousness of which exceeds the maximum allowed for any one defect, shall be considered as injury:

(1) Sunburn or spray burn, when the discolored area does not blend into the normal color of the fruit.

(2) Dark brown or black limb rubs which affect a total area of more than one-eighth inch in diameter, except that light brown limb rubs of a russet character shall be considered under the definition of injury by russeting.[1]

(3) Hail marks, drought spots or other similar depressions or scars where there is appreciable discoloration other than russeting, or when the indentations are not superficial, or when an individual indentation exceeds one-eighth inch in diameter, or the total affected area exceeds one-fourth inch in diameter.[1]

(4) Stem or calyx cracks which are not well healed, or well healed stem or calyx cracks which exceed a length of one-eighth inch.

(5) Diseases:

(i) Cedar rust infection which affects a total area of more than one-eighth inch in diameter.[1]

(ii) Sooty blotch or fly speck which is thinly scattered over more than 5 percent of the surface, or dark, heavily concentrated spots which affect an area of more than one-fourth inch in diameter.[1]

(iii) Red skin spots which are thinly scattered over more than one-tenth of the surface, or dark, heavily concentrated spots which affect an area of more than one-fourth inch in diameter.[1]

(6) Insects:

(i) Any healed sting or healed stings which affect a total area of more than one-eighth inch in diameter including any encircling discolored rings.[1]

(ii) Worm holes.

§ 51.324 *Fairly well formed.* "Fairly well formed" means that the apple may be slightly abnormal in shape but not to an extent which detracts materially from its appearance.

§ 51.325 *Damage.* "Damage" means any defect which materially affects the appearance, or the edible or shipping quality of the apples.

(a) Russeting in the stem cavity or calyx basin which cannot be seen when the apple is placed stem end or calyx end down on a flat surface shall not be considered in determining whether or not an apple is damaged by russeting, except that excessively rough or bark-like russeting in the stem cavity or calyx basin shall be considered as damage when the appearance of the apple is materially affected. The following types

[1] The area refers to that of a circle of the specified diameter.

and amounts of russeting outside of the stem cavity or calyx basin, shall be considered as damage:

(1) Russeting which is excessively rough on Roxbury Russet and other similar varieties.

(2) Smooth net-like russeting, when an aggregate area of more than 15 percent of the surface is covered, and the color of the russeting shows no very pronounced contrast with the background color of the apple, or lesser amounts of more conspicuous net-like russeting when the appearance is affected to a greater extent than the above amount permitted.

(3) Smooth solid russeting, when an aggregate area of more than 5 percent of the surface is covered, and the pattern and color of the russeting shows no very pronounced contrast with the background color of the apple, or lesser amounts of more conspicuous solid russeting when the appearance is affected to a greater extent than the above amount permitted.

(4) Slightly rough russeting which covers an aggregate area of more than one-half inch in diameter.[1]

(5) Rough russeting which exceeds one-fourth inch in diameter, unless it is well within the stem cavity or calyx basin and is not readily apparent.[1]

(b) Any one of the following defects, or any combination thereof, the seriousness of which exceeds the maximum allowed for any one defect, shall be considered as damage:

(1) Sunburn or spray burn which has caused blistering or cracking of the skin, or when the discolored area does not blend into the normal color of the fruit unless the injury can be classed as russeting.

(2) Limb rubs which affect a total area of more than one-half inch in diameter, except that light brown limb rubs of a russet character shall be considered under the definition of damage by russeting.[1]

(3) Hail marks, drought spots, or other similar depressions or scars when the skin has not been broken and the injury is more than slightly depressed or affects a total area of more than one-half inch in diameter; or hail marks or similar scars when the skin has been broken and the injury is not well healed, or is more than slightly depressed, or affects an aggregate area of more than one-fourth inch in diameter.[1]

(4) Stem or calyx cracks which are not well healed, or well healed stem or calyx cracks which exceed an aggregate length of one-fourth inch.

(5) Diseases:

(i) Scab spots which affect a total area of more than one-fourth inch in diameter.[1]

(ii) Cedar rust infection which affects a total area of more than one-fourth inch in diameter.[1]

(iii) Sooty blotch or fly speck which is thinly scattered over more than one-tenth of the surface, or dark, heavily concentrated spots which affect an area of more than one-half inch in diameter.[1]

(iv) Red skin spots which are thinly scattered over more than one-tenth of the surface, or dark, heavily concentrated spots which affect an area of more than one-half inch in diameter.[1]

(6) Insects:

(i) Any healed sting or healed stings which affect a total area of more than three-sixteenths inch in diameter including any encircling discolored rings.[1]

(ii) Worm holes.

§ 51.326 *Seriously deformed.* "Seriously deformed" means that the apple is so badly misshapen that its appearance is seriously affected.

§ 51.327 *Serious damage.* "Serious damage" means any defect which seriously affects the appearance, or the edible or shipping quality of the apples.

(a) The following types and amounts of russeting shall be considered as serious damage:

(1) Smooth solid russeting, when more than one-half of the surface in the aggregate is covered, including any russeting in the stem cavity or calyx basin or slightly rough, or excessively rough or bark-like russeting which detracts from the appearance of the fruit to a greater extent than the amount of smooth solid russeting permitted: *Provided*, That any amount of russeting shall be permitted on Roxbury Russet and other similar varieties.

(b) Any one of the following defects, or any combination thereof, the seriousness of which exceeds the maximum allowed for any one defect, shall be considered as serious damage:

(1) Sunburn or spray burn which seriously detracts from the appearance of the fruit.

(2) Limb rubs which affect more than one-tenth of the surface in the aggregate.

(3) Hail marks, drought spots, or scars, if they materially deform or disfigure the fruit, or if such defects affect more than one-tenth of the surface in the aggregate: *Provided*, That no hail marks which are unhealed shall be permitted and not more than an aggregate area of one-half inch shall be allowed for well-healed hail marks where the skin has been broken.[1]

(4) Stem or calyx cracks which are not well healed, or well healed stem or calyx cracks which exceed an aggregate length of one-half inch.

(5) Visible water core which affects an area of more than one-half inch in diameter.[1]

(6) Diseases: (i) Scab spots which affect a total area of more than three-fourths inch in diameter.[1]

(ii) Cedar rust infection which affects a total area of more than three-fourths inch in diameter.[1]

(iii) Sooty blotch or fly speck which affects more than one-third of the surface.

(iv) Red skin spots which affect more than one-third of the surface.

(v) Bitter pit and Jonathan spot which is thinly scattered over more than one-tenth of the surface and does not materially deform or disfigure the fruit.

(7) Insects: (i) Healed stings which affect a total area of more than one-fourth inch in diameter including any encircling discolored rings.[1]

(ii) Worm holes.

Dated: June 26, 1958.

[SEAL] FRANK E. BLOOD,
Acting Deputy Administrator, Marketing Services.

[F. R. Doc. 58-5004; Filed, June 30, 1958; 8:51 a. m.]

[1] The area refers to that of a circle of the specified diameter.

[7 CFR Part 992]

IRISH POTATOES GROWN IN WASHINGTON

NOTICE OF PROPOSED EXPENSES AND RATE OF ASSESSMENT

Notice is hereby given that the Secretary of Agriculture is considering the approval of the expenses and rate of assessment hereinafter set forth, which were recommended by the State of Washington Potato Committee, established pursuant to Marketing Agreement No. 113 and Order No. 92 (7 CFR Part 992), regulating the handling of Irish potatoes grown in the State of Washington, issued under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

Consideration will be given to any data, views, or arguments pertaining thereto, which are filed in triplicate with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER. The proposals are as follows:

§ 992.210 *Expenses and rate of assessment.* (a) The reasonable expenses that are likely to be incurred by the State of Washington Potato Committee, established pursuant to Marketing Agreement No. 113 and this part, to enable such committee to perform its functions pursuant to the provisions of the marketing agreement and order, during the fiscal year ending May 31, 1959, will amount to $23,839.00.

(b) The rate of assessment to be paid by each handler, pursuant to Marketing Agreement No. 113 and this part, shall be three-eighths of one cent ($0.00375) per hundredweight of potatoes handled by him as the first handler thereof during the fiscal year.

(c) The terms used in this section shall have the same meaning as when used in Marketing Agreement No. 113 and this part.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 25, 1958.

[SEAL] FLOYD F. HEDLUND,
Deputy Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-4980; Filed, June 30, 1958; 8:46 a. m.]

[7 CFR Part 1017]

ONIONS GROWN IN CERTAIN DESIGNATED COUNTIES IN IDAHO AND MALHEUR COUNTY, OREGON

NOTICE OF PROPOSED EXPENSES AND RATE OF ASSESSMENT

Notice is hereby given that the Secretary of Agriculture is considering the approval of the expenses and rate of assessment hereinafter set forth, which were recommended by the Idaho-Eastern Oregon Onion Committee, established pursuant to Marketing Agreement No. 130 and Order No. 117 (7 CFR Part 1017), regulating the handling of onions grown in certain designated counties in Idaho and Malheur County, Oregon, issued under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

Consideration will be given to any data, views, or arguments pertaining thereto, which are filed with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER. The proposals are as follows:

§ 1017.202 *Expenses and rate of assessment.* (a) The reasonable expenses that are likely to be incurred by the Idaho-Eastern Oregon Onion Committee, established pursuant to Marketing Agreement No. 130 and this part, to enable such committee to perform its functions pursuant to the provisions of aforesaid marketing agreement and order, during the fiscal period ending June 30, 1959, will amount to $2,930.00.

(b) The rate of assessment to be paid by each handler, pursuant to Marketing Agreement No. 130 and this part, shall be three-tenths of one cent ($0.003) per hundredweight of onions handled by him as the first handler thereof during said fiscal period.

(c) The terms used in this section shall have the same meaning as when used in Marketing Agreement No. 130 and this part.

(49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 25, 1958.

[SEAL] G. R. GRANGE,
Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-4982; Filed, June 30, 1958; 8:46 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Classification No. 563]

CALIFORNIA

SMALL TRACT CLASSIFICATION; AMENDMENT

Correction

In F. R. Doc. 57-9626, appearing at page 9301 of the issue for Thursday, November 21, 1957, the second line of land description should read: Sec. 2, E½, E½ SW¼.

Office of the Secretary

JICARILLA APACHE RESERVATION

ORDINANCE RELATING TO FEDERAL INDIAN LIQUOR LAWS

Pursuant to the act of August 15, 1953 (Public Law 277—83d Cong., 1st Sess.), I certify that the following ordinance relating to the application of the Federal Indian liquor laws on the Jicarilla Apache Reservation was duly adopted by the Representative Tribal Council which has jurisdiction over the area of Indian country included in the ordinance:

Whereas, Public law 277, 83d Congress, approved August 15, 1953, provides that sections 1154, 1156, 3113, 3488 and 3618 of Title 18, United States Code, commonly referred to as the Federal Indian Liquor Laws, shall not apply to any act or transaction within any area of Indian country provided such act or transaction is in conformity with both the laws of the State in which such act or transaction occurs and with an ordinance duly adopted by the Tribe having jurisdiction over such area of Indian country, certified by the Secretary of the Interior, and published in the FEDERAL REGISTER, therefore

Be it resolved, that the introduction and possession of intoxicating beverages by Indians and non-Indians for personal use in their domiciles within the Indian country under the jurisdiction of the Jicarilla Apache Tribe shall be lawful in accordance with section 20, Chapter V, Code of Law and Order of the Jicarilla Apache Tribe and, provided that such introduction and possession is in conformity with the laws of the State of New Mexico,

Be it further resolved, that any tribal laws, resolutions or ordinances heretofore enacted which prohibits the introduction and possession of intoxicating beverages, except section 20, Chapter V, of the Law and Order Code aforementioned, are hereby repealed.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 25, 1958.

[F. R. Doc. 58-4977; Filed, June 30, 1958; 8:45 a. m.]

DEPARTMENT OF COMMERCE

Office of Business Economics

SURVEY OF AMERICAN BUSINESS INVESTMENTS IN FOREIGN COUNTRIES

INSTRUCTIONS AND REGULATIONS

SECTION I. *Introduction.* The Survey of American Business Investments in Foreign Countries is being conducted by the Department of Commerce to provide a complete and accurate account of the amount of such investments at the end of 1957, the net increase in investments during the year, the return on these investments, and certain aspects of their contributions to foreign economies as well as to our own.

The need for accurate information of this type has been recognized since the early 1920's when private investment funds from the United States began to flow to foreign countries in considerable volume. As a result of the demand for accurate statistics thus created, the Department of Commerce conducted the first survey of foreign direct investments covering the year 1929. Subsequent surveys were taken by the Commerce Department for the years 1936, 1940, and 1950.

Since 1950, the volume of foreign investments has been unprecedented, and the need for accurate statistics has been more widespread than ever. Since the last complete survey in 1950, there has been a considerable change in the pattern and distribution of foreign investments. The growing economic significance of foreign investments has further enhanced the demand for these data, both from Federal executive agencies responsible for the administration of various phases of the Government's program for international technical assistance and economic development, and from industrial and business groups. In addition, international organizations and others abroad concerned with foreign trade and economic development greatly need accurate information on the extent of and gains from private business investments.

The data collected in this survey, in addition to providing complete statistics of American foreign business investments for 1957, will serve as a base from which current data collected in sample surveys can be expanded to reliable total estimates of capital and income movement. These current statistics constitute an important part of the total United States balance of payments.

The information requested in this survey has been set up on questionnaire Forms A, B, and C, described in detail in section II, B-1 of these instructions.

Pursuant to Executive Order 10033 of February 8, 1949 (14 F. R. 561), issued under Section 8 of the Bretton Woods Agreements Act (59 Stat. 515, 22 U. S. C. 286f), the National Advisory Council on International Monetary and Financial Problems, having consulted with the Director of the Bureau of the Budget, has determined that data for 1957 on private American investments abroad are essential in order that the United States Government may continue to comply with official requests from the International Monetary Fund for balance-of-payments information.

In accordance with sections 2 (b) and 2 (c) of Executive Order 10033, the Director of the Bureau of the Budget has

designated the Commerce Department as the Federal executive agency to collect the required data and the Secretary of Commerce has assigned this responsibility to the Office of Business Economics, Department of Commerce.

Replies on Form A, Form B (except for Part III) and Form C are therefore mandatory under section 8 (b) of the Bretton Woods Agreement Act cited above.

No reporter is required or requested to submit replies to any specific question on these forms, if by so doing the security laws of a foreign country are violated.

This survey has been approved by the Bureau of the Budget under the Federal Reports Act (Pub. Law No. 831, 77th Cong.). All replies will be held in confidence by the Balance of Payments Division, Office of Business Economics, under the provisions of section 4 (b) of that Act and section 8 (c) of the Bretton Woods Agreements Act cited above.

Inasmuch as the Survey involves a foreign affairs function of the United States, section 4 of the Administrative Procedure Act does not apply. In any event it is found that because of the nature of the Survey, the fact that it is required under the Bretton Woods Agreements Act upon appropriate request, and that, consequently, the Instructions and Forms are merely declaratory of that Act and Executive Order above mentioned, no useful purpose would be served by notice and public procedure thereon, the same being impracticable and unnecessary. Inasmuch as the required reports will not be due for at least 30 days from publication of these instructions, there is no need for postponement of their effective date, and such instructions are, therefore, effective upon publication in the FEDERAL REGISTER.

SINCLAIR WEEKS,
Secretary of Commerce.

SEC. II. *General instructions*—A. *Who must report.* 1. Basic requirement: A report is required from every corporation, partnership, estate or trust, individual, or any other person, or closely related group of persons subject to the jurisdiction of the United States, and ordinarily residing within the United States, having at the close of business on December 31, 1957:

a. Control of a foreign business organization owned directly or in conjunction with an affiliated person, foreign or domestic. (For complete description see subsection E–5, E–6 and E–7.)

b. Outright ownership of real property located outside of the United States, except real property held for personal use and not productive of income.

c. Ownership of a sole proprietorship type of business enterprise, located outside of the United States.

d. Ownership of the voting stock of a foreign corporation to the extent of at least 10 percent, but less than 25 percent, or an analogous interest in an unincorporated foreign enterprise (see section V).

Reports are required covering the above types of property if ownership certificates or the equivalent were legally in existence and held by the reporter on December 31, 1957, even though the assets may have been destroyed or expropriated by government action prior to that date. Such holdings are to be reported as of the last date that information relating to the foreign organization is available.

2. Estates and trusts: Direct foreign investments held by a domestic estate or trust, i. e., an estate or trust created under the laws of the United States or any subdivision thereof, shall be reported by the fiduciary and not by a beneficiary. Such property must be reported whether or not any beneficiary is subject to the laws of the United States or any subdivision thereof. Any trust actually created in the United States, even though the trust instrument provides that the trust shall be subject to the laws of a foreign country, must report.

3. Persons beneficially interested in property: If direct foreign investments beneficially owned by a person subject to the jurisdiction of the United States were held by or in the name of another, only the person having the beneficial interest shall report, except as specifically provided above regarding domestic estates and trusts.

4. More than one person owning an interest in the same foreign organization or foreign property.

a. *Form B.* Each person is required to report if the aggregate ownership of the affiliated persons in the allied foreign organization totals 25 percent or more of the voting securities unless affiliated through an estate or trust as provided in subsection A–2 above.

b. *Form C.* Each person owning an interest of 10 percent or more in an associated foreign enterprise is required to report.

5. United States branches and offices of foreign persons: A branch or office in the United States of a person within a foreign country shall report with respect to property in foreign countries allocated to, held for the use of, or claimed by such branch or office, but shall not report other property of the foreign person.

B. *Forms to be used.*[1] 1. Each reporter is required under the law to submit reports on three types of forms. These three forms are:

Form A. This form is to provide, in addition to certain information identifying the reporting organization, a complete list of all foreign organizations allied or associated with the reporter.

Form B. One Form B is required for each allied foreign organization listed by the reporter on Form A. In the case of affiliated persons allied with the same foreign organization, reports on Form B are required from each. However, only one of the affiliated persons is required to complete part II of Form B. Part II may be omitted only if the reporter has definite knowledge that one of the affiliates is completing that part of the form, and all reporters remain fully liable for the complete report. In the event that part II of Form B is omitted, the reporter is required to indicate, in the space provided on the form, the name of the affiliate who is including part II with its report. Part III of this form is voluntary.

Form C. One Form C is required for each associated foreign organization listed by the reporter on Form A. In the case of affiliated persons associated with the same foreign organization, reports on Form C are required from each. However, a consolidated report on Form C may be submitted by one of the affiliated persons, provided that the names and proportionate interests of all affiliated persons are listed. (Note that Form C is to be used only when the combined interest of affiliated persons totals less than 25 percent; where the combined interest is 25 percent or more a report on Form B is required.)

C. *Property not to be reported.* 1. Basic requirement: Properties not specifically included in subsection A–1 are to be excluded from the scope of this survey and are not to be reported. Properties excluded from this survey include:

a. Foreign currency, foreign government bonds, or other foreign government securities, except as they are included among the assets of a foreign allied or associated organization.

b. Notes, bonds, or other documents of indebtedness issued by a foreign organization, not allied with the reporter nor with any affiliates of the reporter, except as they are included among the assets of an allied or associated foreign organization.

c. Real or personal property held for the reporter's personal use, e. g., hunting lodges, homes, automobiles, etc., retained for personal use and not productive of income.

D. *Exemptions.* 1. Exemption based on value of property: An individual whose property in foreign countries otherwise subject to reporting has an aggregate value of less than $25,000 is not required to report. Value is to be determined by the cost, reporter's estimated market value, or the book value as carried on the books of the foreign organization converted into United States dollars, whichever is the greatest. Corporations, partnerships, and all other persons except individuals are required to report irrespective of the value of their foreign investments.

2. Certain persons exempted regardless of the amount or kind of property. Report need not be made by any person who is within any of the following categories on or after December 31, 1957, regardless of the amount or kind of property otherwise reportable by such persons: (1) Members of the Armed Forces of the United States serving outside continental United States; (2) citizens of the United States who permanently reside in a foreign country; (3) officers or employees of foreign governments and members of the immediate families of such persons, provided they are not citizens of the United States; (4) religious bodies, charitable organizations and other nonprofit organizations, except for the interests of such groups in foreign

[1] Copies of all forms and instructions filed as part of the original document and may be obtained from either the United States Department of Commerce, Office of Business Economics, Balance of Payments Division, Washington 25, D. C., or from any field office of the United States Department of Commerce.

organizations conducting business for profit.

E. *Definitions.* For the purpose of this Survey and any instructions or rulings issued hereunder, the following definitions are prescribed:

1. "Person" shall include an individual, partnership, association, corporation, estate or trust, or other organization.

2. "Person subject to the jurisdiction of the United States" shall mean (1) any citizen of the United States (but only citizens ordinarily resident in the United States are required to report); (2) any corporation or other organization created or organized under the laws of the United States or any State, territory, district or possession thereof; (3) any individual resident in the United States on December 31, 1957, except as specifically excluded in subsection D–2 above.

3. "United States" shall mean the 48 States, the District of Columbia, the Commonwealth of Puerto Rico, the Panama Canal Zone, and any territory or possession of the United States.

4. "Affiliates" shall mean (1) (a) individuals married to each other, their direct forebears, and their children; (b) brothers and sisters; (c) estates of persons, or trusts for the benefit of or created by persons, are deemed to be affiliates of such persons and of each other. (2) Any group of United States persons who ordinarily exercise their voting rights in a foreign organization as a unit. (3) In relation to any corporation or other organization issuing stock or similar securities, any person who, directly or indirectly, owned, controlled, or held with power to vote, 10 percent or more of the outstanding voting securities thereof. (4) As to any other organization, any person who owned or controlled 10 percent or more of the comparable ownership rights therein.

Any corporation or other United States organization of which a person was an affiliate also shall be deemed to have been an affiliate of such person, and all persons who were direct affiliates of the same United States person shall be deemed to have been affiliates of each other.

5. "Controlled" organization. The ownership of 25 percent or more of the voting securities of a corporation, or of similar certificates of ownership in other types of organizations, shall constitute control of that organization for the statistical purposes of this survey. Note that reports are required for each such "allied" foreign organization as defined immediately below. Please note that organizations in Canada are foreign organizations and are therefore reportable.

6. "Primary allied foreign organization" shall include the following organizations located in or under the jurisdiction of a foreign country:

a. Foreign corporation: A foreign corporation shall be said to be a "primary allied foreign organization" if any one of the following conditions is met:

First. The reporting organization owns 25 percent or more of the voting securities of the foreign corporation.

Second. The reporting organization owns less than 25 percent of the voting securities of the foreign corporation; however, affiliates, either domestic or foreign, of the reporting organization own additional voting securities in the foreign corporation which when added to the amount owned by the reporter after giving effect to the proportionate interest of the reporting organization in foreign affiliates total 25 percent or more.

Third. The reporting organization owns none of the voting securities of a foreign corporation, but does own bonds, notes, or other certificates of indebtedness of the foreign corporation, or has direct dealings with the foreign corporation by exchange of merchandise or rendering services, or the foreign organization owns securities or obligations of the reporting company or its affiliates; and 25 percent or more of the voting securities of the foreign corporation are owned by affiliates (domestic or foreign) of the reporter.

Examples—First. A United States corporation (company DX) owns 25 percent or more of the voting securities of a foreign corporation (company FZ). Company FZ must be reported by company DX as a "primary allied foreign organization."

Second. A United States corporation (company DX) owns some, but less than 25 percent of the voting securities of a foreign corporation (company FZ). A second corporation (company DFY) either domestic or foreign, is affiliated with company DX and owns voting securities of the foreign corporation (company FZ) which when added to the voting securities owned by company DX total 25 percent or more of voting interests of company FZ. Company FZ must be reported as a "primary allied foreign organization" by the United States company DX. If the affiliated company DFY is a United States corporation, the foreign company FZ must be reported as a "primary allied foreign organization" by both companies DX and DFY. If the affiliated company DFY is a foreign organization, company FZ must be reported as a "secondary allied foreign organization" as well as a "primary allied foreign organization." (See subsection E–7.)

Third. A United States corporation (company DX) owns none of the voting securities of a foreign corporation (company FZ). Company DX owns bonds or notes of indebtedness issued by company FZ, or sells merchandise to or buys merchandise from company FZ, or renders services to company FZ. An affiliate, or a group of affiliates (either domestic or foreign), of company DX owns a total of 25 percent or more of the voting securities of the foreign corporation (company FZ). Company FZ must be reported as a "primary allied foreign organization" by company DX and by each of the United States affiliates who own certificates of indebtedness or have dealings with the foreign corporation. If any or all of the affiliates of company DX are foreign organizations, company FZ must also be reported as a "secondary allied foreign organization." (See subsection E–7.)

b. Partnership: A partnership in which a person under the jurisdiction of the United States is one of the partners, whether general, special, limited, or otherwise.

c. Branch: The interest of any person subject to the jurisdiction of the United States in property in any foreign country allocated to or held in the name or for the use of any branch, depot, or office outside the United States maintained by such person for the transaction of any of his business. Foreign operations conducted by United States corporations in their own names and not through foreign incorporated companies are to be reported as branch operations.

d. A business enterprise or real property owned outright by a resident of the United States.

7. "Secondary allied foreign organization" shall be defined as follows:

a. A foreign organization allied with the reporter through the ownership of at least 25 percent of its voting securities or other certificates of ownership, through a primary or other secondary allied foreign organization, after giving effect to the proportionate interest of the reporter in the voting securities of the primary or other secondary allied foreign organization. (For example: ownership by reporter of 50 percent of the voting stock of a primary allied foreign organization, which in turn owns 50 percent of the voting stock of a second foreign organization, would cause the second foreign organization to be reportable as a secondary allied foreign organization.)

b. A branch of a primary allied foreign organization or of a secondary allied foreign organization engaged in a different type of business or located in a country foreign to the country of the primary (or the secondary) allied foreign organization.

c. If a foreign organization qualifies as a primary allied foreign organization under subsection 6a, Second and Third above, it must also be reported as a secondary allied foreign organization to each of the reporting organization's foreign affiliates owning any of the voting securities of that foreign organization (see Second and Third examples under subsection 6a).

d. Branches or subsidiaries of a primary allied foreign organization located in the same country and engaged in the same type of business as the primary organization may be combined and one report submitted covering the activities of all of these organizations. The report must be a consolidated report showing the total activities of all organizations and not a report of the primary organization showing only the investment of the primary in the secondary organizations. Provide a list of all organizations included in such consolidations.

8. "Parent" organization. For the purpose of this survey, the parent organization is defined as the organization which owns direct interest in the allied foreign organization. In the case of a "secondary allied foreign organization" the parent organization is the "primary allied foreign organization" which owns voting securities of the "secondary allied foreign organization."

9. "Associated" foreign organization. The ownership of at least 10 percent but less than 25 percent of the voting securities of a corporation, or of similar certificates of ownership in an unincorporated foreign organization, held directly by the reporter and its United States affiliates, shall constitute association with that organization for the purposes of this survey. Note that separate reports are required for each "associated foreign organization." (When the own-

ership of the foreign organization is 25 percent or more, either entirely by the reporter or in conjunction with affiliates, the foreign organization is an "allied" foreign organization, as defined above, and reports on Form B are required.)

F. *Space on form insufficient.* When space does not permit a full answer to any question on the form, the information required should be submitted on supplementary sheets appropriately labeled and incorporated by reference under the question. To assist respondents in fulfilling this requirement, continuation sheets have been provided. All supplementary sheets, including continuation sheets, should be attached to the form to which they pertain.

G. *Required information not available.* All reasonable efforts should be made to obtain information required for reporting. When communication is impossible, or when properties have been expropriated or seized, the latest available information should be used. In case only partial information is available, it should be given with an appropriate indication. If any information not available at the time of reporting is obtained thereafter, a supplementary report should be filed promptly with a full explanation.

Every question on each form which a person is required to use in rendering his report must be answered. However, in property summaries and schedules, space not needed for supplying required information should be left entirely blank. When there is nothing to report under any question or if information is entirely lacking, state "no," "none" or "unknown," as the case may be, with an explanation if requisite to an understanding of the circumstances.

If disclosure of the information required on any form would violate the security regulations of the country in which the foreign allied or associated organization is located, reporters are specifically exempted from the requirement to report that information. If information is omitted for this reason, a note to that effect should be entered on the form.

If certain information can not be supplied because the accounts of the foreign organization can not be obtained, indicate this in the appropriate items of the form.

H. *Currency conversions and rounding of amounts.* In all items requiring financial data from the accounts of foreign allied or associated organizations, the currency customarily used in such accounts must be used in reporting. The same items must also be given in the currency of the parent organization if such conversions are ordinarily made. If such conversions are not ordinarily made, do not complete the columns referring to the books of the allied or associated foreign organization as converted by the parent organization.

Amounts may be given to the nearest thousand dollars or units of foreign currency. All amounts reported in this manner must be clearly marked, and the rounding must be done as in the following example: (Example: $1,033,033.30 would be reported as $1,033).

I. *Number of copies.* A single original copy shall be filed. In addition, each person reporting should retain a copy of his report.

J. *Time and place of filing reports.* Reports shall be filed on or before August 31, 1958, with the Department of Commerce, Office of Business Economics, Balance of Payments Division, Washington 25, D. C.

K. *Information regarding preparation of reports.* Anyone desiring information concerning this survey may direct inquiries to the United States Department of Commerce, Office of Business Economics, Balance of Payments Division, Washington 25, D. C., or to any Field Office of the United States Department of Commerce.

[F. R. Doc. 58-4942; Filed, June 30, 1958; 8:45 a. m.]

DEPARTMENT OF THE TREASURY

Office of the Secretary

[Treasury Department Order 167-31]

[CGFR 58-22]

COMMANDANT, U. S. COAST GUARD

DELEGATION OF FUNCTIONS TO THE COMMANDANT

JUNE 3, 1958.

By virtue of the authority vested in me by Reorganization Plan No. 26 of 1950 and 14 U. S. C. 631, there is transferred to the Commandant, U. S. Coast Guard, the function of the Secretary of the Treasury under 10 U. S. C. 676, of issuing orders to retain on active duty or in service in the U. S. Coast Guard Reserve persons who have qualified for retired pay under Chapter 67 of Title 10, U. S. Code.

The Commandant may make provision for the performance by subordinates in the Coast Guard of the function herein delegated.

[SEAL] A. GILMORE FLUES,
Acting Secretary of the Treasury.

[F. R. Doc. 58-4985; Filed, June 30, 1958; 8:47 a. m.]

POST OFFICE DEPARTMENT

SETTLEMENT OF CLAIMS

REDELEGATION OF AUTHORITY

The following is the text of a redelegation order, dated June 9, 1958:

Pursuant to authority of paragraph f of section 822.2 of the Postal Manual (23 F. R. 4013), authority is hereby redelegated to the Associate General Counsel (Mailability—Claims) to take final action, in my name, in the settlement of personal or property damage claims brought against the Department, and claims of postmasters for unavoidable losses by fire, burglary, or casualty.

(R. S. 161, 396, as amended; sec. 1 (b), 63 Stat. 1066; 5 U. S. C. 22, 133z-15, 369)

[SEAL] HERBERT B. WARBURTON,
General Counsel.

[F. R. Doc. 58-4978; Filed, June 30, 1958; 8:45 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-3894]

ATLANTIC REFINING CO.

NOTICE OF APPLICATION AND DATE OF HEARING

JUNE 25, 1958.

Take notice that The Atlantic Refining Company (Applicant) a Pennsylvania corporation with its principal place of business in Philadelphia, Pennsylvania, filed an application in this proceeding for authority to abandon and render service pursuant to section 7 of the Natural Gas Act, as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the subject application which is on file with the Commission and open to public inspection.

Applicant filed an application on October 1, 1954, as amended and supplemented, for authority to sell natural gas in interstate commerce to various purchasers for resale from production in the States of Texas, Louisiana, New Mexico, Oklahoma, Kansas and Wyoming, as indicated below:

Name of Buyer; Name of Field; Location: County, State

El Paso Natural Gas Co., Langlie Mattix, Lea, N. Mex.
El Paso Natural Gas Co., Various fields, Lea, N. Mex.
El Paso Natural Gas Co., Eunice, South, Lea, N. Mex.
El Paso Natural Gas Co., Blanco (Mesa Verde Formation), San Juan, N. Mex.
Delhi Oil Corp., Blanco (Dakota) Formation (Atlantic 4-A Well), San Juan, N. Mex.
El Paso Natural Gas Co., South Mattix, Lea, N. Mex.
El Paso Natural Gas Co., Denton, Lea, N. Mex.
Permian Basin Pipe Line Co., S. E. Lea County, Lea, N. Mex.
Phillips Petroleum Co., Langlie Mattix, Lea, N. Mex.
Cities Service Gas Co., Kansas-Hugoton, Kearney, Kans.
Northern Utilities Co., Riverton Dome, Fremont, Wyo.
Cities Service Gas Co., West Edmond, Oklahoma, Okla.
United Gas Pipe Line Co., Cabeza Creek, Goliad, Tex.
United Gas Pipe Line Co., South Cabeza Creek, Goliad, Tex.
United Gas Pipe Line Co., Boyce, Poehler, Gottachalt, Weesatche, Goliad, Tex.
United Gas Pipe Line Co., Triple A, San Patricio, Tex.
United Gas Pipe Line Co., Corpus Christi Bay, San Patricio, Nueces, Tex.
The Altex Corporation, Tom Graham, Jim Wells, Tex.
The Altex Corporation, Tom Graham West, Jim Wells, Tex.
Arkansas-Louisiana Gas Co., South Hallsville, Harrison, Tex.
C. V. Lyman, Kermit, Winkler, Tex.
Texas Illinois Gas Pipeline Co., East Bay City, Matagorda, Tex.
Sunray Mid-Continent Oil Corp., Jake Hamon, McMullen, Tex.
Arkansas-Louisiana Gas Co., Ada, Webster, Bienville, La.
Arkansas-Louisiana Gas Co., North Ruston, Lincoln, La.
Mississippi River Fuel Corp., Ruston, Lincoln, La.
Tennessee Gas Transmission Co., Bayou Sale, St. Mary, La.
Tennessee Gas Transmission Co., Midland-Estherwood, Acadia, La.

Texas Gas Transmission Corp., North Tepetate, Acadia, La.
Olin Gas Transmission Corp., Vixen, Caldwell, La.
Texas Gas Transmission Corp., Lewisburg, North Lewisburg, Acadia, St. Landry, La.
United Gas Pipe Line Co., Jeanerette, St. Mary, La.
United Gas Pipe Line Co., Lewisburg, Acadia and St. Landry, La.
United Gas Pipe Line Co., Sibley, Webster, La.
Arkansas-Louisiana Gas Co., North Lansing, Harrison, Tex.
El Paso Natural Gas Co., Slaughter, Cochran, Buckley and Terry, Tex.
El Paso Natural Gas Co., Midway Lane, Crockett, Tex.
El Paso Natural Gas Co., Spraberry, Midland, Glasscock, Upton and Reagan, Tex.
El Paso Natural Gas Co., Payton, Ward and Pecos, Tex.
Tennessee Gas Transmission Co., Jake Hamon, McMullen, Tex.
Tennessee Gas Transmission Co., South Hyatt, Tyler, Tex.
Tennessee Gas Transmission Co., North Minnie Back, Nueces, Tex.
Tennessee Gas Transmission Co., Mustang Island, Nueces, Tex.
Texas Eastern Transmission Corp., West Spring Creek, Tom Lyne, Clay West, Chappa Ranch, West George West, Live Oak, Tex.
Texas Eastern Transmission Corp., Meyersville, DeWitt, Tex.
Texas Eastern Transmission Corp., Willow Springs, Gregg, Tex.
Texas Eastern Transmission Corp., San Domingo, Bee, Tex.
Texas Illinois Gas Pipeline Co., Hagist Ranch, Duval, Tex.
Texas Eastern Production Co., Rhode Ranch, McMullen, Tex.
Texas Illinois Gas Pipeline Co., Clayton, Live Oak, Tex.
Transcontinental Gas Pipe Line Corp., Greta, Refugio, Tex.
Transcontinental Gas Pipe Line Corp., Thomaston, Mission Valley, Arneckeville, West Mission Valley, DeWitt, Goliad and Victoria, Tex.
Transcontinental Gas Pipe Line Corp., Odem, San Patricia, Tex.
United Gas Pipe Line Co., Burnell, North Pettus, Goliad, Bea and Karnes, Tex.

On October 25, 1954, Sunray Oil Corporation filed a protest to the sale of natural gas by Applicant in the Jake Hamon Field, McMullen County, Texas, to Texas Eastern Transmission Corporation, assignee of Wilcox Trend Gathering System, Inc., as shown in the tabulation above.

Sunray states that it is the operator and sells Applicant's working interests in the gas production in the lease under contract with Wilcox Trend Gathering System, Inc., and Atlantic does not sell to Sunray but that Atlantic's share of the gas is sold pursuant to Sunray's sales contract with Texas Eastern, to which contract Atlantic is not a signatory party.

By letter filed January 31, 1955, Atlantic states that Sunray's contention that Atlantic does not sell to Sunray is correct. Thus, this portion of Atlantic's application is subject to dismissal pursuant to Section 154.91 (d) of the Commission's rules.

Applicant was authorized in Docket No. G–10486 by order issued October 4, 1956, to abandon service to United from the Jeanerette Field, St. Mary Parish, Louisiana.

Applicant filed other amendments and supplements as follows:

(1) On May 15, 1956, deleting a portion of the acreage dedicated to United Gas Pipe Line Company in the Sibley Field, Webster Parish, Louisiana, assigned to Walter Duncan.

(2) On July 9, 1956, to substitute a contract dated October 16, 1954 (Atlantic's Rate Schedule No. 28), for a "Letter of Intent" dated May 14, 1952, covering Applicant's sale of gas to El Paso Natural Gas Company (El Paso) from the Spraberry Field, Midland, Glasscock, Upton and Reagan Counties, Texas.

(3) On July 12, 1956, to include the additional sale of gas to Texas Eastern Transmission Corporation produced from the Brysch and Richter Units in the West George West Field, Live Oak County, Texas.

(4) On September 21, 1956, deleting a portion of the acreage dedicated to United Gas Pipe Line Company in the Sibley Field, Webster Parish, Louisiana assigned to Rees R. Oliver.

(5) On October 25, 1956, deleting a portion of the acreage dedicated to Arkansas Louisiana Gas Company (Arkansas Louisiana), namely, the Rickerson Gas Unit, Ada Field, Webster Parish, Louisiana, assigned to Harry W. Bass by instrument dated May 27, 1955.

(6) On October 25, 1956, for abandonment of service to El Paso pursuant to section 7 (b) of the Act from the Justis Lease located in the Langlie-Mattix Field, Lea County, New Mexico, since Atlantic's interest therein became vested in El Paso, the buyer, and Atlantic has no further interest therein.

(7) On November 14, 1956, for authorization to sell additional gas to Arkansas Louisiana from acreage in the Ada Field, Webster Parish, Louisiana, acquired from Lucerne Corporation.

(8) On February 4, 1957, deleting a portion of the acreage dedicated to United in the Sibley Field, Webster Parish, Louisiana, assigned to Southwest Natural Production Company by two assignments, both dated October 31, 1956.

(9) On February 26, 1957, deleting a portion of the acreage dedicated to El Paso in the Spraberry Field, Upton County, Texas, assigned to W. E. Bakke subject to assignments executed April 2, 1956, April 15, 1956, and June 14, 1956.

(10) On April 8, 1957, deleting a portion of the acreage dedicated to United in the Sibley Field, Webster Parish, Louisiana, assigned to Dade Petroleum Company, Inc., subject to two assignments dated August 6 and 21, 1956.

(11) On May 24, 1957, deleting a portion of the acreage dedicated to United in the Sibley Field, Webster Parish, Louisiana, assigned to Jack W. Grigsby by instrument dated April 30, 1956.

(12) On July 1, 1957, submitting statements with respect to sale made to El Paso from the Denton Plant, Lea County, New Mexico, showing list of co-owners and percentage owned by each in said plant, and list of producers in the South Denton and Dean Fields selling on a percentage sales basis to said plant.

(13) On December 12, 1957, deleting a portion of the acreage dedicated to El Paso in the Spraberry Field, Glasscock County, Texas, to The Hanley Company subject to an assignment executed January 17, 1956.

(14) On December 23, 1957, deleting a portion of the acreage dedicated to El Paso in the Spraberry Field, Midland County, Texas, to W. E. Bakke, subject to an assignment executed August 15, 1957.

(15) On February 10, 1958, with respect to sale to Tennessee Gas Transmission Company from the North Minnie Bock Field, Nueces County, Texas, to substitute a revised Exhibit A to sales contract dated October 14, 1949, correcting dedicated acreage description.

(16) On February 10, 1958, adding a 40-acre tract to its dedicated acreage to El Paso in the Langlie-Mattix Field, Lea County, New Mexico.

(17) On May 22, 1958, deleting a portion of the acreage dedicated to Arkansas Louisiana in the North Lansing Field, Harrison County, Texas, assigned to Wiley Page by instrument dated October 8, 1957.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on July 24, 1958 at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 18, 1958. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] MICHAEL J. FARRELL,
Acting Secretary.

[F. R. Doc. 58–4987; Filed, June 30, 1958; 8:47 a. m.]

[Docket No. G–9065 etc.]

HUNT OIL CO.

NOTICE OF POSTPONEMENT OF HEARING

JUNE 24, 1958.

In the matter of Hunt Oil Company, Docket Nos. G–9065, G–9568, G–11124, G–11360, G–13157, G–13191, G–13468, G–13473, G–13504, G–13530, G–14082, G–14408.

Upon consideration of the motion filed May 29, 1958, by Counsel for Hunt Oil Company for postponement of the hearing now scheduled for June 30, 1958, in the above-designated matter;

The hearing now scheduled for June 30, 1958, is hereby postponed to September 15, 1958, at 10:00 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C.

[SEAL] MICHAEL J. FARRELL,
Acting Secretary.

[F. R. Doc. 58-4988; Filed, June 30, 1958; 8:47 a. m.]

[Docket Nos. G-11902, G-12137]

J. A. CHAPMAN ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

JUNE 25, 1958.

In the matters of J. A. Chapman et al.,[1] Docket No. G-11902; Consolidated Gas Utilities Corporation, Docket No. G-12137.

Take notice that Consolidated Gas Utilities Corporation (Consolidated), a natural gas company with its principal place of business at Oklahoma City, Oklahoma, filed an application in Docket No. G-12137 on March 4, 1957, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of approximately 1,130 feet of 4½ inch O. D. supply lateral pipeline extending from a point of connection with Consolidated's existing 6-inch lateral pipeline to a proposed meter station to be constructed near the Searl No. 3 gas well located in the SE¼ of the SE¼ of Section 23, Township 27 North, Range 4 West in Grant County, Oklahoma, together with appurtenant facilities to enable it to receive natural gas purchased from the said well from J. A. Chapman, Cresent Oil and Gas Corporation, Kenneth A. Spencer and A. R. Staley, all as more fully described in the application which is on file with the Commission and open to public inspection. The estimated costs of the proposed construction is $4,358, which cost will be financed from company funds.

On February 4, 1957, J. A. Chapman, of Tulsa, Oklahoma, filed an application in Docket No. G-11902 for a certificate of public convenience and necessity authorizing the sale of natural gas in interstate commerce for resale to Consolidated from production from the Searl No. 3 well above described, pursuant to gas purchase contract dated December 18, 1956. The application is on file with the Commission and open to public inspection.

These related matters should be heard upon a consolidated record and disposed of as promptly as possible under applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on July 23, 1958, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in, and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 14, 1958. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] MICHAEL J. FARRELL,
Acting Secretary.

[F. R. Doc. 58-4989; Filed, June 30, 1958; 8:47 a. m.]

[Docket No. G-15105]

PACIFIC NORTHWEST PIPE LINE CORP.

NOTICE OF APPLICATION AND DATE OF HEARING

JUNE 25, 1958.

Take notice that Pacific Northwest Pipe Line Corporation (Applicant), a Delaware corporation, with its principal place of business in Salt Lake City, Utah, filed an application on May 13, 1958, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of natural gas facilities for the delivery and sale of natural gas as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open to public inspection.

Applicant seeks authority to construct and operate a tap with metering appurtenances on its main 26-inch high pressure transmission line in Daggett County, Utah, approximately 1,500 feet north of the community of Flaming Gorge, Utah, in order to sell and deliver natural gas to Utah Gas Service Company (Utah Gas) for resale in Flaming Gorge and environs.

The application states that Utah Gas is an existing customer of Applicant at other locations in Utah and that it has now obtained a franchise from Daggett County, a certificate from the Public Service Commission of Utah and a license from the United States of America, Department of the Interior, Bureau of Reclamation, to construct and operate its proposed distribution system upon property of the United States designated as the Flaming Gorge Unit of the Colorado River Storage Project.

Applicant estimates the requirements of Utah Gas for the first three years of service to Flaming Gorge as follows:

[Based on 1,000 Btu per cubic feet of gas]

Years of service	1	2	3
Peak day (Mcf)	192	209	209
Annual (Mcf)	19,200	20,900	20,900

Applicant states that the gas will be used for residential and commercial purposes, including a school and laboratory.

Applicant estimates the cost of the proposed tap and metering station will be $18,190, to be paid from currently available funds.

The application states that Utah Gas will construct a lateral transmission line from the proposed meter station of applicant and will in addition construct a local distribution system at an estimated cost of $45,000.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on August 26, 1958, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 14, 1958. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] MICHAEL J. FARRELL,
Acting Secretary.

[F. R. Doc. 58-4990; Filed, June 30, 1958; 8:48 a. m.]

[Docket No. G-15336]

PERMIAN BASIN PIPELINE CO.

ORDER PROVIDING FOR HEARING AND SUSPENDING PROPOSED REVISED TARIFF SHEETS

JUNE 25, 1958.

On May 26, 1958, Permian Basin Pipeline Company (Permian) tendered for filing Second Revised Sheet No. 5 and

[1] J. A. Chapman and the other parties named above are signatory parties to the gas sales contract with Consolidated, and co-owners of the well involved herein.

First Revised Sheet No. 6 to its FPC Gas Tariff, Original Volume No. 1, proposing to increase charges to Northern Natural Gas Company (Northern) under Permian's "cost of service" type Rate Schedule P–1 (available to Northern exclusively) by an amount estimated as $762,000, or about 3.0 percent, annually. Permian requests that such Revised Sheets become effective July 1, 1958.

In support of the proposed increased rates and charges, Permian claims the necessity for adjustment of its costs, including estimated increased costs of purchased gas, estimated increases in other operating expenses, increase in the allowance made in its rate base for working capital, increase in annual rate of return from 6 percent to 6.5 percent, and increase in income taxes. In connection with its proposal, Permian has submitted a cost of service study covering actual sales for the 12-month period ended December 31, 1957, adjusted for estimated and known changes through August 31, 1958.

By order issued October 3, 1957, under the authority of sections 5 and 15 of the Natural Gas Act, the Commission instituted an investigation of Permian's rates, charges and classifications to determine inter alia whether any of such items are unjust, unreasonable, unduly discriminatory, or preferential. Among other questionable items appearing in Permian's present proposals are (a) claimed increases in Permian's cost of purchased gas which are effective subject to refund or under suspension, (b) Permian's classification of costs which deviates from methods heretofore approved by the Commission, and (c) the necessity for the allowance of a 6.5 percent rate of return and associated income taxes, in lieu of the present 6 percent rate.

The increased rates and charges and the amended rate filings proposed in Second Revised Sheet No. 5 and First Revised Sheet No. 6 to Permian's FPC Gas Tariff, Original Volume No. 1 have not been shown to be justified and may be unjust, unreasonable, unduly discriminatory or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing, pursuant to the authority contained in sections 4 and 15 of such Act, concerning the lawfulness of the rates, charges, classifications, and services contained in Permian's FPC Gas Tariff, Original Volume No. 1, as proposed to be amended by Second Revised Sheet No. 5 and First Revised Sheet No. 6 thereto, and that the aforementioned rate filings be suspended as hereinafter ordered and the use thereof be deferred pending hearing and decision thereon, except as they may become effective as provided by the Natural Gas Act.

The Commission orders:

(A) Pursuant to the authority contained in sections 4 and 15 of the Natural Gas Act, a public hearing be held at a date to be designated by notice from the Secretary of the Commission, in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the lawfulness of the rates, charges, classifications, and services contained in Permian's FPC Gas Tariff, Original Volume No. 1, as proposed to be amended by Second Revised Sheet No. 5 and First Revised Sheet No. 6 thereto.

(B) Pending such hearing and decision thereon, Second Revised Sheet No. 5 and First Revised Sheet No. 6 to Permian's FPC Gas Tariff, Original Volume No. 1, are hereby suspended and the use thereof deferred until December 1, 1958, and until such further time as they may be made effective in the manner prescribed by the Natural Gas Act.

(C) Interested State Commissions may participate as provided by Section 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the Commission's rules of practice and procedure.

By the Commission.

[SEAL] MICHAEL J. FARRELL,
Acting Secretary.

[F. R. Doc. 58–4991; Filed, June 30, 1958; 8:48 a. m.]

GENERAL SERVICES ADMINISTRATION

[Delegation of authority 346]

SECRETARY OF DEFENSE

DELEGATION OF AUTHORITY TO DISPOSE OF 0.538 ACRE OF LAND AT NAVAL INDUSTRIAL RESERVE AIRCRAFT PLANT, KANSAS CITY, MISSOURI

1. Pursuant to authority vested in me by the provisions of the Federal Property and Administrative Services Act of 1949 (63 Stat. 377), (herein referred to as the "act"), authority is hereby delegated to the Secretary of Defense to dispose of 0.538 acre of unimproved land at the Naval Industrial Reserve Aircraft Plant, Kansas City, Missouri, by negotiated sale or otherwise; on such terms as may be advantageous to the United States: *Provided*, That in the event of a negotiated disposal not less than the appraised fair market value shall be obtained.

2. The authority conferred herein shall be exercised in accordance with the act and regulations of General Services Administration issued pursuant thereto; except that in view of the requirement for the land by the City of Kansas City, Missouri, for the construction and operation of a fire station, it has been determined that screening of the properties with other Federal agencies would serve no useful purpose. Therefore, the land is determined to be surplus property.

3. The authority delegated herein may be redelegated to any officer or employee of the Department of Defense.

4. This delegation shall be effective as of the date hereof.

Dated: June 24, 1958.

FRANKLIN FLOETE,
Administrator.

[F. R. Doc. 58–4993; Filed, June 30, 1958; 8:48 a. m.]

OFFICE OF DEFENSE MOBILIZATION

[ODM (DPA) Request No. 2 (a)]

INTEGRATION COMMITTEE ON MEDIUM AND HEAVY GUN TANKS AND ALLIED COMBAT VEHICLES

NOTICE OF AMENDMENT OF PLAN AND REGULATIONS

In accordance with the provisions of section 708 of the Defense Production Act of 1950, as amended, the Plan and Regulations of Ordnance Corps Governing the Integration Committee on Medium and Heavy Gun Tanks and Allied Combat Vehicles has been amended to extend membership eligibility pursuant to the Defense Production Act Amendments of 1955, after consultation with respect thereto between the Attorney General, the Chairman of the Federal Trade Commission and the Director of the Office of Defense Mobilization.

This amended voluntary plan has been approved by the Director of the Office of Defense Mobilization and has been found to be in the public interest as contributing to the national defense.

The following companies have agreed to participate in the amended plan, and this list supersedes the acceptances published in 17 F. R. 2022, March 7, 1952.

Acceptances

Chrysler Corporation, Detroit, Mich.
General Motors Corporation, Detroit, Mich.
Ford Motor Company, Dearborn, Mich.
Pacific Car & Foundry Company, Renton, Wash.

(Sec. 708, 64 Stat. 818, as amended; 50 U. S. C. App. Sup. 2158; Executive Order 10480, August 14, 1953, 18 F. R. 4939)

Dated: June 26, 1958.

GORDON GRAY,
Director.

[F. R. Doc. 58–4986; Filed, June 30, 1958; 8:47 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 1–3219]

FAJARDO EASTERN SUGAR ASSOCIATES

NOTICE OF APPLICATION TO STRIKE FROM LISTING AND REGISTRATION, AND OF OPPORTUNITY FOR HEARING

JUNE 25, 1958.

In the matter of Fajardo Eastern Sugar Associates, Common Stock, File No. 1–3219.

Philadelphia-Baltimore Stock Exchange has made application, pursuant to section 12 (d) of the Securities Exchange Act of 1934 and Rule X–12D2–1 (b) promulgated thereunder, to strike the above named security from listing and registration thereon.

The reasons alleged in the application for striking this security from listing and registration include the following:

The issue is listed on the American Stock Exchange. The issuer desires to eliminate the expenses of duplicate list-

ing, and this application is made at the issuer's request.

Upon receipt of a request, on or before July 11, 1958, from any interested person for a hearing in regard to terms to be imposed upon the delisting of this security, the Commission will determine whether to set the matter down for hearing. Such request should state briefly the nature of the interest of the person requesting the hearing and the position he proposes to take at the hearing with respect to imposition of terms. In addition, any interested person may submit his views or any additional facts bearing on this application by means of a letter addressed to the Secretary of the Securities and Exchange Commission, Washington 25, D. C. If no one requests a hearing on this matter, this application will be determined by order of the Commission on the basis of the facts stated in the application and other information contained in the official file of the Commission pertaining to the matter.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-4919; Filed, June 30, 1958; 8:45 a. m.]

[File No. 1-3614]

TRANS CONTINENTAL INDUSTRIES, INC.

ORDER SUMMARILY SUSPENDING TRADING

In the matter of Trading on the American Stock Exchange and the Detroit Stock Exchange in the common stock, $1 par value of Trans Continental Industries, Inc.; File No. 1-3614.

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 26th day of June A. D. 1958.

The common stock, $1 par value of Trans Continental Industries, Inc. being listed and registered on the American Stock Exchange and the Detroit Stock Exchange, national securities exchanges; and

The Commission being of the opinion that the public interest requires the summary suspension of trading in such security on such Exchanges and that such action is necessary and appropriate for the protection of investors; and

The Commission being of the opinion further that such suspension is necessary in order to prevent fraudulent, deceptive or manipulative acts or practices, with the result that it will be unlawful under section 15 (c) (2) of the Securities Exchange Act of 1934 and the Commission's Rule 240.15c2-2 (17 CFR 240.15c2-2) thereunder for any broker or dealer to make use of the mails or of any means or instrumentality of interstate commerce to effect any transaction in, or to induce or attempt to induce the purchase or sale of such security, otherwise than on a national securities exchange.

It is ordered, Pursuant to section 19 (a) (4) of the Securities Exchange Act of 1934 that trading in said security on the American Stock Exchange and the Detroit Stock Exchange be summarily suspended in order to prevent fraudulent, deceptive or manipulative acts or practices, this order to be effective for a period of ten (10) days, June 26, 1958, to July 5, 1958, inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-5026; Filed, June 30, 1958; 8:54 a. m.]

[File No. 22-2395 (2-14212)]

BARTON DISTILLING CO.

NOTICE OF APPLICATION

JUNE 27, 1958.

Notice is hereby given that Barton Distilling Company (the Company) has filed an application under Clause (ii) of section 310 (b) (1) of the Trust Indenture Act of 1939 for a finding by the Commission that trusteeship of American Bank and Trust Company of Chicago (American) under one indenture dated October 1, 1957, and two indentures to be dated as of July 1, 1958 of the same obligor is not so likely to involve a material conflict of interest as to make it necessary in the public interest or for the protection of investors to disqualify American from acting as Trustee under any one of the three indentures. The indentures are hereinafter referred to as the 1957 and the two 1958 indentures, respectively. The 1957 indenture has been qualified under the Trust Indenture Act and application has been filed to qualify the two 1958 indentures.

Section 310 (b) of the act provides in part that if an indenture trustee under an indenture qualified under the Act has or shall acquire any conflicting interest (as defined in the section), it shall, within ninety days after ascertaining that it has such conflicting interest, either eliminate such conflicting interest or resign. Subsection (1) of this section provides, with certain exceptions not here applicable that a trustee is deemed to have a conflicting interest if it is acting as trustee under a qualified indenture of an obligor and becomes trustee under another indenture of the same obligor. However, pursuant to clause (ii) of subsection (1), there may be excluded from the operation of this provision another indenture or indentures under which other securities of such obligor are outstanding, if the issuer shall have sustained the burden of proving, on application to the Commission and after opportunity for hearing therein, that trusteeship under a qualified indenture and another indenture or indentures is not so likely to involve a material conflict of interest as to make it necessary in the public interest or for the protection of investors to disqualify such trustee from acting as trustee under any of such indentures. This provision was incorporated in the 1957 indenture and is to be incorporated in the two 1958 indentures.

The application shows that:

1. Barton Distilling Company, a Delaware corporation, has outstanding under the 1957 indenture $1,000,000 aggregate principal amount of its 6½ percent Notes, due October 1, 1962 secured by the pledge of separate whiskey warehouse receipts for 1,250,000 gallons of whiskey, (the "Old Notes") which notes are not in default.

2. Warrants to purchase whiskey warehouse receipts for 5,000 barrels of whiskey exercisable from January 2, 1961 through March 1 1961 (the "warrants") were issued under the 1957 indenture.

3. The 1957 indenture was qualified under the Trust Indenture Act of 1939 effective February 27, 1958, as of February 16, 1958, and the two 1958 indentures are to be so qualified.

4. $300,000 aggregate principal amount of 6 percent Notes due July 1, 1963, are to be issued under one of the 1958 indentures and will be secured by the pledge of whiskey warehouse receipts for 375,000 gallons of whiskey.

5. $1,000,000 aggregate principal amount of 6 percent Notes due July 1, 1964, are to be issued under the other 1958 indenture and will be secured by the pledge of whiskey warehouse receipts for 1,250,000 gallons of whiskey.

6. Aside from differences between the 1957 and the two 1958 indentures as to the issuance of warrants, amounts, dates, interest rates and the elimination of any reference to warrants under the two 1958 indentures, most of the provisions of said indentures are substantially identical, and the differences existing between the indentures are not likely to involve a conflict of interest in the trustee.

7. The Company expects to issue and sell additional series of secured notes in the future, each such series to be issued under a separate indenture and to be secured by completely separate and distinct collateral, consisting of whiskey warehouse receipts. Because of the number of indentures which will be involved, the Company believes it would be impractical and too expensive for it to engage in such program unless the same trustee is allowed to serve as such under each of the indentures.

For a more detailed statement of the matters of fact and law asserted, all persons are referred to said application which is on file in the offices of the Commission at 425 Second Street NW., Washington, D. C.

Notice is further given that an order granting the application may be issued by the Commission at any time after July 9, 1958, unless prior thereto a hearing upon the application is ordered by the Commission, as provided in clause (ii) of section 310 (b) (1) of the Trust Indenture Act of 1939. Any interested person, may not later than July 7, 1958 at 5:30 p. m., e. d. s. t., in writing, submit to the Commission his views and any additional facts bearing upon this application or the desirability of a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C., and should state briefly the nature of the interest of the person submitting such information or requesting a hear-

ing, the reasons for such request, and the issues of fact and law raised by the application which he desires to controvert.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-5054; Filed, June 30, 1958; 8:54 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the regulations on employment of learners (29 CFR Part 522), and Administrative Order No. 485 (23 F. R. 200), the firms listed in this notice have been issued special certificates authorizing the employment of learners at hourly wage rates lower than the minimum wage rates otherwise applicable under section 6 of the act. The effective and expiration dates, occupations, wage rates, number or proportion of learners, learning periods, and the principal product manufactured by the employer for certificates issued under general learner regulations (§§ 522.1 to 522.11) are as indicated below. Conditions provided in certificates issued under special industry regulations are as established in these regulations.

Apparel Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.20 to 522.24, as amended).

The following learner certificates were issued authorizing the employment of 10 percent of the total number of factory production workers for normal labor turnover purposes. The effective and expiration dates are indicated.

American Uniform Co., Plant No. 1, Parker Street NE., Cleveland, Tenn.; effective 6-11-58 to 6-10-59 (service apparel—cotton washable).

Elder Manufacturing Co., Dexter, Mo.; effective 6-16-58 to 6-15-59 (men's and boys' sport shirts, and boys' slacks).

Frackville Pajamas, Inc., Broad Mt. Avenue and Oak Street, Frackville, Pa.; effective 6-24-58 to 6-23-59 (men's and boys' pajamas, nightshirts).

G. & S. Manufacturers, Inc., Central and F Streets, Auburn, Nebr.; effective 6-16-58 to 6-15-59 (infants' and toddlers' apparel, and boys' wear).

Greenway Manufacturing Co., Waynesburg, Pa.; effective 6-10-58 to 6-9-59 (boys' and infants' cotton polo shirts).

Helena Garment Co., Bobbie Brooks Square, West Helena, Ark.; effective 6-23-58 to 6-22-59 (junior dresses).

The KYM Co., 286 Cedar Street, Jackson, Ga.; effective 6-12-58 to 6-11-59 (men's single pants).

Reliance Manufacturing Co., Thayer, Mo.; effective 6-20-58 to 6-19-59 (ladies' cotton and rayon dresses).

Savada Brothers, Inc., 36-46 South Laurel Street, Bridgeton, N. J.; effective 6-10-58 to 6-9-59 (boys' sport shirts).

Sicelcff Manufacturing Co., Inc., East Second Avenue, Lexington, N. C.; effective 6-22-58 to 6-21-59 (men's and boys' single pants, work shirts, etc.).

The following learner certificates were issued for normal labor turnover purposes. The effective and expiration dates and the number of learners authorized are indicated.

Bocar Manufacturing Corp., Putnam Street, Tunkhannock, Pa.; effective 6-11-58 to 6-10-59; 10 learners (women's dresses).

Bryan Infants' Wear, Inc., 712 South Wheeling, Tulsa, Okla.; effective 6-11-58 to 6-10-59; five learners (infants' wear—nightgowns, sunsuits, coveralls, etc.).

United Garment Manufacturing Co., 316 West Lake Street, Chisholm, Minn.; effective 6-16-58 to 6-15-59; 10 learners (men's, women's, and children's outerwear).

Ackerman Manufacturing Co., Ackerman, Miss.; effective 6-12-58 to 12-11-58; 20 learners for plant expansion purposes (cotton work shirts).

Glove Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.60 to 522.65, as amended).

Brookville Glove Co., Inc., Foundry Avenue, Indiana, Pa.; effective 6-11-58 to 6-10-59; six learners for normal labor turnover purposes (work gloves).

Ideal Glove Co., Inc., Maben, Miss.; effective 6-15-58 to 6-14-59; five learners for normal labor turnover purposes (work gloves).

Hosiery Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.40 to 522.43, as amended).

Betterwear Hosiery Mill, Inc., 402—15th Street SW., Hickory, N. C.; effective 6-12-58 to 6-11-59; five learners for normal labor turnover purposes (seamless).

Craftsmen Finishers, Inc., 108 Buffalo Street, Concord, N. C.; effective 6-12-58 to 12-11-58; 25 learners for plant expansion purposes (full-fashioned, seamless).

Knitted Wear Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.30 to 522.35, as amended).

Faith Mills Corp., Averill Park, N. Y.; effective 6-13-58 to 6-12-59; five percent of the total number of factory production workers for normal labor turnover purposes (men's knitted underwear).

Regulations Applicable to the Employment of Learners (29 CFR 522.1 to 522.11, as amended).

American Uniform Co., Plant No. 2, Euclid Avenue SE., Cleveland, Tenn.; effective 6-11-58 to 12-10-58; 10 percent of the total number of factory production workers for normal labor turnover purposes in the occupation of sewing machine operators for a learning period of 320 hours at the rate of 85 cents an hour (towels, napkins, laundry bags, aprons).

Esskay Manufacturing Co., 410 South Main Avenue, San Antonio, Tex.; effective 6-16-58 to 12-15-58; five learners engaged in the production of men's and boys' clothing, in the occupation of sewing machine operators for a learning period of 480 hours at the rates of at least 85 cents an hour for the first 280 hours and not less than 90 cents an hour for the remaining 200 hours (coats, sportcoats, overcoats).

Richard Paul, Inc., 1600 Newport Pike, Wilmington, Del; effective 6-13-58 to 12-12-58; six learners for normal labor turnover purposes in the occupation of sewing machine operator only for a learning period of 480 hours at the rates of at least 85 cents an hour for the first 240 hours and not less than 90 cents an hour for the remaining 240 hours (peds—shoe, hi foot covers).

Wolverine Hat & Cap Manufacturing Co., Inc., Reform, Ala.; effective 6-13-58 to 12-12-58; four learners for normal labor turnover purposes in the occupation of sewing machine operators for a learning period of 240 hours at the rate of 85 cents an hour (caps and other sports headwear).

Each learner certificate has been issued upon the representations of the employer which, among other things, were that employment of learners at subminimum rates is necessary in order to prevent curtailment of opportunities for employment, and that experienced workers for the learner occupations are not available. The certificates may be annulled or withdrawn, as indicated therein, in the manner provided in Part 528 of Title 29 of the Code of Federal Regulations. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within fifteen days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of 29 CFR 522.9.

Signed at Washington, D. C., this 18th day of June 1958.

ROBERT G. GRONEWALD, *Authorized Representative of the Administrator.*

[F. R. Doc. 58-4893; Filed, June 26, 1958; 8:46 a. m.]

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended; 29 U. S. C. 201 et seq.), the regulations on employment of learners (29 CFR Part 522), and Administrative Order No. 485 (23 F. R. 200) and Administrative Order No. 507 (23 F. R. 2720), the firms listed in this notice have been issued special certificates authorizing the employment of learners at hourly wage rates lower than the minimum wage rates otherwise applicable under section 6 of the act. The effective and expiration dates, occupations, wage rates, number or proportion of learners, learning periods, and the principal product manufactured by the employer for certificates issued under general learner regulations (§§ 522.1 to 522.11) are as indicated below. Conditions provided in certificates issued under special industry regulations are as established in these regulations.

Apparel Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.20 to 522.24, as amended).

The following learner certificates were issued authorizing the employment of 10 percent of the total number of factory production workers for normal labor turnover purposes. The effective and expiration dates are indicated.

Bay Slacks, Inc., Bay Minette, Ala.; effective 6-19-58 to 6-18-59 (dress slacks).

Blakely Manufacturing Corp., Highway No. 62, Blakely, Ga.; effective 7-4-58 to 7-3-59 (washable service garments).

Brewton Manufacturing Co., Inc., Brewton, Ala.; effective 6-25-58 to 6-24-59 (men's and boys' sport and dress shirts).

Brookside Industries, Inc., Reidsville, N. C.; effective 6-19-58 to 6-18-59 (men's shirts, trousers).

Carlisle Manufacturing Co., Manti, Utah; effective 6-21-58 to 6-20-59 (men's shirts, jackets).

Curtis Manufacturing Co., 2400 Coolidge Avenue, Orlando, Fla.; effective 6-20-58 to 6-19-59 (replacement certificate) (men's walking shorts).

DeeVille Blouse Co., Inc., Danielsville, Pa.; effective 6-20-58 to 6-19-59 (ladies' and children's blouses).

Edward Hyman Co., Hazlehurst, Miss.; effective 6-20-58 to 6-19-59 (men's work pants, work shirts and coveralls).

Industrial Garment Manufacturing Co., 201 East Oak Street, Palestine, Tex.; effective 7-9-58 to 7-8-59 (men's work trousers).

Jamestown Shirt Corp., Jamestown, Tenn.; effective 7-3-58 to 7-2-59 (sport shirts).

Laurens Shirt Corp., Hillcrest Drive, Laurens, S. C.; effective 6-27-58 to 6-26-59 (men's dress and sport shirts).

Mid-South Industries, Inc., Hackleburg, Ala.; effective 6-22-58 to 6-21-59 (boys' sport shirts).

Model Sportswear, Inc., 305 Holland Street, Shelbyville, Tenn.; effective 6-30-58 to 6-29-59 (men's and boys' sportswear, surcoats, and reversible jackets).

Osted Manufacturing Co., Inc., 244 West Seneca Street, Oswego, N. Y.; effective 6-20-58 to 6-19-59 (dresses).

Standard Shirt Co., McClure, Snyder County, Pa.; effective 6-18-58 to 6-17-59 (pajamas).

Sullcraft Manufacturing Co., Inc., Dushore, Sullivan County, Pa.; effective 6-23-58 to 6-22-59 (boys' pajamas).

Williamson-Dickie Manufacturing Co., McAllen, Tex.; effective 6-17-58 to 6-16-59 (apparel—workpants).

The following learner certificates were issued for normal labor turnover purposes. The effective and expiration dates and the number of learners authorized are indicated.

Goldstone Bros., Sebastopol Avenue and Boyd Street, Santa Rosa, Calif.; effective 6-20-58 to 6-19-59; six learners (men's and boys' pants).

Gross Galesburg Co., 154 North Main Street, Canton, Ill.; effective 6-23-58 to 6-22-59; 10 learners; (one-piece suits and work jackets).

Holly Hill Dress Corp., Holly Hill, S. C.; effective 6-20-58 to 6-19-59; seven learners (children's dresses).

Jonny Jax, Inc., Holsopple, Pa.; effective 6-23-58 to 6-22-59; 10 learners (bomber jackets and surcoats).

Yori Joy Sportswear, Inc., Windber, Pa.; effective 6-20-58 to 6-19-59; five learners (pedal pushers and shorts, jackets).

The following learner certificates were issued for plant expansion purposes. The effective and expiration dates and the number of learners authorized are indicated.

Bay Slacks, Inc., Bay Minette, Ala.; effective 6-19-58 to 12-18-58; 25 learners (dress slacks).

Brookside Industries, Inc., Reidsville, N. C.; effective 6-19-58 to 12-18-58; 10 learners (men's shirts, trousers).

Glendale Manufacturing Co., 26 Glendale Avenue, Biltmore, N. C.; effective 6-20-58 to 12-19-58; 50 learners (ladies' cotton pajamas, gowns).

Vacation Wear, Inc., Estill, S. C.; effective 6-23-58 to 12-22-58; 20 learners (ladies' cotton sportswear).

Hosiery Industry Learner Regulations (29 CFR 522.1 to 522.11, as amended, and 29 CFR 522.40 to 522.43, as amended).

Bisher Hosiery Mill, Inc., Denton, N. C.; effective 6-25-58 to 6-24-59; 5 percent of the total number of factory production workers for normal labor turnover purposes (seamless).

C & M Hosiery Mills, Inc., 100-104 South Hanover Street, Baltimore, Md.; effective 6-20-58 to 6-19-59; five learners for normal labor turnover purposes (finishing and converting of men's hosiery).

Granite Hosiery Mills, 838 South Street, Mount Airy, N. C.; effective 7-8-58 to 7-7-59; 5 percent of the total number of factory production workers for normal labor turnover purposes (seamless).

Hanover Mills, Inc., Carolina Beach Road and Marion Drive, Wilmington, N. C.; effective 6-17-58 to 10-28-58; 20 additional learners for plant expansion purposes (supplemental certificate) (seamless).

Merrimac Knitting Mills, Inc., 235 Central Street, Franklin, N. H.; effective 6-17-58 to 12-16-58; 10 learners for plant expansion purposes (seamless).

The Wilma Hosiery Mill, Inc., P. O. Box 755, Spruce Pine, N. C.; effective 6-20-58 to 12-19-58; 20 learners for plant expansion purposes (seamless).

Regulations Applicable to the Employment of Learners (29 CFR 522.1 to 522.11, as amended).

Belfast Canning Co., Pierce Street, Belfast, Maine; effective 6-20-58 to 12-19-58 percent of the total number of factory production workers for normal labor turnover purposes in the occupation of sardine packers for a learning period of 160 hours at rates at least 85 cents an hour for the first 80 hours, and not less than 90 cents an hour for the remaining 80 hours (canned fish).

The following learner certificate was issued in Puerto Rico to the company hereinafter named. The effective and expiration dates, learner rates, occupations, learning periods, and the number or proportion of learners authorized to be employed, are as indicated.

El Dorado Import & Export, Inc., 106 Padial Street (Int.) P. O. Box 695 Caguas, P. R.; effective 6-9-58 to 12-8-58; authorizing the employment of 25 learners for plant expansion purposes in the ocupation of feathers pasters (millinery assembling), for a learning period of 480 hours at the rates of 54 cents an hour for the first 240 hours and 63 cents an hour for the remaining 240 hours (women's millinery).

Each learner certificate has been issued upon the representations of the employer which, among other things, were that employment of learners at subminimum rates is necessary in order to prevent curtailment of opportunities for employment, and that experienced workers for the learner occupations are not available. The certificates may be annulled or withdrawn, as indicated therein, in the manner provided in Part 528 of Title 29 of the Code of Federal Regulations. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within fifteen days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of 29 CFR 522.9.

Signed at Washington, D. C. this 25th day of June, 1958.

MILTON BROOKE,
Authorized Representative of the Administrator.

[F. R. Doc. 58-5001; Filed, June 30, 1958; 8:50 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

STATE OF NETHERLANDS FOR BENEFIT OF SUZANNE DE BEER ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

The State of the Netherlands for the benefit of the claimants identified in "Exhibit A" set forth below; L. S. Claim No. 1025; $2,148.63 in the Treasury of the United States and all right, title, and interest of the Attorney General acquired pursuant to Vesting Order No. 18521 (16 Fed. Reg. 10097, October 3, 1951) in and to: The Cuba Company 6/55, Debentures Nos. 3484 and 3782, in the principal amount of $1,000 each.

Vesting Order No. 18521.

Netherlands Embassy, Office of the Financial Counselor, 25 Broadway, New York 4, New York.

Executed at Washington, D. C., on June 24, 1958.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

EXHIBIT A

L. S. CLAIM NO. 1025

Claimants

Suzanne, Charles Jacques, Markus, Louis and Charles de Beer; Maryse de Beer, a minor, under guardianship of her mother, Mrs. Sara Roza de Beer-Blom; Rosine, Professor Dr. Ivo and Jacob Samkalden; Sibilla Palm-de Beer; Mrs. Johannes Petrus, Simon and Debora Palm; Peter Willem Bernhard and Hugo Frans Joseph Oomens, minors, under guardianship of Cornelis Marius Johannes Oomens and Johannes Albertus Molling; Kitty Blanche Dijks-van den Berg; Ludwig William Simon, Cesar Alexander, and Auretta Sylphia van den Berg; Edoardine Emanuelle Jeane Cyreline Peoples-van den Berg; Aletta Betsy and Simon Jan Barnstijn; Jan Hendrik Coelingh; Gustaaf Adolph Barnstijn, a minor, under guardianship of mother, Mrs. Ilselotte Gerda Ruth Lenselink; Marcus Louis and Marcus Moritz Gompertz; Charlotte Helena Bolle-Gompertz; Jules Maurits and Mrs. Johanna Rosa Bolle; Hugo Morits van Perlstein, Dr. Eli Estaël and Benjamin Eduard Michael Mogendorff; Charlotte Gompertz-Jacobs; Adriana Jacoba Helena Jacobs, nee Boers; Louise Henriette Robby Jacobs; Mrs. Martha Bloch; Miss Geertruida van Walree; Louis de Vries, and Elisabeth Sara van der Schaaf-de Vries.

[F. R. Doc. 58-4984; Filed, June 30, 1958; 8:46 a. m.]